

IT'S FUNNY 'CAUSE IT'S TRUE



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It's Funny 'Cause It's True: The Lighthearted Philosophers' Society's Introduction to Philosophy through Humor

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Introduction

Two philosophers walk into a bar. If they weren't so lost in thought, they would have seen the bar before they walked into it. That is the stereotype of the philosopher: head in the clouds, detached from reality, overthinking everything and thereby doing stupid stuff no normal person would ever do. This stereotype is not entirely true....not entirely.

Now, it is true that philosophers do think differently about things, but that is because they often do something that is quite abnormal – they think about things. Most of us go through life just accepting things the way that they are. Indeed, whenever someone suggests changing things – even if it would be a change to our benefit – we naturally become agitated and try to stop the change. Humans are wired that way. And THAT is one of the reasons why philosophers are so darned annoying. (...one of the reasons.)

Philosophers ask “why?” about things that everyone else simply accepts. We don't defer to tradition. We don't defer to power. We don't defer to laziness. We authentically want to know why and whether there could be another way of thinking about things.

An old friend once said that if you ask “why?” once – “why is the sky blue?”, “why do we have two arms?”, “why do we think we know more about things we actually know less about?” – then you are a scientist. If you ask “why?” twice – “why is that the answer?”, “why is that how we go about determining the answer?”, “why do we all think that?” – now you are a philosopher. If you ask “why?” more than twice, then you are just a three-year-old annoying your mother. Philosophy is the study of the second “why?” questions.

A second stereotype about philosophy is that when trying to answer these second “why?” questions, just say whatever you think. It's philosophy, no one is wrong. It's just your opinion.

If you believe that, YOU are wrong. Philosophy is not just about believing whatever you happen to believe. It is about determining what reasons we have in support of various beliefs. Philosophy is about rational belief, that is, figuring out why we should believe claims we may or may not want to believe. It is the giving of strong reasons in support of our beliefs that makes it philosophy. While philosophy may force you to challenge some of the things you believe (even things you believe deeply), it will bolster other beliefs by showing you not only that you do believe it, but why you should believe it. If you simply want to spout unsupported opinions...that's why we invented the internet. If you want to question your beliefs, if you want to determine whether there are legitimate grounds for believing what you believe, if you want to subject each and every one of your beliefs to rigorous critical scrutiny, then you are philosopher.

So, what is philosophy? Let's answer this question by doing something philosophers do all the time – drawing a distinction. The word “philosophy” can mean two different, but related things. Philosophy is both an activity (something you do) and a subject (something that is).

Philosophy as an activity is the giving and assessing of reasons in support of the claim that everyone should believe some particular proposition. To philosophize is not to simply come up with ideas. To philosophize is to try to justify those ideas or to determine whether someone else's proposed justification actually works.

In this way, what philosophers do is argue. The term argument here does not mean what we usually take it to mean. In philosophy, an argument is not some kind of disagreement or confrontation. The term argument, for us, is a technical term. An argument is a set of sentences such that one sentence, what we call the conclusion, is claimed to follow from the other sentences, what we call the premises. The conclusion is the claim that is being argued for. It is what someone is trying to convince you of. The premises are the reasons being given why you should believe the conclusion.

Consider the following argument:

All U.S. Presidents have been Martians.

Lyndon Baines Johnson was a U.S. President

Therefore, Lyndon Baines Johnson was a Martian

The conclusion here is “Lyndon Baines Johnson was a Martian.” That is the point of the argument. That is what the argument is trying to get you to believe. Why should you agree with that? According to the argument, because LBJ was President of the United States of America and all U.S. Presidents have been Martians. Those reasons are the premises.

Do those premises give you good reason to believe the conclusion? No. Lyndon Baines Johnson was NOT a Martian (he was a Texan). But, at the same time, there does seem to be something right about that argument. What is it? THAT takes us to our second meaning of “philosophy.”

Philosophy as an activity is the framing and evaluating of arguments. But lots of studies give and evaluate arguments. Scientists do it. Historians do it. What makes the activity an instance of philosophy is the sort of question.

Scientists and historians are interested in empirical questions. A question is empirical if it says something about an observable aspect of the world. Consider the claim, “You have a nose.” That is an empirical claim. If you want to know whether it is true or false, there are several sorts of routes you could take to gaining evidence. You could look in a mirror. You could reach up with your hand and feel your face. These are observations. Any question that can be answered through making observations is empirical.

While empirical questions will matter in philosophy, philosophical questions are not themselves straightforwardly empirical. We leave those to the scientists and historians. Philosophical questions are ones for which we give arguments that do not depend completely upon observation. The technical term we use for such questions is *a priori*. “*A priori*” simply means before experience.

Suppose you turn on the television and see the local news weather report featuring staff meteorologist Karl Popper. Karl guarantees that his forecast is 100% accurate. He says, “Tomorrow it will rain or it won’t. Back to you, Bob.” Is Karl correct? Is his forecast 100% accurate? Well...yes. But only because it was an *a priori* truth. We don’t need to look out the window tomorrow to know whether the sentence is true or not because it is always true no matter what. We thought he was going to make an empirical claim, maybe “tomorrow, it will rain.” That would be empirical because we would have to check outside to see if it was the case or not.

“Tomorrow, it will rain or it won’t” is an *a priori* claim that is *a priori* because it is trivial. But not all *a priori* claims are vacuous like this. Consider the sentence, “It is morally wrong to set your roommate on fire for fun.” That is a sentence that is *a priori* and not vacuous – especially for your roommate. This is the sort of proposition that philosophers study. We want to know whether it is true. (It is.) But more importantly, we want to know WHY it is true. What makes that sentence true? It is not an empirical matter. This is why you don’t have a lab section in your philosophy class where you have to bring your roommate, lighter fluid, and a match. We don’t have an ethic-o-meter. We need something else. What we need is *a priori* argumentation.

These sorts of questions and arguments fall into four general categories: logic, metaphysics, epistemology, and axiology. These are the four branches of philosophy. This is the second meaning of philosophy – philosophy as a subject.

Logic is the study of rational argumentation. It examines the nature of arguments themselves and what propositions follow from what propositions. Metaphysics is the study of reality. What exists? Epistemology is the study of knowledge. What can we know? How do we gain knowledge? Axiology is the study of value judgements. It has two subfields. Ethics is the study of value judgements concerning the rightness and wrongness of free human acts. Aesthetics is the study of value judgements concerning art. Is this beautiful? Is that a work of high quality?

These five categories (logic, metaphysics, epistemology, ethics, and aesthetics) will form the structure of this book. In each section, we will explain in detail what each study is and then we will examine contrasting arguments around a question in each field that is a philosophical question raised by humor.

Philosophy may be difficult, but it is also fun. Especially when the topics you consider are themselves fun. Philosophy may be no joke, but it does not mean there are no jokes in philosophy.

How many philosophers does it take to screw in a lightbulb? Don’t ask me, I’m a philosopher and that’s an empirical question. (Now, you get that joke. See, you’re learning.)

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CHAPTER OVERVIEW

1: Logic

[1.1: Logic](#)

[1.2: Thinking Critically](#)

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1.1: Logic

People are trying to get you to believe things all the time. Whether it is commercials during your favorite show, politicians trying to get your vote, or someone trying to convince you to go out with them for a cup of coffee, people want you to believe what they think will benefit them. But what benefits you is believing what is most likely to be true.

Humans are psychological beings, we have minds that are wired funny. There are ways to get us to believe things that are not true...but we will be absolutely certain that they are. These tricks can lead us to think and do things that are not the best for us, those we care about, or the world as a whole. Logic is the study that allows us to cut through these rhetorical tactics, courtroom tricks, and cognitive biases.

In philosophy, **logic** is the study of rational argumentation. Notice what just happened – we took one word “logic” that we didn’t know the meaning of and we defined it in terms of two words, “rational” and “argumentation” that we don’t know the meanings of. In philosophy, we call that progress.

A belief is rational if we have good reason to believe it is at least probably true. There are lots of ways to acquire beliefs. Some of them are rational and some of them are not. One may believe something because of coercion. “Logicians are cool – believe this or I will fail you this semester.” Effective (perhaps), but not rational. What we need is not incentive to believe (or, at least to act as if we do), we need actual support for the claim. For a belief to be rational is to have evidence that it is probably the case. This is where arguments come in.

Again, an **argument** is a set of sentences such that one sentence, the conclusion, is claimed to follow from the other sentences, the premises. Arguments thus have two parts, a **conclusion** and **premises**. The conclusion is the point of the argument. It is the thing being argued for, that which we are trying to convince ourselves or others of. We give arguments in order to provide legitimate reasons to believe the conclusion. The premises are those reasons. The premises are the grounds that are being proposed to support rational belief in the conclusion.

Every argument has one and only one conclusion. Conclusions are like noses – everyone has one. More than one conclusion, more than one argument. No conclusion, 7 no argument. Premises, on the other hand, can come in any number – one, two, eighteen.... There are mathematical arguments with an infinite number of premises and weird logical arguments that have no premises. Conclusion – one and only one, premises – any number.

Consider the old chestnut: All men are mortal. Socrates is a man. Therefore, Socrates is mortal. In this case, the conclusion is “Socrates is mortal.” That is what the argument is trying to convince us of. Why should we believe that Socrates is mortal? Because he is a man and all men are mortal. The first thing you do when you approach an argument is to find the conclusion and then set out the premises. It is crucially important that you do this correctly.

Consider what would happen if we misidentified the conclusion in this case – if it is true that all men are mortal and that Socrates is one of these guys, then it turns out that it is absolutely the case that Socrates is mortal. But suppose we wrongly thought that the conclusion is “all men are mortal” and that the premises are “Socrates is a man” and “Socrates is mortal.” Just because one man is mortal, it doesn’t necessary follow that they all are. By misidentifying the conclusion and premises, we have taken a good argument, one that gives us good reason to believe something and turned it into a flawed argument that does not.

So, the first tasks that are necessary for us to develop are (1) figuring out when we have an argument, and (2) determining what the conclusion is and what the premises are. We often have help with these tasks, what we call indicator words. There are certain words we use to point out conclusion and there are certain words we use to point out premises.

Think about what a conclusion is supposed to do, it is supposed to be the thing that is established by the argument, so we use words that indicate this. The most obvious one is “therefore,” but we use other words for this function as well: thus, hence, and so.

We do need to be careful, though, in that not every use of these words indicates a conclusion. Take the word “so.” Sometimes, it does function this way – I haven’t eaten today, so I am hungry. That I have not yet eaten gives you good reason to believe that I am, in fact, hungry. But in the sentence “I am so hungry,” now “so” is not an indicator word. “Hungry” is not a conclusion. This is a different meaning of “so,” instead of synonymous with “therefore,” it is synonymous with “very.”

We have premise indicator words as well. We use words and phrases like “because,” “since,” and “given that.” Again, not every use of these words is an indication of a premise in an argument. “I am hungry since I haven’t eaten all day” is a case where “since”

points out a reason for belief. Why should you believe I am hungry, because I haven't eaten today. But in the sentence "I haven't eaten since yesterday," we see since used just to signal time, not as an indicator word. "Yesterday" is not a premise.

Indicator words are the easiest way to determine whether we have an argument and if so, what the conclusion is and what the premises are. But we don't always have indicator words. How then do we determine if we are looking at an argument? The easiest way is to try to insert your own indicator words. I prefer "therefore" and "because." If you look at a passage and the word "therefore" can be naturally inserted in a way that maintains the meaning of the passage, you are probably looking at an argument and what immediately follows "therefore" is your conclusion. Similarly, if you can insert "because" into a passage without changing the meaning, you are likely looking at an argument and what comes right after your inserted "because" is probably a premise.

Arguments have two parts – a conclusion that we are trying to be convinced of and premises which are trying to do the convincing, that is, trying to provide good reason for belief. Recall that we defined an argument as "a set of sentences such that one sentence, the conclusion, is claimed to follow from the other sentences, the premises." Notice that we do not need the conclusion to actually follow from the premises to have an argument, we just need the claim that it does. This claim is that there is an inference between the premise set and the conclusion, that is, that the premises do logically lead to reason to believe the conclusion. All that is necessary for the existence of an argument is the claim of an inference. Good arguments will have an actual inference and bad arguments will lack an inference despite the claim. How do we determine which is which? That is the central question of logic.

An argument has two parts, a conclusion and premises, and that there is the claim of an inference from the premises to the conclusion. Not all texts contain arguments, that is, not all communication – even those that are trying to convince us of something – will contain a claim of an inference, that is, independent reason why we should believe what is trying to be conveyed. So, the first skill we will need to develop is to spot when there is an argument and when there is not. The second is to find the conclusion and lay out the premises.

Consider the following: You are dehydrated. You need to drink more water. The human body does not function properly when it is not appropriately hydrated and you need to maintain full function. Argument? Yes. What is the conclusion? Where does the word "therefore" fit naturally in a way that maintains the meaning and where does "because" fit naturally to maintain the meaning?

1. You are dehydrated.
2. The human body does not function properly when it is not appropriately hydrated.
3. You need to maintain full function.

Conclusion: You need to drink more water.

How about the following: "I did turn in my homework. I swear. Believe me, I'm telling the truth." Argument? Clearly, there is someone trying to convince someone of something. But is this person giving independent reason for thinking it is true? No. The student is simply pleading for the person to believe the claim, not giving evidence for it. This is not an argument.

Determining if something is an argument and finding the parts are the first two steps for us. The third step is determining what kind of argument it is. Arguments primarily come in two types: deductive and inductive. An argument is deductive if and only if the conclusion does not contain information that is not already contained in the premises. (Logicians call this property being "non-ampliative".) A deductive argument argues from broad to narrow, that is, the content of its conclusion does not outrun the content of its premises. The following argument is deductive:

1. All men are mortal.
2. Socrates is a man.

Conclusion: Socrates is mortal.

The premises talk about all men, but the conclusion only mentions a subset, one guy.

The other sort of argument we'll consider is inductive. An argument is inductive if and only if its conclusion does contain information not contained in its premises. An inductive argument argues from narrow to broad, that is, the content of its conclusion does outrun the content of its premise set. (Logicians call this being "ampliative.") The following argument is inductive:

1. The first paper I submitted in this class got an A.
2. The second paper I submitted in class got an A.

3. The third paper I submitted in this class got an A.
4. There are five papers I have to write for this class.

Conclusion: All my papers in this class will get an A.

The evidence is six of the ten papers and the conclusion is all ten. The conclusion is broader than the premises, that is, not fully contained in the premises and that makes the argument inductive.

This is the form of induction called an “inductive generalization,” but we could also make an inductive argument to a single, as of yet unobserved instance. This is called “inductive analogy.” It would look like this:

1. The first paper I submitted in this class got an A.
2. The second paper I submitted in class got an A.
3. The third paper I submitted in this class got an A.
4. There are five papers I have to write for this class.

Conclusion: The fourth paper I am about to submit will get an A.

This is inductive because the premise set discusses six papers and the seventh paper is not one of them. The inference goes beyond the data on which it is based. Deductive arguments milk content out of their premises, while inductive arguments extend their scope beyond their premises.

So, we now know to (1) determine if it is an argument, (2) find the conclusion and premises, and (3) determine the type of the argument. The last step is the most important – evaluating the argument. Does the argument contain a legitimate inference? Does it provide us good reason to believe its conclusion?

Consider the following three arguments and determine which are good arguments:

- I. 1. All men are mortal
2. Socrates is a man

Conclusion: Socrates is mortal.

- II. 1. All politicians are Martians.
2. Lyndon Baines Johnson is a politician

Conclusion: Lyndon Baines Johnson is a Martian.

- III. 1. All Presidents of the United States have been human
2. This newborn baby is human

Conclusion This newborn baby is President of the United States

Which of the above provide you with good reason to believe the conclusion? Only the first one. What is wrong with the other two?

The second argument should strike you as good in some way, but surely we don't have reason to believe its conclusion. Similarly, the third argument does seem to have a virtue. Its premises are true. All Presidents of the United States have been humans and all newborn children – given that by children, we mean the offspring of humans – are also humans. But, again, surely the conclusion is false. So, what is right about the first example, and what goes wrong with the second two?

Validity concerns the form of the argument. An argument is **valid** if and only if, assuming the truth of the premises for the sake argument, the conclusion follows from them. The important thing to notice here is that we are assuming the premises are true for the sake of argument. Maybe they are true, maybe they are false, we don't care. Validity does not concern the content of the premises. All we are looking at is whether the premises, IF true would lead you to the conclusion. Validity is not about the content of the argument, but about the form of the argument. Validity looks at the skeleton of the argument and determines if it is strong enough to support the weight of the conclusion.

Let's look at the first argument. If we take it as true that all men are mortal, and if we take it as true that Socrates is one of those men, then it necessarily follows that Socrates is mortal. This is a valid argument.

Similarly, with the second argument. If we assume it to be true that all politicians are Martians, and if we take it as true that LBJ was a politician, then again it necessarily must follow that LBJ was a Martian. This, too, is a valid argument.

Indeed, from a validity standpoint, it is the same argument as the first. Remember that validity only cares about the structure of the argument, not the content. Both of the first two arguments have the same form: All A's are B, C is an A, therefore, C is a B. All arguments of this form will be valid. Let's play Madlibs. If I ask for a plural noun, a proper noun, and an adjective and put them into this form, we get a valid argument. All cats are purple. Pee Wee Herman is a cat. Therefore, Pee Wee Herman is purple. Valid argument. Validity is a function of form – any conclusion of that form will be true if the premises of that form are also true.

Consider the third argument. This one is invalid. It is true that newborn babies are human and it is true that all Presidents of the United States are and have been humans, but just because they are true, it does not follow that all newborn children are Presidents of the United States. All A's are B and all C's are B, but that does not mean that all A's are C. The truth of the premises does not lead to the truth of the conclusion. The problem is not with the premises, but with the form of the argument.

problem is not with the premises, but with the form of the argument. That we are assuming the truth of the premises in our first criterion should bother you a little bit. After all, that is a huge assumption to make. What justifies our ability to make such an assumption? The answer is our second criterion – well-groundedness. An argument is well-grounded if and only if all of its premises are true. Well-grounded arguments have true premises. Maybe the conclusion is true, maybe it is false, but what is important for us in looking at the well-groundedness of an argument is just the truth or falsity of the premises.

Our first argument? Well-grounded. All men are, in fact, mortal and Socrates is (or at least was) a man.

The third argument. Also well-grounded. All newborn children are, in fact, human and all Presidents of the United States have actually been human.

But the middle one? Not well-grounded. LBJ was indeed a politician, but not all politicians are Martians (certainly, no more than half). It is a valid argument; that is, if the premises were true, the conclusion would be, but not all of the premises are true. As such, we have no good reason to believe the truth of the conclusion.

An argument that satisfies both of our criteria, that is, an argument that is both valid and well-grounded, is called sound. (valid + well-grounded = sound) A sound argument gives us good reason to believe its conclusion. What we want are sound arguments.

If an argument is sound, then the conclusion is supported. But how strongly it is supported depends on the type of argument. If you have a deductive argument that is both valid and well-grounded, then the conclusion must be true – 100%, absolutely, no doubt about it true. If, on the other hand, you have an inductive argument that is sound, then the conclusion is probably true and gives us a degree of belief in the truth of the conclusion. Stronger inductive arguments give us reason to think the conclusion is more probably true, whereas sound, but weak inductive arguments give us reason to think the conclusion is probably true, but does not give us the same degree of belief.

But suppose the argument is not sound. If the argument – deductive or inductive – is flawed, that is, if it is invalid or not well-grounded, then we know nothing of the truth or falsity of the conclusion. There are always bad arguments that can be built for true conclusions. Consider the following:

1. The moon is made of green cheese.
2. Only people twelve feet tall can join the Boy Scouts.

Conclusion: $1+1=2$

It is, of course, absolutely true that $1+1=2$, but not for the reasons that are given in the premises – premises that are, obviously, false. So, if an argument satisfies both criteria, the conclusion should be believed; but if either or both criteria are not satisfied, we have no reason to believe anything about the truth or falsity of the conclusion.

In order to determine which arguments are sound, we need to develop tests for validity and well-groundedness. Validity looks at the structural elements of the argument and its study is called “formal logic,” not because you need to dress up to do the work, but because it is an examination of the form of arguments. Validity for deductive and inductive arguments are completely different matters and we need different tools – like standard and metric wrenches. We will delve into both of these in turn. Well-groundedness concerns look at the acceptability of the argument other than the form and are called “informal logic” or “critical thinking.”

? Exercise 1.1.1

Do the following passages contain arguments? If so, identify the conclusion and premises.

1. Jokes are effective if the audience laughs at them. You can't have two emotions at the same time. Amused and insulted are different emotions. Your joke insults the audience. So, your joke is not effective.
2. That joke is not funny. I get it, I just don't think it works.
3. "Gumpy's" is funnier than "Frumpy's" as the name of a potato chip because the sound the letter g makes is funnier than the sound the letter f makes.

Are the following arguments deductive or inductive?

4. Roberta loves everything Aparna Nancherla does. Her last special came out last month. Roberta loved it.
5. Roberta has loved everything Aparna Nancherla has done. Her next special comes out next month. Roberta will love it. Are the following arguments valid?
6. If you find a joke funny, you have a working brain. You found that joke funny. So, you must have a working brain.
7. If you find a joke funny, you have a working brain. You didn't find that joke funny. So, you must have a problem with your brain function.
8. If you find a joke funny, you have a working brain. You have a working brain. So, you find that joke funny.

Answer

1. This is an argument. The conclusion indicator word "so" picks out the conclusion, "That joke is not funny." The other sentences are the premises.
2. This is not an argument. A person is stating an opinion about a joke, but is not providing reasons why one should believe the opinion is true.
3. This is an argument. The indicator word "because" picks out the premise "the sound the letter g makes is funnier than the sound the letter f makes" which is offered in support of the conclusion "'Gumpy's' is funnier than 'Frumpy's' as the name of a potato chip."
4. This is a deductive argument. The premises are "Roberta loves everything Aparna Nancherla does" and "Her last special came out last month." The conclusion is "Roberta loved it." The first premise is a universal claim, that Roberta has loved all of Aparna Nancherla's work, while the conclusion refers to one special, that is, a part of the whole. As such, the argument proceeds from broad to narrow and is therefore deductive.
5. This is an inductive argument. The premises are "Roberta has loved everything Aparna Nancherla has done" and "Her next special comes out next month." The conclusion is "Roberta will love it." The first premise only includes Roberta's opinion about the work that has already been done, whereas the conclusion makes a claim about the upcoming special which is not covered by that premise. That means that the argument is ampliative, the content of the conclusion goes beyond the content of the premises.
6. This is a valid argument. The premises are "If you find a joke funny, you have a working brain" and "You found that joke funny." The conclusion is "You have a working brain." The first premise states that finding a joke funny is sufficient to indicate a working brain, that is, if you are capable of processing a joke and determining it to be funny, such cognitive processes would indicate a working brain. You did find this joke funny, that is, you did all the neurological work necessary for the outcome we deemed sufficient to indicate a working brain. So, it does follow that the conclusion must be true, if the premises are. In other words, if the premises are true, the conclusion cannot be false. The truth of the conclusion does follow from the truth of the premises making this a valid argument
7. This argument is invalid. The premises are "If you find a joke funny, you have a working brain" and "You didn't find that joke funny." The conclusion is "You must have a problem with your brain function." The first premise states that finding a joke funny is sufficient to indicate a working brain, that is, if you are capable of processing a joke and determining it to be funny, such cognitive processes would indicate a working brain. In this case, you did not find this joke funny, that is, you

still did all the neurological work necessary to determine 16 whether a joke was funny or not, but you found it to not be funny. The first premise tells you what is sufficient, that is, what would be enough by itself, to demonstrate a working brain; but it does not say it is necessary, that is, something that must be the case to demonstrate a working brain. It is perfectly possible for the premises to be true and the conclusion to be false. Therefore, the argument is invalid.

8. This argument is invalid. The premises are “If you find a joke funny, you have a working brain” and “You have a working brain.” The conclusion is “You find that joke funny.” The first premise states that, if you find a joke funny, that by itself is enough to indicate that your brain is working; but the converse does not follow, that if your brain is working then you will find some joke funny. It is perfectly possible for both of the premises to be true and the conclusion to be false. So, this is an invalid argument.

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1.2: Thinking Critically

There are lots of ways that an argument can go wrong. Some of the mistakes that can logically tank an argument are repeated often enough that we give them names. Unfortunately, many of these bad arguments strike us intuitively as good arguments despite their irrationality and we often find ourselves (even those of us who know better) employing them in conversation as if they were good ways of thinking (which they are not). We call these reasoning errors fallacies and they come in quite a variety. In this section, we will introduce some of these fallacies and teach you how to spot them.

Equivocation

Arguments have to be set out in terms of language – you can’t do logic through interpretive dance. But words can be ambiguous, that is, they can have more than one meaning. This can lead to logical problems.

Definition: Equivocation

The reasoning error wherein an operative word is used in two different ways in an argument.

Consider the following argument. “Tables are furniture. There are tables in my statistics book. Therefore, there is furniture in my statistics book.” Is it a good argument? Of course not. But at first glance, it seems valid and well-grounded. If the premises are true, they seem to lead to the conclusion. And those premises are both true. So, what’s the problem? The word “table” is ambiguous. It means both a flat raised surface for placing things on and a rectangular array of numbers. The word “table” is used in two completely different ways and we changed which way we were using it in the middle of the argument. The word “table” in the first premise does not mean the same thing as the word “table” in the second premise. But for the argument to work structurally, they have to mean the same thing. Therefore, we equivocated on the word “table,” and the argument is unsound.

Ad Hominem

Arguments are made by people. Arguments can be valid or invalid, well-grounded or not well-grounded. People can be kind or mean, smart or dumb, powerful or powerless, rich or poor, cool or nerdy, objective or self-interested, well-dressed or analytic philosophers. The logical status of the argument depends solely upon the internal structure of the argument and whether the premises are true or not. The kindness, intelligence, power, wealth, coolness, objectivity, or ability to match pants and shirts have absolutely nothing to do with the structure of an argument or the truth of its premises. Arguments stand or fall on their own merits, not on whose mouth they come out of. To argue against the arguer and not the argument is what we call ad hominem.

Definition: *Ad hominem*

The reasoning error wherein one tries to undermine an argument by attacking the person who made the argument and not the validity or well-groundedness of the argument itself.

The phrase “ad hominem” is Latin for “to the man.” The idea being that you are not addressing your concerns with the idea, with the argument, but directly to the person. You could take a perfectly good argument and put it in the mouth of Abraham Lincoln and Adolf Hitler, Mother Teresa and Jeff Bezos, Bill Nye and Kanye West. No matter who says it, if it is a good argument it is a good argument. To focus on the arguer and not the argument is to miss the logical point and to commit a fallacious ad hominem attack.

Anytime you hear (1) name calling, (2) labelling, or (3) an appeal to the arguer’s self-interest, you are probably looking at an ad hominem attack. “Don’t listen to that moron” – ad hominem. “That’s exactly what you would think, you’re a conservative/liberal/male/female/Christian/Muslim/Jew/atheist...” – ad hominem. “The only reason you are arguing that is that if it were true, you would benefit” – ad hominem. Ad hominem attacks can be very effective. If you can tear down the person making the argument, people think that what they have to say cannot be that valuable. But the fact that it works does not make it good reasoning.

Circular Argument

A good argument has to be valid, but not every valid argument is a good one. Consider the following argument: It is Monday, therefore it is Monday. It is certainly valid. If we assume the truth of the premise, we are led to the truth of the conclusion. But does it give us reason to believe the conclusion? No. The reason we need an argument is to provide support for an uncertain conclusion. If the premise and the conclusion say the same thing, and one is uncertain, then so is the other. This means that while the argument is valid, it is not well-grounded. You cannot support a claim simply by repeating it. No matter how many times you say it, it doesn't make it more true. We call this a circular argument.

Definition: Circular argument

The reasoning error in which the premise contains the same information as the conclusion.

The most obvious case of the circular argument is the one above, where the premise and the conclusion are the same sentence. The trickier version is where you have two different sentences that express the same proposition in different words. Consider the argument: It is morally wrong to kill animals because you shouldn't take the life of anything that can feel pain. The only things that can feel pain are things with a central nervous system. The only things with a central nervous system are animals. So, while the two parts of the argument seem different, they turn out to be just different ways of saying the same thing. It is a circular argument.

It could be rescued from circularity by adding content to the premise about why feeling pain gives rise to interests that are morally relevant. But doing so would be to add premises. It would add information that would make the conclusion and the premise say different things. That is what a good argument does. But in its naïve current form, it is a complex form of circular argument.

Slippery Slope Fallacy

A common reasoning error is what is called the slippery slope or domino fallacy. It involves chains of cause and effect relations. The reason this error is often called the domino fallacy is that it resembles the tipping of dominoes. Set them up on edge and knock down the first and it will tip the second which hits the third and in a row they all go down. It is a metaphor for a causal (not casual) chain, that is a chain of events which cascade from some initial happening.

There are, of course, such chains. If you forget your homework one day, it could be the difference between an A and a B. Not getting that A might be the thing that keeps you out of medical school. Getting rejected from med school causes you to despair. The despair leads you to drink. You become an alcoholic. You drink away all of your money except for a single dollar bill. With that dollar bill, you buy a lottery ticket. It turns out to be the winner and you become a multi-millionaire all because you forgot your homework that day.

It could happen. Probably won't. But, it could. But, it probably won't. If you want to assert the existence of a whole chain of events like this, you have to justify each and every link in the causal chain. The slippery slope fallacy is where you simply assert that once you take the first step, you will necessarily slide all the way down the hill.

Definition: Slippery Slope Fallacy

The reasoning error wherein one asserts a chain of causally interconnected events without providing cause and effect arguments for each link in the chain.

Again, these sorts of chains of events do happen, but if you want to claim that any given situation is like this, you must provide full evidence for each and every step.

Faulty Analogy

Arguing by analogy is a perfectly fine way of arguing. If two things are like each other in relevant ways, then you can infer something about the other from the first. We reason like this in science all the time. We think of current through a wire as if it was water moving through a hose. The equations governing them are similar enough that the analogy works.

But for such an argument to work, the two things need to be alike in the relevant ways. If they are not properly analogous, then any inference you try to draw from one to the other will not be legitimate. To do so, is to commit the fallacy of faulty analogy.

 Definition: Faulty Analogy

The reasoning error wherein an argument by analogy is based on two things that are not analogous.

A while back, when anti-smoking campaigns were aimed at children, they had posters in classrooms that read “kissing a smoker is like licking an ashtray.” About a decade later, the messages were about drug use and featured a television commercial of a young lady putting an egg on a counter saying, “This is your brain.” She then hit the egg with a pan, splattering it everywhere, saying, “This is your brain on drugs. Any questions?” Now, it is true that cigarettes and heroin are bad for you. (Do not smoke. Do not shoot up heroin.) But in both cases, the arguments by analogy fail because they are bad analogies. Smoking does yellow teeth and give bad breath. But kissing a smoker is not like sticking your tongue in an ashtray. Drugs do cause neurological damage, but their use does not smash the brain beyond recognition. If you want to argue by analogy, use good analogies.

Taking a Quotation Out of Context

In academic work, we often use quotations from other authors as premises in the arguments we make. It is important to refer to the work of others in order to make our points. There have been lots of smart people who have thought about the sorts of questions we are still thinking about and we need to work from their insights in order to make progress. Isaac Newton, perhaps the most important thinker in human history wrote that the reason he was able to see so far was that he thought of himself as standing on the shoulders of giants.

However, there are two ways that using someone else’s good ideas can go horribly logically wrong. The first is that we can misrepresent the meaning of their words by taking a quotation out of context. What words mean is often a matter of who is saying them, why they are saying them, to whom they are saying them, and how they are saying them. The same sentence can mean completely different things, if any of these contextual factors are changed.

Suppose Jack asks his roommate Rob whether he is going to ask out Rhonda, whom Jack knows has a thing for Rob, and Rob replies, “Yeah, sure, I’ll ask out Rhonda, when my dog writes a dissertation on Hegel.” Jack then says to Rhonda, “I ask Jack and 22 he literally said the words ‘I’ll ask out Rhonda.’ He said it. I swear.” Did he say it? Well...yes and no. Those words did leave his lips, but that was not what he was saying. Rob took the quotation out of context.

 Definition: Quotation taken out of context

The reasoning error wherein someone uses as support the words of another person, but changes the meaning of those words by changing the context in which they are reported.

Quotations are important in scholarship, just make sure the words as you write them mean what the author meant.

Faulty Authority

The second way a quotation can go wrong is if the person quoted does not offer the support you need in making your argument. We quote experts because their words can be taken as likely true. But it is important when citing the work or ideas of an authority, that the person is a legitimate authority. If not, it is an example of the fallacy “faulty authority.”

 Definition: faulty authority

The reasoning error in which someone uses a quotation from an authority as a premise for an argument, but the purported authority is not a legitimate authority.

Legitimate authorities have three properties. The first, and this may seem trivial, is that they actually have to exist. A real authority needs to be both real and an authority. This is the problem when people say things like, “You know, I read somewhere that...” Where? If you want me to believe this on the basis of someone’s authority, you need to tell me who the authority is. By simply saying that you read it somewhere or heard it somewhere, you are asserting that I should agree with this because the place you read or heard it is authoritative, but to justify that I need to know who the purported authority is.

The second condition for being an authority is that the person is actually an expert in this field. Your uncle Murray the dry cleaner may be an authority in stain removal, but not whether homeopathic remedies are effective treatments for bacterial infections.

The final condition is that the person cited as an authority has to be objective, that is, not have a direct interest in your believing one way or another. If you go to your doctor and he prescribes an expensive medication to treat some symptoms you are having and you later learn he is receiving kick-backs from the drug company that makes it, you have every right to wonder if there was a better or less expensive alternative that was ignored because of the doctor's personal financial interests. The doctor exists and is an expert in the relevant field, but to be fully satisfied that this is a legitimate authority, their claim has to not have effects on them personally.

Fallacy of the Mean

Contrasting arguments are the hallmark of philosophy. Smart people disagree over hard questions with smart arguments on different sides. This often flusters students. If both sides gave strong arguments, who's to say? Students throw up their arms and declare the matter "subjective," it must just be whatever you think it is. NO! It just means you have to think harder.

The other move students tend to take when coming across strong and opposing arguments is to try to split the difference, find a way that makes them both true, assume the truth is in between the two positions. There are certainly times when this is the case. Sometimes it is best to compromise, to split the difference. But sometimes it is not. The middle path is itself a position that requires independent argumentation. To simply assert that a view is correct because it is the mean between two extremes is to commit the fallacy of the mean.

Definition: Fallacy of the Mean

the reasoning error wherein one contends that a moderate viewpoint must be correct because it is the moderate view.

The idea of a big logical group hug is warm and fuzzy, but that is not the way the world always is. Sometimes the truth does lay in the extreme. Does it? Doesn't it? Everything needs an argument...and not just any argument, but the strongest argument. Which argument is the strongest? THAT is what philosophy is all about.

? Exercise 1.2.1

Name the fallacy in the joke:

1. Why did the chicken cross the road? To get to the other side.
2. James Randolph Worthington III was waiting for the subway when a young man wearing ripped jeans and a t-shirt stands next to him on the platform. With an air of indignation, Worthington checks his watch and the young man asks, "Excuse me, sir, do you have the time?" Worthington ignores him. The young man says, "I saw you look at your watch. I don't have one. I asked politely for the time. Why can't you tell me?" Worthington turns and says, "Look, if I tell you the time, we'll have a conversation. We'll get to know each other and become friends. I'll invite you to my house for dinner. You'll meet my lovely daughter who is your age. You'll ask her out on a date and fall in love. You'll ask her to marry you, and she'll accept." The younger man said, "...and what is wrong with that?" Worthington replied, "My daughter will not be married to a man who can't afford a watch!"
3. Son: Dad, global warming is real. The scientists all say so. Dad: You're so stupid, you'd climb a glass wall to see what was on the other side.
4. A man walks in an optometrist and says, "Doc, I think I'm a moth." The eye doctor, says, "What?" "I think I'm a moth." The eye doctor says, "I'm an optometrist. You need a psychiatrist." The man says, "I know." "Then why did you come to see me?" The man says, "Your light was on."
5. Frogs are green and bounce. Tennis balls are green and bounce. Your check is green. I don't think I'll accept it.
6. "Susan, I heard you got a cancer diagnosis. I'm so sorry." "Well, Karen, it's a little more complicated. I have this tumor. The first doctor said it was cancer and had to come out immediately. So, I went to get a second opinion. The next doctor said it was benign and should stay because the surgery itself is dangerous." "So, what are you going to do? Which doctor should you listen to?" "They are both professionals, so I'm going to listen to both and have them only remove half of it."

7. Today at the bank, an old lady asked me to check her balance. So, I pushed her over.

8. A man walks into a bar and orders a drink with a big smile on his face. The bartender asks, “Why so happy, Joe?” “Well,” the Joe says, “You know how I was worried that my wife was being unfaithful?” “Yeah, so?” the bartender asks. “Well, now I know she isn’t.” “How do, you know that, Joe?” “Well, last week, I was sick and had to stay home from work a couple days and every time she would see the mailman, she would run out waving her arms, yelling ‘My husband is home! My husband is home!’ How could someone so proud to have me around be unfaithful?”

Answer

1. Circular argument. “Crossing the road” and “getting to the other side of the road” are different ways of saying the same thing. What makes this a joke is that it asks for the goal that the chicken was trying to accomplish by crossing the road but answers with a restatement that the chicken crossed the road in different words.
2. Slippery Slope. Worthington sets out an entire chain of events that he contends will result from his giving the young man the time without justifying any of the steps.
3. Ad hominem. The father responds with an insult rather than addressing the argument made.
4. Faulty authority. The man went to see a doctor about his condition, but it was the wrong sort of doctor.
5. Faulty analogy (and equivocation). The speaker is drawing an analogy between frogs, tennis balls, and checks. This analogy clearly does not hold. (There is also an equivocation here as bouncing a tennis ball and bouncing a check are different meanings of “bounce” – either answer is acceptable since both fallacies are committed.)
6. Fallacy of the mean. Susan got medical advice to both have surgery to remove the tumor and not have surgery to remove the tumor. By seeking the middle ground, Susan does not get the best of both worlds, but will rather have both the danger of a possibly of a cancerous tumor and the danger of the surgery.
7. Equivocation. You are psychologically primed by setting the joke in a bank to interpret the word “checking one’s balance” as determining the amount of money he has in a checking account. But the punch line changes the meaning of “checking one’s balance” to testing the ability to stay on one’s feet.
8. Taking a quotation out of context. Joe takes his wife’s words “My husband is home!” to be a statement of her adoration of him instead of a warning to the mailman that their usual activities would have to be postponed.

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CHAPTER OVERVIEW

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2.1: Metaphysics

The word “metaphysics” is one of the most misused terms in philosophy. In its ordinary usage, it refers to things like E.S.P., pyramid power, and channeling. But that is not what philosophers mean by the term. **Metaphysics** is the study of reality. Its subfield **ontology** examines what exists. Ontology asks, “What is the furniture of the universe?”, while metaphysics asks “What is the furniture of the universe and what do we know about its upholstery?” Ontological questions would include: Does God exist? Do other people exist? Metaphysical questions beyond ontology would include: Is there a difference between the mind and the brain? Is the world really in color or is that just a function of how we perceive it? Are humans free to choose our actions or is everything predetermined?

The central question of metaphysics is “How do I know that the real world resembles the world I perceive.” Look at a chair. What do you see? A chair. (Deep, I know. This is philosophy.) So, if one were to ask you if there really was a chair in front of you, you would certainly say, “Of course, I see that chair.” The question is, “Where is your vision of the chair?” It isn’t out there in the world. It is in your mind. The central question of metaphysics is “What justifies your move from the vision in your mind to a reality outside of your mind?” How do you know the world as you perceive it is the real world?

Immanuel Kant called the pictures in your mind the phenomena and the things in the real world outside of your mind the noumena. To use this new terminology, the central question of metaphysics is “How do we know that the noumena resembles the phenomena?”

You perceive things in your dreams, when you imagine, or when you have hallucinations. In these cases, there are phenomena – you do have images in your mind – but in these cases there is no reality to them. These images in the mind do not connect to anything outside of the mind. So, how do you know that the images in your mind do connect to something outside of your mind when you are perceiving normally?

You have experiences. That much you know. And if you have experiences, then you must exist. This is the point of René Descartes’ famous dictum “I think, therefore I am.” Descartes was trying to figure out if there was anything at all he could know with absolute certainty, anything he could not possibly doubt. The one thing he realized was absolutely certain was the metaphysical claim that “I exist.” How do you know this? Try to doubt it. Who is doubting this? I am. So, you must exist. To doubt is to think. To think is to do. And you cannot have doing without a doer.

But what kind of thing are you? Not the full you. All Descartes has given you is that you know you are because you act, you think. But thinking only requires a mind. So, all you know is that you exist as a thing that thinks, a disembodied floating thinking thing.

What about your body? Can we get there? Kant says we can’t (or “Can’t says we Kant,” one of the two). He argues that this is where the metaphysical questioning has to end. Try to go further and you run into contradictions.

But other philosophers disagree. (Yeah, surprising, I know.) Other philosophers have argued that we do know we have a body separate from the mind. Not only is it separate, it is a completely different kind of thing. **Metaphysical dualism** is the view that the world is made up of two kinds of completely different sorts of basic substance: mind or soul and body. Picture in your mind a burrito. Got it? Is it real? Yes and no. The idea is a real idea, but it is not a physical burrito. The idea is mind stuff where a physical burrito would be body stuff.

Metaphysical dualism is the common sense ontology. There are two kinds of things and humans are lucky to be comprised of both mind and body. The big problem with this common sense view is “the problem of interaction.” If mind and body are different kinds of things, they should not be able to affect one another. To move a chair, you have to push it. Physical action requires a physical force. You cannot move the chair by thinking at it. Yet, that seems to be what happens when you decide to raise your hand. The desire in your mind causes a physical occurrence. How does that happen? How does a mind, something without size, shape, or mass move something like your arm that has size, shape, and mass? In the other direction, what happens when you stub your toe? It hurts. There was a body to body interaction when your toe hit the chair leg, but how does a body to body interaction give rise to a mental state, pain? How could a purely material interaction cause a mind event? If you want to be a dualist – and lots of people do – then you need a good answer to this question.

But there aren’t any universally accepted good answers. So, many philosophers give up the common sense ontology of dualism. **Metaphysical monism** is the view that there is only one sort of substance.

Metaphysical monism comes in two varieties. **Materialism** is the view that the only sort of substance in reality is body, matter, physical stuff. If you think that all that exists are atoms, then you are a materialist. The difficult question for materialists is understanding consciousness, the nature of mind. It is demonstrable that there is a correlation between brain states and mind states. When you stub your toe, there is a portion of the brain that lights up. That section only lights up when your toe is in pain. The excited state of the brain, with certain neurons firing and certain neurochemicals released is the brain state. The experienced pain, the ouchie, is the mind state. These are correlated. There is no doubt that they always appear at the same time. But they certainly seem like different sorts of things. Materialists have to contend that either the brain state is the same exact thing as the mind state or that the mind state is somehow emerges from the brain state. Many philosophers hold this view and are working on this project.

The other sort of metaphysical monism is **idealism**, the view that there is no matter only mind. Some idealists argue that there is only one mind – the mind of God – and everything is some aspect of it. Others argue that there are many minds all having their own experiences and what the philosopher needs to do is to understand the nature of these experiences and what makes them up. Since Kant called these internal experiences “phenomena,” the philosophical movement that takes the central project of metaphysics as trying to make sense of the nature of these phenomena is called **phenomenology**.

This part of metaphysics we’ve been discussing, ontology, is figuring out the building blocks of reality. But another part tries to understand the nature of the stuff we all acknowledge exists. Many metaphysicians live for categories. They want to be able to differentiate the stuff that exists into distinct classes. That means coming up with criteria that distinguish one group of things from another. Some of these groups are going to be **natural kinds**, that is, groups of things in nature that belong together. Species, for example, are natural kind terms. A person and a box turtle belong to different natural groups. **Artificial kinds** are coherent groups of created things. To say that there is a difference between one kind of thing and another is to draw a **distinction**. Drawing distinctions is a major move in philosophy because it allows you to explain why different things should be treated differently.

Drawing distinctions requires setting out conditions. Conditions come in two important types. **Necessary conditions** are those properties that something must have to be a member of the group. Having a pulse is a necessary condition for being a living human. No pulse, not a living human. A pulse is necessary, that is, it is needed.

Sufficient conditions are the properties that by themselves are enough to grant you membership in the group. Inheriting ten million dollars is sufficient to make someone a millionaire. By itself, that’ll do it. It is sufficient, that is, enough, to become a millionaire even though it is not necessary – you could win the lottery or build a company that you sell for over a million dollars.

Sufficient conditions are by themselves enough to put you in the group, although they are not the only way. Necessary conditions are needed to get in the group, everything in the group must have them, but they are not by themselves enough to be included in the group. It is a needed part, but not all you need.

When you have a set of conditions that are necessary and sufficient, we call that a **definition**. Definitions completely describe all and only the properties that makes something a member of the group. Notice that this is different from a dictionary definition. A dictionary definition is a description of how people ordinarily use a word in normal conversation. A philosophical definition is something more rigorous. Dictionary definitions are the result of lexicographers studying how the language is spoken and documenting that. Philosophical definitions are the result of philosophers trying to come up with clear, rigorous accounts that draw absolute lines, even if most people use the word differently (or, as philosophers call it, “wrong”).

In philosophy, a proposed definition is called a **theory**. We test theories against the world. If someone has a theory, it could go wrong in two ways. Their conditions might be **too narrow**, that is, there might be things that belong in the group that do not satisfy their conditions. Consider the classical definition of humans as “featherless bipeds,” that is, to be human is to have two feet and no feathers. If someone loses a leg in an accident, that person is still human, but does not satisfy the conditions.

“Featherless biped” is therefore too narrow of a theory to be a legitimate definition of the group “human.”

Alternatively, a theory can be too broad, that is, there are things that satisfy the conditions, but do not belong in the group. If I tried to define the notion of a chair as a thing people sit on, this would be too broad. We sit on things that are not chairs. We sit on the floor. The floor is not a chair. I would need additional necessary conditions to narrow down the group of things to have a successful definition.

In this part of metaphysics, the goal is to come up with a theory of some concept that is not too broad and is not too narrow. When you have that, you have a definition. We will look at attempts by philosophers to define the concept of humor. What is it for

something to be an act of humor? What are the essential characteristics? Can there be a definition? Some argue yes, some argue no. Let's see the grounds on which these cases are made.

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2.2: Why You're Not Worthy- The Superiority Theory of Humor

There are few theorists of humor today who hold the view that whenever we laugh at someone or something, it is because we feel superior to the person or situation who is the target of the joke or humorous narrative. But people are stupid and of course we laugh at their stupidity; in doing so we elevate ourselves, if even a little, in our laughter. The superiority theorist of humor would argue that we laugh precisely because we recognize the stupidity or even the incongruity of the situation and we have this sudden “vainglory” as Thomas Hobbes famously described it—that feeling of confirmation that we are in some sense better than the target or butt of the joke. Plato describes it as a sudden pleasure and pain in the soul, these mixed feelings are due to the malicious person’s pleasure at the misfortunes of his neighbor. The nature of the laughable, according to Plato’s Socrates in the *Philebus*, then, is about laughing at the misfortunes of others, rightly rejoicing about the evils that happen to the enemy and unjustly laughing at the bad things that happen to our friends. Of course, one could very well argue that not all laughter can be said to be caused by feelings of superiority. No right-minded philosopher of humor would reduce all the various kinds of humor and causes of laughing to a single mechanism, though I will make a feeble attempt at the end of the chapter.

First, we’ll go through some examples for illustration and analysis of when we do laugh out of feelings of superiority or sudden vainglory. Then we’ll address some current objections to the theory and how these objections are misguided. Finally, we’ll end with being totally convinced that the **Superiority Theory of Humor** is the superior theory and why it is the favorite whipping boy of all other theories.

Let’s begin with our examples. Think about when Sacha Baron Cohen, disguised as a bluegrass artist, performed a racist singalong at a right-wing militia rally, the “March of our rights 3” in Olympia, Washington in the summer of 2020. According to Rolling Stone Magazine, an analysis of one of the videos from the rally shows Baron 32 Cohen singing the offensive racist lyrics, apparently having the audience gleefully joining in:

Obama, what we gonna do? Inject him with the Wuhan flu. Hillary Clinton, what we gonna do? Lock her up like we used to do. Fauci don’t know his head from his ass. He must be smoking grass. I ain’t lying, it ain’t no jokes. Corona is a liberal hoax. Dr. Fauci, what we gonna do? Inject him with the Wuhan flu. WHO, what we gonna do? Chop’em up like the Saudis do. (Rolling Stone Magazine Online, June 28, 2020)

You can choose any theory you want to analyze the humor in the prank but it is only the superiority theory of humor that could adequately and sufficiently explain why the Three Percenters laughingly, gleefully sang along and why, in turn, those of us who are not of the militia ilk, also laughed. While we are laughing because of different targets we are nonetheless laughing for the same reason: that feeling of superiority we have over a target whose views we oppose. Baron Cohen’s song is rather simple yet brilliant. His choice of ill-formed grammar “gonna do”, “ain’t no jokes”, “chop’em up” speaks to the anti-intellectualist, anti-expert stance that seems to compliment the anti-government and Second Amendment gun loving worshippers. A clear disregard for grammatical rules signposts to the audience a clear disregard and a (perceived) disregard for political correctness and cosmopolitanism. The participants gleefully sang along because Obama is the first black president because they agree that Hillary Clinton should be locked up, because they disagree with Dr. Fauci’s mask-wearing and social distancing, because they do think that the numbers reporting illness and death in America is a liberal hoax to discredit President Trump so that the Democrats can replace him in the next election. All of these targets deserve to be laughed at because the Three Percenters believe they are politically and morally superior to these targets. And these white participants clinging to their values and perceived moral and political superiority as they laugh and sing to these lyrics that Baron Cohen has masterfully constructed to play both sides, is also very funny to liberals. The cosmopolitan liberals who tend to be over educated and over read, the deniers of liberal-bias in academia, laugh at the laughers and those that joined in the singalong. They laugh because the singalong confirms the belief that the racist, pro-white, pro-America, anti-expert, anti-intellectualist ideologies infecting America is precisely what is wrong with America, further degrading democracy and contributing to the social and racial inequalities that are entrenched in every aspect of 33 society. This white ideology necessarily is inferior to an all-inclusive ideology and it is the feeling of superiority to this white ideology, the feeling of superiority to the Three Percenters participating in the singalong, that cause the liberal to laugh. As you can see, laughter is aggression in the theory of superiority of humor. There is no room for harmless entertainment.

Even in cases where one might find apolitical, entertainment for entertainment’s sake, there will still be laughter caused out of feelings of superiority. Jerry Seinfeld is a comedian who is known for clean, apolitical and non-racist humor, but if we examine his targets, which are mostly stupidity and ignorance, (stupidity distinguished from ignorance in that stupidity is a qualitative state of

the mind and ignorance is the lack of knowing in the mind), we'll see that it is mostly educated audiences who find him funny and they laugh because of their intellectually superior position to the target of Seinfeld's jokes.

I got married late in life, I was forty-five. I had some issues. Was enjoying those issues quite a bit as I recall. When I was single, I had married friends and I would not visit their homes. I found their lives to be pathetic and depressing. Now that I am married, I have no single friends. I find their lives to be meaningless and trivial experiences. In both cases I believe I was correct. Whichever side of marriage you are on you don't get what the other people are doing. I can't hang out with single guys. You don't have a wife; we have nothing to talk about. You have a girlfriend? That's whiffle ball, my friend. You're playing paintball war while I'm in Afghanistan with real loaded weapons. Married guys play with full clips and live rounds. This is not a drill. Single guy is riding on a merry go round blowing on a pinwheel. I'm driving a truck full of nitro driving down a dirt road. (Netflix is a Joke, published May 5, 2020)

It is important to note here that not everyone will find Jerry Seinfeld's bit funny because they in fact, feel inferior. Undoubtedly there will be single men in the audience who are not single by choice but single by happenstance. Perhaps a man is single because he is down on his luck, unable to find a job or is working at a low wage and can barely afford rent. He may be unattractive or without style or under or over weight, and because of these temporary conditions, he may find that his life is filled with trivial and meaningless experiences. Here is a case where it is not funny because it is true. Another way to put it, is that the single man may identify with the target of the humor and cannot laugh, and therefore would not find the difference that Jerry Seinfeld is making between single and married men, funny. Seinfeld admits that he is correct in both ways, 34 the first he was correct when he was single thinking that being married was pathetic and depressing and he was correct when he was married thinking that being single was a life filled with meaningless and trivial experiences. In both cases, he admits, in a way, to being superior to the other side. The audience laughs at their feelings of superiority to Seinfeld's disclosure of contradiction, showing his ignorance of being a hypocrite.

In their book *Inside Jokes*, Hurley, Dennett and Adams suggest that the Superiority Theory is perhaps the second most popular, the second most used theory of humor because much humor is about debasing one's opponent. They are right that there are instances of humor, such as those enjoyed by infants and toddlers that do not fit within a superiority theory of humor. But this is not a reason to throw the bath water out with the baby. Let's keep the bath water. Their critique is that the Superiority Theory lacks a mechanism that explains why we laugh and they give four criteria that a Superiority Theory of Humor would need to meet in order to be a viable, legitimate and convincing theory. But the mechanism is quite simple for why we laugh, it is that momentary elevation in ourselves at the target of our laughter. But to Hurley, Dennett and Adams, this is not enough. They argue that there are still four points of explanation needed for why we laugh:

How we come to the realization that someone or something is lesser in some way. How we distinguish the humorous instances of these value comparisons from the others.

What purpose is served by our normal enjoyment of such discriminations.

What purpose is served by communicating this through laughter. (p.58)

This is a common method of criticism new theorists of humor employ to serve their own theory. Old theory x does not explain y, therefore, x is invalid. New theory explains y and therefore is better than x. Adopt new theory. The first two of these explanations we don't need for the Superiority Theory of Humor. The second two can easily be explained by the theory. However, while it is true that the Superiority Theory doesn't explain how we know our biases and it doesn't explain how we distinguish the value comparisons from other non-humorous instances. We don't actually need these for the Superiority Theory of humor to be convincing. I'll argue why this is so.

The first criterion requires that the person laughing can explain why they feel superior or why they think that the target of laughter is inferior. But humor is instantaneous, there is not a single reflective moment, a supervening meta-awareness 35 on why something is funny, when we laugh because something is funny. Can you even imagine what that would even look like? You must say why you are laughing and report all of your social and political and moral biases in order to legitimize your laughter, before you laugh. No. That's silly. The realization that we have a bias or that we are superior, comes *after* we laugh, if ever at all, when we reflect about why we laughed. And likely we are wrong or mistaken. Many people would deny that they are racist or sexist or hold some other unpalatable view while all the while holding those views. Let's take the following joke for example:

How do you get Martha Stewart to cry? You masturbate in front of her and then you wipe your dick on her curtains.

If the superiority theory is true, then men and women will laugh for different reasons, different targets of inferiority. The men may laugh at the inferiority of the man who masturbates publicly and not privately. The women may laugh at the proper decorum Martha Stewart displays with meticulous attention to home improvement, and the working woman who is an academic who has no time to emboss her own curtains (nor has any interest in doing so) may laugh disproportionately to the stay at home woman who enjoys curtain work. There are some who won't even think that the joke is funny, offended by the raunchiness of the joke, and some will laugh at those prudish folks, too. Joiners of the singalong at the Three Percenters rally weren't thinking or reflecting at all as they were laughing and singing, because if they had, they would have discovered that they, in fact, were the joke. The sentence, "It ain't no jokes, Corona is a liberal hoax" is so outrageous that anyone stating it, especially singing it on stage, couldn't be serious: it's funny because it's true that it is not true. The failure to realize that the Three Percenters themselves were part of the joke, evidenced by their joining in the singalong, reveals ignorance and perhaps stupidity on their part, which of course, elevates feelings of superiority in everyone else watching the event. In fact, one need not have a liberal bias to find Sacha Baron Cohen's prank funny, one just needs to tap into one's own intellectual superiority to laugh.

The second criterion is also bogus and related to the reason why we rejected the first criterion, because not everyone laughs at the same thing for the same reason as not everyone shares the same targets of inferiority. There are just as many reasons for why 36 we laugh as why we don't laugh, that 'many' being uncountable. If superiority theory were true, then according to Hurley, Dennett and Adam's second criterion, whenever we felt superior to a target, we'd laugh, but because our experience shows that we don't always laugh when feeling superior, the theory needs to explain the difference for when we do laugh and when we don't laugh. But we could not laugh out of dissidence, or that we are too tired or annoyed or that it just wasn't funny, such as a poorly formed joke. If we go back to Plato's description of the ridiculous, mere feelings of intellectual or moral superiority are not enough, our target needs to do something stupid, something contrary to his own good, for us to laugh. And it is only those who are weaker than us that we should laugh at. If our enemy is strong and holds power over us and does something stupid, Socrates says we should fear for our lives.

The last two criteria, that the theory doesn't articulate the purpose of enjoyment in such discriminations, nor the purpose of communicating this pleasure to others, were actually answered by Aristotle in his Poetics. Keep in mind that the name humor didn't arise in our understanding as it related to the comic until after the Enlightenment, and so whenever Aristotle is discussing comedy, we need to interpret the comic as part of humor, recognizing that today we treat them separately. Both purposes lie in the art or *technē*, of humor, that comedy is an art of imitation, where art imitates life. Because imitation is one of two causes that lie deep within our nature to create, and we first learn by imitation, the purpose of our enjoyment and the purpose of communicating this pleasure to others for humor are one and the same: a social corrective. While tragedy imitates men better than we are, comedy imitates men lesser than we are.

One of the reasons why the Superiority Theory is often mentioned in tomes about humor is because it happens to be the oldest articulated theory explaining why we laugh in western thought. Any theorist writing about humor must include a discussion of the Superiority Theory, hence the reason it is the most favored whipping boy of all other theorists of humor. We could argue that Plato was not articulating a theory of humor but simply the nature for why we laugh in the *Philebus*. We could argue that Aristotle was articulating a theory of art, for which comedy is a species, and what he says about comedy we cannot apply to humor. Nonetheless, even if we agreed that the first articulation of the Superiority Theory is to be found in Hobbes, it is still the first theory of humor in western thought. That sudden feeling of vainglory arising in us and causes 37 us to laugh may simply be indicative of an intellectual superiority to the target and which may or may not come with additional feelings of moral, political or social superiority. If we agree that all humor requires some cognitive recognition, then it is easy to say that all humor includes some kind of identification with intellectual superiority to find the humor funny.

The Superiority Theory has one thing going for it that the other theories don't. Not only can it explain why people can laugh at the same event but for different reasons (i.e., they are laughing at different targets they feel superior to) it can also explain why some people laugh and some people don't at the same event. If the person identifies with the target and feels lowly in response to the ridicule, they may cognitively understand why others find the humor funny but nonetheless they will not, taking offense at the joke or the humorous situation: "you shouldn't laugh at that." "Yes, but you saying that is pretty funny." "F@%# off."

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2.3: A Spoonful of Sugar Makes the Misery Go Down- The Relief Theory of Humor

Who loves the game Cards Against Humanity? I think I'm going to play a few rounds right now. I will be playing alone since Covid-19 is currently destroying my city.¹ I draw a black card and a white card from the box. Black set-up card: "What brought the orgy to a grinding halt?" I draw a few white cards from the deck and decide on this answer: "Intimacy problems." I draw another set of cards and do the same. "What left this stain on my couch?" Answer? "A low standard of living."

I laugh with delight. I then look at my old couch: it is broken, stained, old, and worn. I'd like to buy a new couch, but I don't have the kind of income that allows a person to buy a new couch every 20 years. I also reflect on the fact that I live alone due to my severe problems with intimacy. Normally, my empty bank account and my fear of Match.com brings tears of sadness, not tears from laughter. What could possibly be going on here?

In this chapter, we will explore just what could be going on here by taking a tour through the **Relief Theory of Humor**. First, I will present and explain the Relief Theory of Humor. Then, the main criticisms of the theory will be examined.

The Relief Theory Explained

The first thorough formulation of the Relief Theory of Humor was put forth by the philosopher and sociologist, Herbert Spencer, in his essay "The Physiology of Humor." Spencer was inspired to create a better explanation of humor after reading Alexander Bain's criticism of the Incongruity Theory of Humor in *Emotions and the Will*. For Spencer, though, his interests landed predominately on the physical act of laughing itself; he desired a more physiological explanation of laughter. While he did not leave out the content-based aspects of humor, his main focus was on the bodily aspects of it.² Spencer's idea, which he called the Relief Theory, held that laughter, when occurring in a humorous setting, was a release of the tension of emotion, or the release of energy created by that tension. Spencer linked the action of laughing and the behaviors accompanying laughter (for example, the contortion of the face, the movement of the body) with his "hydraulic" theory of nervous energy. The "hydraulic" theory is a physiological model that describes the human body like a system under pressure, using the analogy of fluid, in which the fluid builds up pressure in the body. The "fluid", in the case of laughter, is the built-up nervous energy releasing. Like water behind a dam, some of it needs to be released in order to save ourselves (or the dam). This is what the act of laughing can do; it can release a healthy amount of nervous energy to avoid disaster. This is also why The Relief Theory of Humor is also sometimes called the Release Theory. Spencer says that when some mental disturbance or agitation occurs, that energy "must discharge itself" in some way or another to bring your physiological system to harmonize once more (Spencer, 461).

What could be the cause of this agitation or disturbance? To illustrate what he means, Spencer gives the (humorous) example of a goat walking onto a theater stage during a love scene. Picture it: you are watching a play about a pair of tragic lovers, say, Heloise and Abelard. In this scene, the lovers, who have not seen each other for many years, have a chance meeting in Paris. We, the audience, have such strong feelings at the sight of their reunion.³ Perhaps we already know that this chance meeting will be their last meeting, so we feel sorrow for them, but joy for them since they have this one moment together. As these emotions overwhelm us, Spencer encourages us to imagine that at this same time of great passion on the stage, a young goat struts out unexpectedly. While on the stage, the goat trots up to Abelard and sniffs him, perhaps in the crotch or on his behind. Spencer points out that a large "mass of emotions" has been created in us, the audience, during this play, and that our "nervous system was in a state of tension" while we anticipated the fate of the poor lovers. But now, through this little butt-sniffing goat, a new "channel" of expression is open where the other is closed (the channel of crying, wailing, lamenting). This new channel must expel the nervous energy, but in this particular way: "half-convulsive actions we term laughter (Spencer, 461)."

The father of modern psychology, Sigmund Freud, went on to more fully develop the Relief Theory of humor. The starting point for any theory involving a Freudian explanation of a phenomenon must start with a discussion of his theory of the unconscious.⁴ First, we must familiarize ourselves with what the unconscious mind is. Freud defines the unconscious in his work, *New Introductory Lectures on Psychoanalysis*, as "any mental process the existence of which we are obliged to assume- because, for instance, we infer it in some way from its effects- but of which we are not directly aware (194)." There are many things that bombard our daily lives: too much information, fears, sex, insecurities, death: all the basic building blocks of modern society. The conscious mind either cannot hold or cannot bear all the information and stress, so through the act of repression, drains itself of the traumatic and difficult materials. Freud defines "the essence of repression" as "the function of rejecting and keeping something out of consciousness," as it is too much for the conscious mind to attend to and contend with (Freud, 158). This is a process that is

happening behind the scenes; the conscious mind is not aware when repression is taking place.⁵ Much like Spencer thought the body could fill with “nervous energy” and need to be drained, Freud argued that the content of everyday life filled up our mind with too much material and needed a dumping ground. Repression is the garbage truck and the unconscious mind is the landfill. Beep beep.

Why does this process need to occur? This links to Freud’s notion of the Pleasure Principle. The Pleasure Principle is not as sexy as it sounds. It can be thought of as the motivation for avoidance of pain or for the purposes of pain reduction. Freud writes, “[t]he Pleasure-Pain Principle is brought into action in response to the danger signal and plays a part in repression (Freud, 144).” Many jokes, being of a hostile, sexual, or related to highly-emotionally charged issues, act as a way to find pleasure in things we are not supposed to find joyful, such as a broken heart, death, sexual deviance, or violence. Freud gives examples of this in his writing, but in this chapter, I will provide my own example drawn from the Hollywood comedy canon. Here is an example of a moment that should lead to heart-break (and thus, our empathy) for the character Lloyd Christmas in the film *Dumb and Dumber*. Lloyd has driven across the country to win over the love of his life, Mary Swanson. When he finally has the opportunity near the end of the film to express his love to her, this exchange occurs:

Lloyd: I want to ask you a question, straight out, flat out, and I want you to give me the honest answer. What do you think the chances are of a guy like you and a girl like me ending up together?

Mary: Well Lloyd, that's difficult to say. We really don't...

Lloyd: Hit me with it! Just give it to me straight! I came a long way just to see you

Mary, just... The least you can do is level with me. What are my chances?

Mary: Not good.

Lloyd: [he gulps, his mouth twitching] You mean, not good like one out of a hundred?

Mary: I'd say more like one out of a million.

Lloyd: [long pause while he processes what he's heard] So you're telling me there's a chance. YEAH!

The whole film has been leading up to this grand romantic moment. Sure, the character of Lloyd (and his equally thick-headed friend, Harry) has shown us he lacks any common sense or wisdom, and the film gives no indication that Lloyd might win Mary over, but when Lloyd starts to profess his love, we go along with his hope for reciprocation and feel the suspense of her possibly saying yes to him.⁶ When Mary says there is basically no chance of her and Lloyd being together, the audience should expect the feeling of disappointment and pity for Lloyd. For all his faults, he has tried his best to win her over, and this is disheartening: when love is not reciprocated, we feel sadness.

But the tragedy will be turned into comedy, since Freud reasoned that we have a motivation to avoid pain, one way can avoid it is through discharging the negative pain through humor. When Lloyd’s response to Mary is one of hope and optimism (and riddled with a complete misunderstanding of basic probability), we are given a chance to release the painful feelings through laughter. We don’t have to pity Lloyd: instead we can laugh at his stupidity⁷ and, perhaps, be elated that he is still happy regardless of the bad news. While the Pleasure-Principle at once can repress painful materials that the conscious mind can’t handle, it can also play a part in creating laughter in the face of pain. Consider, also, how many times we have laughed when injuring ourselves.⁸

Popular Criticisms of the Relief Theory

The Relief Theory has many faults. In this section I will be focusing on three of the major ones: its failure to account for differences in tensions and releases, its seeming to fall back into the incongruity theory, and our updated science of psychology.

The Relief Theory does not give an adequate distinction between the comic release and other releases of built up tension. One might build up physiological tension during an intense, close-scoring Indiana vs Kentucky basketball game.⁹ When the buzzer sounds, the tension will be released via tears and screaming of pain or tears and screaming of joy. The score, much like the punchline, was uncertain and could be an unexpected twist, such as when a 3-pointer is made at the end of the game. But the response is not laughter. One might watch (with high emotion) a couple taking their wedding vows. We expect to hear both say, “I do.” But our hopes might suddenly be dashed when the groom says, “I’m sorry, I can’t,” and leaves the chapel. We gasp, and perhaps, we cry.

In both instances, the release of certain tension happens, and it is from some unexpected occurrence or event, much like a punchline. But we do not respond with laughter. The Relief Theory has a difficult time clearly demarcating what causes laughter and what causes something else, such as shock, sadness, cheer, etc. And when the Relief Theory explains what that demarcation is, it tends to sound as if it is in support of the Incongruity Theory of Humor. Freud does try to categorize comic and humorous phenomena and distinguish various responses to events, but in the end, Freud either does not make a case for all comedic materials being releases of repressed nervous energy or falls back on some sort of explanation via incongruity. Now isn't that unexpected?

The Relief Theory of Humor falls back on the very theory it was attempting to over-throw when it tries to show the difference in unexpected events and our responses to them, from demarcating the comic from the tragic (and others). Spencer spoke of laughter arising from "descending incongruity" in which something elevated is replaced by something trivial (such as a sincere romance replaced by a stray goat). This is the difference in a tragedy and a comedy, for a tragedy could be said to be an "ascending incongruity," much in line with Aristotle's idea of a noble person falling from their elevated rank. But the fact that the Relief Theory relies on this incongruity to distinguish the comic from other responses is a flaw in the theory itself. Though one might defend the theory by saying that this theory only shows how laughter comes forth and why it needs to be produced, but the theory does not intend to show how it is summoned from the content of the world. At best, it is an incomplete theory at this point.

This leads us into the final criticism we will cover in this chapter, as the final criticism has to do with the concern about how and why the laughter is produced: the hydraulic model and ultimately Freud's theory of the unconscious itself. There is no model of emotions and the body that is seriously used in the medical and psychological fields today that are in line with the hydraulic model. It has been replaced by updated and scientifically validated systems. Spencer and Freud's models of physiology and psychology have been replaced with medical explanations that are backed with empirical evidence. In writing on the Relief Theory of Humor, John Morell writes,

...we can note that today almost no scholar in philosophy or psychology explains laughter or humor as a process of releasing pent-up nervous energy. There is, of course, a connection between laughter and the expenditure of energy. Hearty laughter involves many muscle groups and several areas of the nervous system. Laughing hard gives our lungs a workout, too, as we take in far more oxygen than usual. But few contemporary scholars defend the claims of Spencer and Freud that the energy expended in laughter is the energy of feeling emotions, the energy of repressing emotions, or the energy of thinking, which have built up and require venting.

Freud's theory of the functions of the conscious and unconscious mind is now famously unscientific and lacking in credible evidence. In the same way that today we do not read Marxism as a scientific theory, psychoanalysis as Freud saw it is no longer considered to be backed by truly testable and, therefore, falsifiable evidence.¹⁰ The Relief Theory fails because it's foundation on the hydraulic model has failed.

Conclusion

The Relief Theory of Humor has appeal in a theory that can address why taboo subjects tend to make the best subjects for humor and why we laugh sometimes when we are nervous or feel pain: there is energy to discharge. But the flaws in the theory are serious and hard to overcome due to the poor models it is based on.

Perhaps the Relief Theory of Humor can re-invent itself as a theory by attaching itself to an evolutionary explanation of humor.¹¹ For the Relief Theory to be a viable model of humor, it must first update the base of its claims with one based by modern day scientific research, and this is something evolutionary explanations of humor may be able to offer. But, if it continues to cling to the hydraulic model of the body or Freud's theory of the unconscious, it is doomed to failure. Much like my finances and love life.

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2.4: Got IT?- Introducing Incongruity Theory

So far, you've read about some other attempts to explain the cognitive/mental processes behind the phenomenon of humor. Most texts will package the three main theories of humor comprehension in a sort of triumvirate that includes the superiority, release, and incongruity theories as the main contenders. These three theories have been, in modern research and historically, the main candidates attempting to explain what is necessary for us to find something funny. In this chapter we'll cover the incongruity theory.

Incongruity Theory Explained

In the most general sense, the **Incongruity Theory** states that in order for something to be found funny or humorous, one needs to perceive a sort of incongruity. What's an incongruity? Well that's the big question and one that occupies and vexes many researchers (this author included). In the simplest and most general way of stating the idea, an incongruity is something that is unexpected, absurd, out of the ordinary, strange, or bizarre. Ok, that wasn't simple. I would have gone on, but you can check out www.thesaurus.com if you want to find other synonyms for incongruity.

The Incongruity Theory (IT, hereafter) is the dominant theory used in modern research to explain humorous things. It's not without its issues or critics. However, it is safe to say that IT is accepted by most researchers as the most accurate and likely true approach to explaining humor. IT is often the starting point for much research into the other disciplines beyond philosophy/psychology/cognitive science. For example, current neuroscience indicates that the areas that support higher-level conceptual thought, are involved in humor processing. That we see areas of the brain involved in higher level cognition and conceptual thought involved in humor behavior supports IT's claim that humor is a conceptually based activity that involve incongruity processing.

Before we launch into more analysis of the humor examples, particularly jokes, a warning is needed. Analysis of any joke or bit of humor generally, if not nearly always, makes the jokes not funny. A quote from E.B. White is clear on this, in a humorous, IT 46 supporting way. "Explaining a joke is like dissecting a frog. You understand it better but the frog dies in the process." The incongruity is to be found in comparing the feeling one has at the end of the joke analysis to death. I hope that's not the case below, but you'll likely find the jokes less funny for the analysis.

It would do well to do a little more unpacking of terms like incongruity, absurdity, unexpected, and bizarre. But basically, the kernel of the idea is that you experience something that does not fit easily within the particular context. To use an example from the movie Friday, there's a scene where we enter into a local bodega (a corner store) in a largely African American community and we are met with a sign that proudly proclaims that the store is "Black Owned." As the camera pans down, an Asian man rises from below the counter. This juxtaposition of the Asian man coming from under the counter, which supports the idea that he's the owner, with the sign that proclaims the establishment is black owned is perfect example of ideas or objects that are incongruous with one another. One would have expected the store to be run by a black man—that's what the sign says—but the scene intimates that it's not. This example also helps us to see the "unexpected" nature of the incongruous. The presentation of the sign primes us to think the store is owned, not by an Asian man, but a black person of color. Good comedy works to create expectations and then frustrate or play with them in such ways as to get the audience to find something funny or humorous. If you want to find humor, look for ways that things don't seem to fit together. Perhaps you fancy some jumbo shrimp?

Bizarre or absurd as types of incongruity are a bit more difficult to describe as they are, well, bizarre, but they are definitely further refinements, or subsets of the incongruous. Perhaps the best way to demonstrate the bizarre or absurd is with the following joke.

How many surrealists does it take to change a lightbulb?

Purple fish!

This little joke is pretty good at being absurd. Who besides someone in a Monty Python sketch would use a fish to change a lightbulb?! The joke uses the idea of a surrealist (artists who tried to pair together ideas that were often extremely different) in order to get the listener to be prepared for absurdities. A good example of surrealist absurdity can be found in Salvador Dali's painting, "The Persistence of Memory" in which we see 47 clock faces melting like a rubber pancake. Clocks don't melt like that. At least not the clocks I know. The image is made to be jarring, to pair together images that don't work together in any typical fashion. Returning to the above joke, the answer of purple fish is not relevant at all to the question. Did the punchline fail to add in

the number of purple fish needed? Even if one is familiar with the “lightbulb” form of joke, this particular one works because the answer supplied is a non-answer. Just as the surrealists might have liked. Hopefully you followed that. Explaining the absurd is a bit...absurd. It's difficult to try to make sense of nonsense.

Let's continue using this approach of relying on jokes to clarify the IT; it's a timehonored tradition in humor research. A fair warning is needed, as jokes are but a small slice of the humor pie. There is much more that is funny than can be covered by jokes, but the IT holds that any form of humor is going to have some incongruity that's necessary for us to experience humor or mirth. But as a tool for explicating humor theories, jokes are compact, easily digestible, and thus make for useful examples.

One of simplest forms of humor in young children can be found when they actively do something contrary to expectation or norm. For instance, my children loved to take nursery rhymes that they knew well and then not say the expected words at some point. My son used to change the last word of the first line of the famous “Twinkle, Twinkle, Little Star” rhyme. “Twinkle, twinkle little star how I wonder what you... rooster!” The substituted word would always change, but it was typically a noun of some sort and often an animal. He would giggle with sheer delight. For some, this sort of play with language shows that real incongruity-based humor has taken root.

Certainly children had laughed and giggled prior to language (laughter is evidenced before language after all and is thus a deeper part of our evolutionary history), but this active playing with language and expectations is a mature form of humor, even if it's seen as immature to the more advanced humor connoisseurs we all find ourselves to be. There are a number of elements here that speak in support of IT. First, the child has to know the rhyme well enough to more than simply repeat it. They have to understand what the rhyme overall means. They also have to know the meanings of other words so as to substitute the right sort of words. If my son had substituted an adjective or conjunction it would have been odd. The noun work in a way other wordtypes likely wouldn't. Children also have to realize that they are substituting and are 48 essentially playing around with the structure of the rhyme. This play then leads to a feeling of delight in the form of humor or mirth. The child will continue playing with that rhyme substituting words here and there both with others and by themselves. They never seem to tire of it. Even though the audience grows tired easily. If you've spent any time around children when they find something funny, they will quickly wear it out. But not for them.

How is this word play an incongruity? As I noted above, the child is playing around with the expectation of the well-known lyric and substituting their own words. Clearly, they understand about expectation and then are using the unexpected presence of the new word to create humor. This is textbook IT. But this also shows how deeply cognitive the act is. So far so good for IT.

Let's look at a couple of jokes with varying levels of complexity.

Moving up the ladder of humorous complexity, let's take a look at a couple of knock-knock jokes.

Knock-knock?

Who's there?

Hoo.

Hoo who (hoo)?

What are you, an owl?

Perhaps this isn't a great joke, but it is a sort typically seen in children. Where's the incongruity? If you can figure it out, please skip the rest of this paragraph, but there may be more incongruities than you initially think. The incongruity, the playing with expectations as such, is that the second line of the joke is the listener and this query made assumes the next answer will be a name not a sound. The joke teller does not do as expected and supplies a clever homonym to 'who' in the sound hoo. The listener, in line four, not really knowing if the term spoken earlier is 'who' or 'hoo', but likely assumes the former, then follows along with the standard knock-knock joke format. The joke teller then delightfully admonishes the implied silliness of the listener to have been making owl noises rather than responding appropriately to the joke form. (I know, the White's frog has now totally expired) If you count them up, there are a number of incongruities in play here. But whatever incongruity you focus on, the joke works on frustrating or playing around with expectations. Whether you find the sly response of the joker in setting up the listener to make a silly owl noise, or the taking advantage of the form of the knock-knock joke to force the listener into the silliness, incongruity is at work here through and through.

I would like to end with one of my favorite jokes from esteemed humor researcher Victor Raskin.

What is the difference between a parrot?

None.

The right side is exactly the same as the left, especially the left.

If you can make sense of this joke, you're way better than I clever reader. The whole joke is layered with absurdities. It's more a Zen koan or riddle than a joke. The initial question is nonsensical. You don't ask about the difference between a single thing; comparison require two things. The question alone is utterly nonsensical. The response of "none" both increases and diminishes your perplexity. The answer is in a real sense spot on. It recognizes that you can't find a difference between a thing and itself. Comparison, as noted, requires two things. But then the coda of the joke, in attempting to explain the answer muddies the conceptual space. The listener has to figure out how one side can be "exactly" like the other, and "especially" so at that. This joke would have found itself quite at home in some of Lewis Carroll's works. The whole joke is just a chain absurdities, one seemingly more absurd than the next. There's nothing more to get than the fact that it's absurd. Personally, I find it delightful and love the example and find it more and more humorous each time I experience it. But within me finding it funnier with each exposure, opens an avenue of critique for IT. But before we move on to critiques, let's explore some other facts about humor that support the notion that humor is a cognitive act that requires some form of perceived incongruity.

Think about what's required for you to "get" a joke. You need to know something about it. If I told you a joke where Etruscans were the main actors, you might not find it funny.

How many Etruscans does it take to change a light bulb?

None, they were dead before electricity was invented.

High comedy this isn't; it's barely qualifies as a joke. But if you know nothing of the Etruscans you couldn't possibly make sense of it. In order to get whatever may be going on in this poorly formed joke, you need to know that Etruscans were an ancient civilization in Italy that was conquered by the Romans early on in the Roman Empire's history. Hence they were an ancient group and had never experienced a light bulb.

More on Incongruity

In order for any two people to share a joke, it's important that they share a certain conceptual or knowledge base. If you're not an English speaker knock-knock jokes will go over your head. You need to know English to get the jokes. The light bulb joke about the surrealists works because the audience knows a little something about what a surrealist is and then uses that knowledge to make sense of the absurd response. You can perform this sort of analysis on most any of the jokes or humor you've experienced. It's also one of the reasons that humor doesn't usually cross cultures. The Friday bit about black owned-might not work as effectively in say mainland China, or Tasmania. Humor typically requires more of a shared cultural and cognitive background than other forms of entertainment.

Why does this support the IT? Because this obvious fact about humor shows how much, cognitively speaking, is required of us when we experience and enjoy humor. It's not like a piece of music. Bach can please someone with no knowledge of classical music or instruments. A beautiful piece of sculpture or statuary can do the same. This isn't to say that those forms of art are not complex, it's just to highlight that humor is of a different sort of experience; one that requires knowledge, expectation, and belief to typically be experienced as such. IT needs cognition, belief, and expectation to work. Without it, IT isn't much. Even our vernacular "Get it?" question, indicates that one has to understand the ideas involved to find humor.

Hopefully this tour has shown how and why IT is the leading candidate for explaining humor perception. It fits with current scientific approaches, it conforms and relates to our everyday experience of humor, and it's also explanatory. This does not mean that IT is not without its problems. It surely has some and we will briefly cover those next.

What's Ailing Incongruity?

"It's philosophy Mike, everybody's wrong." Those words came to me from one of my dissertation advisors. Philosophers are a notoriously surly bunch—heck, even our patron saint, Socrates, did his best to show everyone was wrong—and that landed him a heaping glassful of hemlock juice, which isn't too helpful if living is your goal. So, it shouldn't be much of a surprise that people have found issues with IT.

The main issue with IT is that not all incongruities we experience lead to humor. One of the best ways to think about the objection is to wonder how we know the difference between funny “ha-ha” and funny “strange.” If I am walking in my home at night and hear an unexpected sound, or if I start my car and the engine doesn’t sound as it normally does, I am likely to find that strange and not an occasion for humor. But if you recall the definition of IT, it simply states that incongruities will be found funny. Hence, one would predict that any experienced incongruity would produce humor. My off-sounding engine does not produce a laugh. Hence we’ve found a counter-example to the theory.

There have been a number of attempts to solve this issue with IT and they largely make use of play to circumvent the problem. Roughly the general idea is this. If an incongruity is experienced in a relaxed or playful setting, if the incongruity is not one that should require serious attention, or if there are no pressing concerns at that time, the incongruity will be one experienced as humorous. In general, all other things being equal, if there’s no reason to worry about the incongruity, then laugh. This explains why humor is found more in times of leisure and play than anywhere else. Another way to think about this playful or non-serious approach to incongruity is to think about the difference in a dead-pan performance versus a clown. Comedians who adopt a more dead-pan style of presentation can leave their audiences confused. Audiences aren’t sure if they’re supposed to laugh (here an indicator of humor) or not. The comedian isn’t giving enough clues to indicate that this is supposed to be funny. More traditional comedians with their exaggerated gesticulations or bombastic/exaggerated vocal inflections help the audience understand that what is going on is supposed to be funny and then allows us to experience the incongruity as funny. Here the audience is told that the incongruities on offer are objects of humor, not concern. IT is refined by adding the “play” qualification so as to help us know which incongruities are funny “ha-ha” rather than funny “strange.”

Another issue with IT comes from my continued delight at the parrot joke. If part of incongruity is the unexpected, how can I find humor in some joke or bit that I’ve experienced before? If you laugh at the same parts of movies that you’ve seen before, then that incongruity can’t be unexpected. You know it’s coming. At first the incongruity was unexpected, but now it can’t be. How do we explain the continued humor? Have a shot at working that one out.

One of the more serious objections is that incongruity has nothing to do with anything in humor. In fact, when you get a joke, so the objection goes, there is no incongruity at all. The joke makes sense, if in a different or atypical way. In order to get the joke you resolve the incongruity – it’s perfectly sensible. If the joke were truly nonsensical, the response wouldn’t be humor, it would be confusion. When people write jokes, or develop humor, they find ways to play with the concepts, but not so much as make the incongruities completely nonsensical. If there was no way to link the “incongruity” back to the set-up of the joke/humor, there would be no way to get it. There would be nothing to get: just an absurd idea hanging out. The concepts involved must be related in some way or else the audience will be confused. Confusion rarely leads to humor. This objection, if true, radically undermines IT.

The IT is still the best working theory out there that has general acceptance. There are problems with it, as there are with all theories. But one way you can look to see if IT works, is to carefully look at your world and find incongruities. Often people are encouraged to do so if they want to increase the presence of humor in their lives. This is a practical application of the theory. I encourage you to try it, if only to raise the amount of humor in your life.

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2.5: My, How Clever

Phlebitis. Not the word you expected this essay to begin with, is it? What is phlebitis? It's a medical condition in which a vein, usually in the leg, becomes inflamed. It is very painful and what I am suffering from right now. Bet you are glad you're not me. Nah, I'm just playing. I don't have phlebitis, but you probably do. It affects about 90% of students because of the hard-surfaced school chairs you are forced to sit in for hours at a time, but you won't feel the pain until later in life. Just kidding. You won't get phlebitis.

What a weird paragraph, huh? Was it funny? Funny-strange maybe, but not funny-ha-ha. And that is exactly what is so philosophically interesting about it. You did not expect to find a paragraph about phlebitis in a philosophy book – that's counter to all your expectations. It's incongruous. At one point you thought I had a painfully debilitating condition that you did not have. That made you sudden realize you were superior to me. But then I told you I was just playing, only to then lie and tell you that you would get it. But then I let you off the hook. What a relief. The weird, but not funny first paragraph of this essay contains every single mechanism that the other humor theories claim is the active ingredient in humor. Every single one. Yet, it was not funny.

My claim is not that there are not incongruity-based jokes – there are LOTS of them. My claim is not that there are not humorous put-downs and insults that make you feel superior to the person getting picked on. Some comedians made careers on such jokes. My claim is not that humor never involves play. Of course, it does. My claim is not that there is no build up and release in well-constructed jokes. Lots of them work in exactly that way. But not all of them. There are plenty of examples of all of the cited mechanisms that do generate humor, but also lots more that don't. But if not every incongruity, not every instance of superiority, not every bit of playfulness, not every instance of relief causes humor, which ones do?

THAT is what I contend I have the answer to. It is the ones that are clever. My humor theory is called the cleverness account and it contends that humor is any and all intentional, conspicuous acts of playful cleverness. There are four components that, 54 when you put them together, give you acts of humor. Let's work through them one-by-one.

To understand the importance of the intentional requirement, we need to begin by distinguishing humorousness from funniness. These seem like synonyms, but they aren't. Something is funny if it gets a certain comically amused reaction from someone. Good humor is usually funny, but not all funny things are humorous. The Russian leader Mikhail Gorbachev had a discolored patch on his bald head. Suppose the patch had been accidentally, but exactly in the shape of a human hand with an extended middle finger. That would have been epically funny. But it would not have been humor because it just happened. If it had been a tattoo – that would be humor. We may find a sunset over a lake to be beautiful, but it is not a work of art. Art requires intentional creation and humor is a form of art. Hence, it is not sufficient that something is found funny, it needs to be intentionally constructed to be funny to be humor.

The second condition is conspicuousness. Conspicuous means obvious. By this, I don't mean that jokes don't have an element of surprise or tension. Telegraphing a punch line (having your audience see the funny part of where you are going before you get there) can destroy a joke. The sense of conspicuous used here is that it is an act that is seen or heard – or, in the case of some disgusting jokes, smelled. Jokes are artistic acts and art requires an artist and an audience. A joke that is not recognized as a joke is said not to “land,” that is, it goes over the audience's head. The point of a joke or any other humorous act is to land, is to be recognized as the humor act it is. Jokes are told to be gotten.

The third element is that the act of humor is playful. By this, I mean something different from the play theorists. I don't mean jolly or lighthearted. I am using the term “play” in the same sense that we do when we tell a child not to play with her food. To play with your food is to use something for a purpose other than its intended purpose. Eating a banana is not playing with it, but holding it up to your ear and pretending it is a telephone is. (I guess for kids these days, you need to use a pop tart and not a banana for that gag.) Humor requires manipulating something – an object, words, a situation – in a way that makes them do something they don't usually.

The final element is the most important. Humor is a display of cleverness. No cleverness, no humor. What do we mean by the word “clever”? Clearly, it has something 55 to do with thinking well or being smart or coming up with something new or seeing things a different way or solving a problem. Being clever is a positive attribute that has to do with using your brain. But there are lots of different ways to do that, so we need our account of cleverness to be broad enough to contain them all. If you limit what it is to be

clever, then a clever person will show you how clever they are by being clever in a way not accounted for by your account of “clever,” no matter how clever the limitation is.

The inclusive notion we will use to account for our notion of cleverness rigorously is that it demonstrates a cognitive virtue, in other words, it takes a way of thinking that is helpful and desirable in real world situations – being well-read, being able to see things from multiple perspectives, being a good problem-solver – and creates an artistic context where it is not used for some helpful goal, but simply to be put on display in the work of art that is the joke.

Put all four of those together and you get humor. Humor is an art form, meaning that it is intentionally created and meant to be seen. But it is the art form where we take something and playfully manipulate it in a fashion that displays cleverness, some cognitive virtue that would be useful in real life, but just for laughs in the work of art that is the joke, the pun, the visual gag, or whatever other humorous medium employed.

Does it work? Better than the others ones, I claim. Consider two examples, two jokes.

Two old men are sitting on a park bench feeding the birds when one turns to the other and says, “I know the name of every bird in this area.” The other one says, “You know all of them?” “Yup,” the first guy says, “all of them.” “How about that one?” the second man says pointing to a bird in a tree. “The black one with red and yellow on the wing?” “That’s the one. What is it called?” With great confidence, the first man replied, “Ralph.”

This is a joke that is based on an incongruity. When the first man says he knows the name of every bird, we naturally think he means the scientific name of the species. What he really means is the name which he uses to refer to them individually.

Let’s change the joke a bit.

Two old men are sitting on a park bench feeding the birds when one turns to the other and says, “I know the name of every bird in this area.” The other one says, “You know all of them?” “Yup,” the first guy says, “all of them.” “How about that one?” the second man says pointing to a bird in a tree. “The black one with red and yellow on the wing?” “That’s the one. What is it called?” With great confidence, the first man replied, “That’s a washing machine.”

Notice what happened in the change. We took out the name Ralph and substituted a noun phrase that is not a name. This makes the first guy’s response even more incongruous, even more unexpected, even more contrary to what we think is coming. We increased the incongruity, but we didn’t increase the funniness. In fact, you are probably thinking, “that’s not even a joke anymore.” Right. We removed the clever part for something more incongruous. We increased what they say is the basis for jokes and removed what I say is the basis for jokes. Look what happened. It stopped being a joke. That seems to indicate that it is the cleverness and not the incongruity that is responsible for the humor even in a joke where the cleverness turns on an incongruity. Let’s do it again with a different mechanism.

My friend’s cooking is so bad, the flies pitched in to have the screen on the kitchen window fixed.

That is a joke that is based on superiority. It is an insult joke based on a clever put down.

Now, let’s take out the cleverness, but ramp up the superiority.

My friend’s cooking is so bad that no one in the house will eat it, especially after three people got food poisoning from it, vomited all night, and one of them even had to go to the hospital to have his stomach pumped.

The second version clearly explains how bad the friend’s cooking is in a way that is worse than the first. That means that he is even more inferior and thus you are even more superior. But, again, more superiority does not translate into more humor. Quite the opposite. Take out the cleverness and increase the superiority and what you are left with isn’t even a joke.

So, what does that tell us? It is certainly true that superiority, relief, and incongruity are mechanisms on which jokes are constructed, but it is the clever use of superiority, relief, and incongruity that make them acts of humor, not the superiority, relief, and incongruity in themselves. Hence, when we are looking for the essential property that makes an act into an act of humor, look for the cleverness. That is where it resides.

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CHAPTER OVERVIEW

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3.1: Epistemology

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3.1: Epistemology

One of the early great names in philosophy was Socrates. He would spend his days walking through classical Athens, especially the marketplace, the agora, asking anyone who would engage with him one simple question, “Do you know anything?” If someone asked you, what would you answer? Remember this is in the marketplace, crowded with people who know you. The obvious thing to say is “Yes, of course Socrates, I know something.” Socrates would then ask you what you knew and start asking seemingly simple questions. The ultimate end (and this is what makes reading Plato’s dialogues that chronicle these conversations fun) is that the person would always end up contradicting themselves and making seem as if they didn’t know anything. Watching people expose themselves as morons in front of everyone was the ancient Greek equivalent of reality television.

So, do you know anything? How do you know you know it? What does it mean to know something? If we don’t know anything, how would it be possible to know this? These are what we in philosophy call epistemological questions. **Epistemology** is the study of knowledge.

If you have learned anything about philosophy so far, you have anticipated the obvious question. “So, what do you mean by knowledge?” For this, we standardly use the definition given by Plato. Knowledge is true, justified belief. **Knowledge** therefore has three parts.

First of all, to know something, you have to believe it. If you don’t believe that cows can swim better than wildebeests, then you surely cannot be said to know it. To believe a proposition is to assert its truth. If you don’t think something is true, then there is no way you can be held to know it.

But knowledge is surely more than belief. We can believe false things. You may have once believed that Santa Claus exists. You were wrong. You believed Santa was real, but you did not know it because it is false. It can’t be known. So, we have a second element necessary for knowledge – truth. To know something, you have to believe it and it has to be true.

But that is not enough. You could believe it for the wrong reason and it might accidentally be true. You might ask your friend where his car is. He says honestly, “It is 59 in the parking lot right off campus.” You ask him why he believes this. He tells you honestly that he had parked in the lot on campus, but during his class they came...aliens from another galaxy. The mother ship hovered over his car and they used their tractor beam to pull it up and reverse engineer it. When they were done, they reassembled it – didn’t fix the dent in the bumper – and went to put it back, but the lot had filled up. So, they put it down in the lot right off campus.”

You look and it turns out that his car is in the other lot right off campus. But, it wasn’t the aliens. It was his roommate who needed to run an errand and knew where he left his keys. The roommate is lazy and the lot off campus is closer to their room, so that’s why he parked it there.

So, your friend believed his car was in a different lot than the one he had parked it in. And he was right. His belief was true. But did he know where his car was? No. He didn’t have knowledge even though he had a true belief because it was accidentally true, not true for the right reason. We need a third thing to have knowledge – belief, truth, and justification. You have believe the true thing for the right kind of reason.

The obvious question is “what is the right kind of reason?” This is fundamental question of epistemology. Traditionally, the answer was given in terms of reducibility to undeniable first beliefs. We call this position **foundationalism**. The different kinds of foundationalist views ascribe different sorts of basic, atomic truths.

Rationalism is the view that the starting place for all justified true belief is the human mind itself. Reason justifies the fundamental truths. There are some beliefs that are innate, inborn to the human mind. Just like when you buy a computer and the operating system and certain programs are already loaded on it, it is the same with the human mind. It comes with certain pre-existing beliefs.

Rationalists will often point to mathematical propositions. Consider one of Euclid’s axioms, any two points can be connected with a line. Is this true? Of course. Have you tried this with all possible points? No, of course not. Then how do you know it? It’s self-evident. You can just see that it’s true. Anyone who denies it is lying or just trying to be obnoxious. It is obvious to the human mind. It is one of the undeniably true starting points from which all of plane geometry is built.

In this way, rationalists need to say that our fundamental beliefs are innate. If you have a human mind, it comes with certain beliefs contained in it that we just believe. 60 From those, using logic, we can derive all other truths. All other beliefs, rationalists hold, should flow like geometry.

Other philosophers have held that mathematical-type truths are the exception. There are some necessary truths like those of logic or mathematics, but most truths are of a different sort. They are contingencies. They might be true. They might be false. There is only one way to know which it is. You check. Look and see. Empiricism is the epistemological view that the foundational truths from which we build up all knowledge are sense perceptions. Seeing is believing.

This is a very scientific approach to knowledge. We build up all our justified true beliefs from what we can observe. Observations can be verified by others, so we can trust them. Then we have the building blocks to construct our world by combining them in new and interesting ways.

Of course, it runs into some complications. Do you believe that there are atoms? Ever seen one? Well, no. But they are part of a theory that explains a whole lot of things that we do see. And I've seen a picture of one in a textbook. Actually, you've seen the output of electron microscopes that have been graphically represented, printed and interpreted and told that is what you were looking at.

Have you ever seen Santa Claus? No. Santa doesn't exist. But you thought he did and you had evidence. You saw someone fitting his description at the mall. Presents appeared where they hadn't been the night before. You left milk and cookies for him and they were gone when the presents appeared. If you think about it, the evidence for Santa is pretty close to the same as the evidence for atoms and yet you believe in one and not the other. Surely, there is good reason to believe that our knowledge of atoms is superior to our knowledge of Santa Claus. This is where philosophy of science emerges from epistemology.

But a third strain of foundationalist epistemological thought moves in a completely different direction. It seeks the basic foundational truths in deeper human experiences. Where empiricism takes all human observations to give us the building blocks, **transcendentalism** takes certain experiences to be special in doing so. For religious thinkers it would be revelations, that is, direct experience with the Divine. For American transcendentalists it would be the sense of awe and connectedness to the world one gets from confronting nature. Unlike the universalism of empiricism where everyone should be able to observe the same thing if looking at the same thing at the same time, these transcendental truths are particular to the experience of the observer.

Such particularity may make us doubt the truth of the report. How do we know the person isn't just making it up or misremembering? Such doubt is the hallmark of one of the most powerful objections to the entire foundationalist approach to knowledge. **Skepticism** is the view that none of these foundationalist approaches are sufficient to give us knowledge. The skeptic argues that we can know nothing, that knowledge is impossible. We want knowledge. We fool ourselves into believing we have knowledge, but this is all a big lie. We don't know anything.

Is it possible that you are not the person you think you are, living the life you think you are living. Is it possible that you are just a brain, floating in a vat of medium, connected by wires to a supercomputer programmed by an evil genius to feed into the brain electrical signals that it wrongly interprets as observations, as emotions, as the life you think you have. It is possible. Not likely, perhaps, but at least possible. (Yes, this philosophical question is where the premise for the movie *The Matrix* originated.) If it is possible, could we know which is actually true? If not, can we know whether anything that would serve as a foundational basic building block of our beliefs was true? Skeptics say no.

Then why do we think we have knowledge? Some skeptics say that it is because of human power structures. You believe what you are told...or else. As a child, if you don't believe what your parents tell you, you get punished. If you do, you get rewarded. You go to school. Believe what your teachers tell you and report it back well on tests, you get good grades. Don't and you fail. In society, believe what the authorities tell you and you are allowed to live well. Don't and you will be the target of social alienation and arrest. **Social constructivism** is the view that believe what we believe, not because there is real knowledge in the world, but because there is political power that determines what we have to think and has the power to enforce these beliefs which are confused with knowledge.

A final approach sees both foundationalism and skepticism as too radical. The fact is that we have beliefs about the world and some of them are reinforced by the world in allowing us to do the things we want to do and some of them are destroyed by the world when the world does not allow us to do what we want to do. As humans, we have goals. We try to reach those goals employing our beliefs. If a belief is helpful, keep it. If not, throw it away. **Pragmatism** is the view that knowledge reduces to the usefulness of a belief. We should not speak of true and false, but rather what William James called a proposition's "cash value." What is the belief worth? Is it helpful? Sentences are not magical connections to an underlying world, they are just tools in the human toolbox. Keep the tools you need, the tools that work. If your screwdriver breaks its handle, you throw it away and get a new one. Same

with your intellectual tools. When they break, get rid of them and get a new one. Believe them when they work, but know that they are just tools.

So, epistemology leads us to ask all sorts of questions about the nature of knowledge. What do we know? Can we know anything? By what means do we come to know what we know? Let's look at a question in epistemology raised by jokes. Jokes are sets of sentences. Jokes make sense. You get jokes. You also get math problems. In both cases, there is confusion followed by an "aha" moment. The "aha" moment in the case of the difficult math problem occurs when you realize the answer or the path to the answer. It is the gateway to mathematical knowledge. Does this mean that jokes give us knowledge? You have to know things to get the joke, but does getting the joke give us knowledge?

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3.2: Joking as Truth-Telling

They say there's a grain of truth in every joke. Presumably, then, jokes are used to communicate that truth in some way, and we can come to know something when we get the joke. The "aha!" moment when the punchline lands reveals some truth to us. In this essay, I'll argue that joking often functions as a kind of truth telling, but not the kind of truth telling that I'm doing in this sentence or when I swear to tell the truth, the whole truth, and nothing but the truth. It's a subtler kind of truth-telling that can sometimes serve to reinforce beliefs that a community holds in common and sometimes be used to bring them out into the open to be challenged.

Think about the last time you told someone the truth. It's such an everyday occurrence that it almost seems strange to reflect on it. Your mom asks what you had for breakfast, and you tell her you ate a bagel. Your friend asks if you're feeling alright, and you say your allergies are acting up. Someone asks for directions to the library, and you point them in the right direction and tell them to look for the building with all the books. When we speak in a way that aims to inform others, we generally say what we take to be the truth, or, as I'll put it, we generally only make claims that we endorse. We give them our stamp of approval and stand behind them. We do a lot of truth-telling, even if we also lie, mislead, and conceal from time to time. In fact, we couldn't pull off those deceptions if people didn't trust one another to tell something close to the truth most of the time.

Most of our truth telling comes in the form of assertions. We use declarative sentences – "The cat is on the mat," "The dog is out of food," "The hungry dog is going to eat the cat on the mat" – to convey something that we believe to be true in a way that will, if everything goes right, lead to the hearer believing it to be true. Assertions have a deep connection to truth. The philosopher Paul Grice has argued that we intuitively follow a rule of truthfulness in our conversations. We should only say things we believe to be true and for which we have some evidence, and others expect that of us.

I expect your contributions to be genuine and not spurious. If I need sugar as an ingredient in the cake you are assisting me to make, I do not expect you to hand me salt; if I need a spoon, I do not expect a trick spoon made of rubber (Grice, 47).

Others have argued for the even stronger Knowledge Norm of Assertion (KNA). According to KNA, assertions play the role that they do in our language—they are what they are—in part because they follow a rule that says you should only assert that *p* if and only if you know that *p*, and, of course, you can only take yourself to know *p* if you take *p* to be true. Asserting something is the most common and straightforward way to tell a truth, i.e., to convey to someone something that you think you know.

Jokes are not assertions. There are often assertions used in the telling of a joke. "Three fonts walk into a bar..." but the joking frame, the context of the telling, usually indicates that this assertion is not to be taken at face value. KNA is relaxed; we no longer expect what you say in the form of an assertion to necessarily be something you take to be true. Instead, we're engaged in a kind of playful exchange in which we'll entertain clear falsehoods as if they're true in order to engage with the cleverness of the punchline: The bartender says, "We don't serve your type in here."

There's clearly no Knowledge Norm of Joking. KNJ would require that you tell a joke if and only if the premise is true, but a lot of jokes have false premises, and we're just fine with that. Some jokes, of course, do rely on a true premise, and they're funny precisely because they're true. Take this classic from Jerry Seinfeld:

According to most studies, people's number one fear is public speaking. Number two is death. Death is number two. Does that sound right? This means to the average person, if you go to a funeral, you're better off in the casket than doing the eulogy.

The contradiction between what most studies reveal and what we really feel about the funeral is where the humor lies. If we don't accept the premise, if it doesn't have the ring of truth, the joke isn't very funny. But there are many jokes that don't require the truth of the premise. Seinfeld's schtick works for him, but not all jokers play the same game. Santa, the Easter Bunny, and the Tooth Fairy walk into a bar. The bartender looks up and says, "What is this, some kind of joke?" Unless you believe that these figments of our cultural imagination really exist, this joke's premise is clearly false.

Though it is not as straightforward a form of truth-telling as your average assertion, it would be too quick to conclude that joking is not a form of truth-telling at all. There's nothing improper or incorrect about telling a joke that's patently false. A patently false joke, though, need not fail to tell a truth or to convey some knowledge, for 65 often-times we use literal falsehoods to speak truths. The last time you told someone they looked like a million bucks, odds are even that you meant they looked great or like they'd

been run over by a semi, and, of course, we've all faced the moment of truth in which we had to tell someone we cared about that their wardrobe, accessory, or hair choices are stuck in the last decade. When we do, we usually don't tell it to them straight. Instead, we reach for a bit of sarcasm to soften the blow. Yet our intent is clearly to convey the truth to them in the hopes they'll run upstairs and change before we have to be seen with them in public. You can convey something true by saying something that is literally false.

Even false jokes, then, might convey some grain of truth. Let's think about how that might work first in the case of a false assertion and then in the case of a false joke. When your friend tells you, "Whoa, you look like a million bucks," how do you know whether they're saying something that's literally true to convey that truth to you or saying something that's literally false to soften the blow of telling you that you look like something the cat dragged in? Their tone and the shock on their face may be a hint, but the inference you make from the words you hear to the truth they convey turns on a presupposition that you both share. A friend only says this to you when they know that you know already that you don't look so hot. Whether it's because you're lying in a hospital bed or because you had too good a time last night, you and your friend both know and both know that the other knows that you look awful. Your friends' quip that you look like a million bucks is just another way of endorsing that presupposition, i.e., of committing themselves to its truth.

Now suppose you did have a bit too much fun last night, but you think you've pulled yourself together pretty respectably. When your friend makes the quip, you're unsure how to take it. You think you look alright; not great, but not terrible. You surmise that your friend must think that you know you don't look so hot, even if you think you're pulling it off. Your friend endorses what they take to be a shared presupposition, but it is in fact one that you don't accept. Now you face a choice. Do you trust your friend's judgment and accept, on the basis of their testimony, that you don't look as good as you thought or do you push back? We've arrived here at an important point in our investigation. That you face this choice reveals that your friend's quip has conveyed to you their endorsement of this presupposition. You know what they meant even if it *wasn't* what they said and even if you don't endorse the presupposition yourself. Their endorsement now gives you some evidence for its truth, and you must weigh that evidence with all the other evidence you have and decide whether to endorse it or not. But your friend has hedged their bet. They didn't just come out and tell you how awful you look. As such, they've left themselves room to withdraw their endorsement of the presupposition. If you say, "Rough night, but I think I did alright pulling myself together. You don't think I look good?" they've left themselves room to say, "No, no! I really meant it; you look great!"

Let's call your friend's endorsement of the presupposition in this scenario a kinda-sorta endorsement (that's the technical philosophical term). It's a hedge; it leaves conversational wiggle room for withdrawal or softening of the endorsement. Jokes, I will argue, engage in just the same kinda-sorta endorsement. When you tell a joke, you kinda-sorta endorse the presupposition(s) one needs to accept in order to get the joke, and you do this with the expectation that the presupposition(s) on which the joke turns is one that your audience also kinda-sorta endorses. If they do, then they're in on the joke.

Within the frame of a joke, the endorsement of the presupposition is flexible in a way that a speaker's endorsement of an assertion is not. This flexibility manifests as ease of withdrawal. When you make a claim in the form of an assertion, you've given others license to hold you to account for that claim. They can challenge you to give reasons for it. If they trust you, they can repeat it and send others who challenge it your way. And, importantly, if what you've said is dangerous, harmful, insulting, or troubling in some other respect, you're on the hook for it. You've given it your endorsement it, after all. You're committed to it and ought to be held to account for it. But the kinda-sorta endorsement of a sarcastic remark or a joke leaves you an out. Its flexibility is so pronounced that, in some cases, it's withdrawn as soon as it's made. We simply act as if we are endorsing the presupposition for the fun of the joke, but everyone involved knows that the endorsement is dropped as soon as the joke has been told. The joker and the audience endorsed the presupposition that Santa could walk into a bar for the sake of the joke, but neither believes this could really happen outside of joking frame. We all know that Santa's more likely to be found in a bakery than a bar.

Kinda-sorta endorsement of the presupposition of a joke, however, doesn't always disintegrate once the telling is done. It can linger, leaving the audience wondering whether the teller meant to endorse the presupposition beyond the context of the joke. The intrigue, power, and frustration of jokes is found in this ambiguity. The telling of a joke that plays on racial, ethnic, or gender stereotypes, for example, kinda-sorta endorses those stereotypes. In some contexts, when it is clear that the kinda-sorta endorsement is withdrawn as soon as the telling is complete, these jokes are relatively harmless. The trouble arises from the fact that the joke teller is rarely in full control of the context. Jokes, like all speech acts, are public and open to interpretation and appraisal by anyone who hears them. If the context of the telling is not one in which the endorsement of the presupposition is clearly cancelled for all

hearers, even if the joke teller intends to cancel it, hearers may take offense. They understand, perhaps rightfully, that the endorsement of the problematic presupposition could be understood by others as an endorsement of its literal truth beyond the joking context.

In some contexts, the endorsed presupposition is (intentionally or not) reinforced by the telling of the joke. Those who are in on the joke see that others also accept the presupposition. They may take that as evidence in its favor, or, more likely, they may be influenced to implicitly accept the presupposition as a result of its repetition. Even if they know it's something that shouldn't be said openly, the joke communicates to them that others accept the stereotype on which it turns and licenses their acceptance of it in turn. The hearers who are in on the joke, the cultural in-group, feel vindicated in holding the stereotype because they know that others hold it, too. The repetition of this process is one mechanism by which stereotypes are held in place within a social group.

Sometimes, however, when told in a skillful way and in just the right context, jokes that play on stereotypes can also serve as a challenge to those very stereotypes. The kinda-sorta endorsement of the presupposition serves to remind the audience that these stereotypes are deeply engrained by our culture. They get the joke precisely because they grasp these stereotypes and easily call them to mind. The context of the telling—who's telling the joke, who's in the audience, what else has been said, and even the broader social context—makes it clear that the joker takes the stereotype to be false. They endorse it only within the joking frame with the broader aim of taking us to task for tacitly accepting it. Jokes told in this setting are a powerful way to coax people in positions of privilege to examine and, perhaps, reject problematic stereotypes that they hold. In the hands of a skillful comedian, these jokes can prompt critical reflection on the drive home from the club or as one lies awake in bed remembering the show.

So, do jokes tell truths? Do we gain some knowledge when we get the joke? I answer that, in an important if non-literal way, they do and we do. Jokes requires us to entertain the presupposition as if it were true, to kinda-sorta endorse it. Unless the context is one that explicitly cancels that endorsement for both the joke teller and the audience, the endorsement extends beyond the joking frame. The joke serves, in some contexts, to reinforce the communally held beliefs it presupposes and, in others, to challenge those very beliefs. Jokes can build community around common knowledge of shared beliefs, and they can also force us to reckon with the shared beliefs around which we've built our communities. The truths they tell, then, are second-order. The joker doesn't literally tell us the presupposition of the joke, she reveals it to us and makes us communally aware that we share it. Unlike the mathematical knowledge we gain when we reach the "aha!" moment of a mathematical puzzle, the "aha!" moment of the joke gives us knowledge about ourselves, our communities, and our shared beliefs.

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3.3: I Laugh Because It's Absurd

“A man orders a whole pizza pie for himself and is asked whether he would like it cut into eight or four slices. He responds, ‘Four, I’m on a diet’.”¹

While not hilarious – so funny that it induces chortling punctuated with outrageous vomiting – this little gem is amusing. We recognize that something has gone wrong. On a first reading it might not compute, something doesn’t quite make sense. Then, aha!, we understand the hapless dieter has misapplied general rules of thumb, mental shortcuts, or heuristics, that we were also initially committed to and that would usually be good enough to rely upon – fewer slices equals fewer calories; diets require fewer calories, etc. – but in this particular case they fail, and the feeling of mirth is our reward for making this discovery. We don’t say all of that after a punchline, of course, but that’s what is happening according to the Humor as Error-Detection Theory: our sense of humor can sense our errors.

This chapter will focus on the overlap and benefits of a humorous and philosophical attitude toward the world and our place in it. The historian of philosophy Will Durant tells us that genuine philosophy begins when one learns to doubt; we can say something similar with humor--trust me.

If philosophy (or humor) is to serve a positive purpose it is to dissipate certainty The paraphrase above (with my parenthetical addition) is from Bertrand Russell’s *Philosophy for Laymen*. This is his central point: “[Philosophy] must not teach mere skepticism, for, while the dogmatist is harmful, the skeptic is useless. Dogmatism and skepticism are both, in a sense, absolute philosophies; one is certain of knowing, the other of not knowing” (Russell, 45). It is interesting that both philosophy and humor confront a similar target: absolutism. To clarify, Russell is worried about an extreme form of skepticism that presumes knowledge is impossible. Socrates, I think, dealt with that brand of unmitigated ignorance some time ago: are you certain you know nothing? The extreme skeptical claim is self-refuting, paradoxical, and at least a little bit droll.²

This is different from what we might call “rational skepticism” which is the sort of epistemic caution extolled in philosophy, but also in humor as we can see from humorists like Mark Twain, “What gets us into trouble is not what we don’t know; it’s what we know for sure that just ain’t so” (quoted in Hurley 109), and comedians like Chris Rock, “to make people laugh about things that weren’t so funny [or obvious] to begin with. That’s why I’m here” (Oprah Interview 2002), Hannah Gadsby, “My goal is to shake your confidence” (Douglas 2020), and Louis CK,³ “I believe in taking people to upsetting territory, and making them glad they went there” (Sundance 2010), and we like it. So, we benefit from a humorous attitude in a similar way that we can benefit from a philosophical attitude: we are open to doubt, confusion, ambiguity, vagueness, complexity. That is, we are open to reality as it is, not just as we might wish it were.

The moment you sense that feeling of unshakable confidence in your beliefs, you should be worried, because, as Russell and Twain aver, that is where danger lurks. I give little to no thought to the truth of the equation $1+1=2$.⁴ In fact my certainty in that precludes me from even considering alternative answers. That is fine. But if that same feeling of certainty infects other areas of epistemic concern, like religion, politics, ethics, or baseball statistics, then I have a problem. I will be disinclined to even listen to differing perspectives. This way leads to dogmatism, and that quickly manifests in burning witches, or insisting that COVID-19 will go away if only we would just stop testing for it so much.⁵

Happily, a humorous attitude toward the world helps facilitate a philosophical attitude, and vice-versa. Consider any number of seminal⁶ thought experiments involving evil demons, brains in vats, what it would be like to be bats, teletransporters, and famous violinists surreptitiously attached to our backs. These mental exercises cultivate unconventional ways of thinking about issues we might otherwise complacently ignore. They are also kind of funny; at least, if we are open-minded, they elicit a “hey, that’s funny”, as in “strange”, “unexpected”, “novel”, or an enlightening variant of “WTF!”, but about matters we thought we already knew quite well. Humor, like philosophy, takes nothing for granted; this is good, because I’m pretty confident that we’re wrong a lot more than we’re right.

Fallacies are funny

Very often when we discover a mistake in reasoning, a fallacy, we laugh.⁷ This is interesting. Contradiction, inconsistency, irrationality, absurdity, nonsense, ridiculousness, repugnance, fallacy, etc., are some terms philosophers have used to refer to instances of poor reasoning. They are also concepts useful in analyzing why laughter often accompanies fault-finding endeavors.

For instance, I was recently in a political economic discussion, and my interlocutor responded to my point with something like “you don’t benefit poor people by raising the minimum wage. That’s just Econ 101.” My witty repartee: “And that is a proof surrogate!” Puzzled, he asked what the hell that was. My even wittier riposte: “Don’t you know? That’s Logic...101.”⁸ A surrogate mother is not the actual mother, she is standing in for her. Likewise, a surrogate proof is not an actual proof, it is something else that is easy (castigating someone for not taking the proper college course), taking the place of the burden of thinking logically. Of course, part of my wittiness was itself a proof surrogate. We laughed.

Returning to our President’s peculiar view on the causal connections between testing and the spread of a disease, Trump and his spokespeople have claimed he was being sarcastic with those comments, presumably each time he made them. But if you watch the videos of each of those statements, and you know the meaning of “sarcasm”, you might come to a different conclusion--indeed, you might laugh at their risible rationalizations. If he was being serious, which he has, inexplicably, also said, well, there’s not much hope. To expound by way of analogy, here are some other areas where we could “improve” through willful, aggressive ignorance: if we desire fewer babies, get rid of pregnancy tests; if we don’t want mercury in our waters, stop looking for it there; want to lose weight? throw away all your scales, and don’t go to the doctor-- ever. That last one should markedly improve your overall health. Notice these absurd analogies reveal the silliness (I was going to use “stupendous stupidity” but that would be uncouth, and if I am anything, it’s couth)⁹ of the primary analogue.

It is not coincidental that in logic we have an argument form called *reductio ad absurdum*, or for the initiated, and snobby, just *reductio*. It is, as you might guess, to reduce another’s argument or claim to absurdity, which in logic implies revealing contradictions or at least significant inferential errors in their argument. Daniel Dennett refers to it as “the crowbar of rational inquiry,” and, in reference to the common employment of analogies found with similar logical thrusts and parries, he tells us it works “by parody of reasoning” (Dennett 29). This is clever; “parity” of reasoning amounts to the legal heuristic, similar cases ought to be decided similarly. But you see, “parody” of reasoning connotes satirical imitation or lampooning. It’s quite good, really.

The *reductio* offers a handy rejoinder to rampant conspiracy theories, e.g., where you might ask an Alex Jones-type, what would have to also be the case if what you’re saying about the Sandy Hook mass shooting conspiracy were true? An answer: Oh, the gun-control folks wanted to gin up anger at NRA folks, so they went the route of masschild-murder to manipulate our pathos to spark an attack against the Second Amendment. This seems implausible.¹⁰ If contradictions, absurdities, question-begging nonsense, etc., were to follow, that should show that the initial conspiratorial claims are dubious, if not outright laughable.¹¹

Recognizing absurdity can be funny. Søren Kierkegaard goes so far as to claim that all humor is a species of contradiction. Literally “to speak against” oneself, contradictions do seem ripe for humor: “Errors are comical, and are all to be explained by the contradiction involved, however complicated the combinations” (Kierkegaard 1986, 86). He probably meant something like “incongruity”, or unexpected dissonance, rather than the strict logical sense of “contradiction”, but there are many examples of funny formal contradictions.¹² Here’s one from quantum physics: Schrödinger’s cat walks into a bar and doesn’t. It would be irrational, in terms of classical logic¹³ to assent to both of those claims at once. But, lots of people a lot of the time, fall into the abyss of absurdity. It might even be an inescapable aspect of being human, to paraphrase Walt Whitman, so what if we contradict ourselves, “we are large, we contain multitudes,” and this might mean that humor is in fact inevitable.

The first part of this chapter’s title borrows from Kierkegaard (1989, 446), and before him the Christian apologist Tertullian, who once quipped about the central contradictory tenets of Christianity, in putatively ironic fashion, “I believe because it is absurd.” The idea that we laugh at absurdity, contradictions, or an incongruity between the way we thought the world was and how we now recognize it actually is, goes back at least to Arthur Schopenhauer (an odd source for humor analysis. Seriously, go find an image of him right now--that face and humor are extremely incongruous).

For Schopenhauer, humorous laughter results from the “victory of knowledge of perception over thought [which] affords us pleasure...It must therefore be diverting to us to see this strict, untiring, troublesome governess, the reason, for once convicted of insufficiency” (Schopenhauer, 279-80). This seems correct, but needs the following: being amused can be a diversion, but not necessarily, or not only that, and “for once” seems too weak – mistakes are everywhere, and with the properly cultivated attitude, not only can we be primed to find them, we can actually enjoy the discoveries enough to want to repeat the experience of error-detection, so that we are open¹⁴ to the possibility of errors and become better equipped to recognize them in the future. Thus, humor can be intrinsically valuable and diverting, like sex, which is pleasurable in and of itself, but also instrumentally valuable as a fecund form of playful intellectual training, a means to give birth to a sound web of beliefs – like sex, with an intellectual.

Schopenhauer even provides an example of our joyful experience of detecting an error in a joke: “The soldiers in the guard-room who allowed a prisoner who was brought in to join their game of cards, then quarreled with him for cheating, and turned him out ... [he then dissects the joke for us] They let themselves be led by the general conception, ‘Bad companions are turned out,’ and forget that he is also a prisoner, i.e., one who they ought to hold fast” (Schopenhauer, 277-8). Once again, no projectile puking here, but notice it can be interpreted as a fallacy of Accident in which a general rule is followed and accidental features in this specific case are ignored, as the rule of thumb, heuristic, or “general conception” is strictly adhered to even in the face of mitigating factors that should have been seen as exceptions the rule. That sought-out feeling of mirth is so rewarding that we enjoy finding mistakes, even in our own cognitive house, as we will soon see. So, on the Error-Detection model, mirth provides “the motivation for a mind to search out subtle oversights made in reasoning that could infect the integrity of our knowledge” (Hurley, 67), making humor an excellent and enjoyable mistake-minding tool.

Why is error-detection so enjoyable?

I mentioned sex, a couple of times. That is with good reason – we need it, desperately. For whatever (comically strange) reason, that is just how our species propagates. It is nearly impossible to explain this procedure to your children without eliciting an uncomfortable smile or a guffaw of outrage tinged with befuddlement – “No way! That can-not be how it’s done!” The child’s mixed-emotional exclamation is not misplaced; it really does seem like they have unearthed a colossal blunder in the design of the world, and their laughter in part expresses this.

The world is complex, and is exponentially more so when we add human beings interacting with one another in situations that require immediate action with little information. We need something that can do the dirty work of “debugging for the underlying mechanisms of control within an environment” (Hurley, xi) to catch the flawed rules of thumb that would otherwise direct our behavior and belief. One of the clearest presentations of this view is from Hurley:

Our brains are engaged full time in real-time (risky) heuristic search, generating presumptions about what will be experienced next in every domain. This time pressured, unsupervised generation process has necessarily lenient standards and introduces content—not all of which can be properly checked for truth—into our mental spaces. If left unexamined, the inevitable errors in these vestibules of consciousness would ultimately continue on to contaminate our world knowledge store. So there has to be a policy of double-checking these candidate beliefs and surmisings, and the discovery and resolution of these at breakneck speed is maintained by a powerful reward system—the feeling of humor; mirth—that must support this activity in competition with all the other things you could be thinking about (Hurley, 12-13).

The hard-won reward for sex is orgasm, as the easy-won reward for error-detection is mirth, and we are addicted to both – hopefully not at the same time. The feelings of mirth arise as payoff for the mental energy required to juxtapose potentially conflicting ideas in our minds, allowing for us to discover an error in our committed beliefs:

“Humor happens when an assumption is epistemically committed to in a mental space and then discovered to have been a mistake” (Hurley, 121). Most of the examples used by Hurley regarding committed erroneous beliefs are rather innocuous. However, the cognitive groundwork they provide allows us to extend their notion of error detection to humor as a mechanism capable of revealing pernicious stereotypical beliefs, e.g., to which one is committed. The feelings of mirth arise as a reward for finding an error in heuristic thinking that if left unchecked, would lead to the sort of negative stereotyping and oppression. That is some of the serious work that humor can do.¹⁵

Heuristics are fast, frugal, and rarely conscious, so, in order for an error to be exposed, the humor must bring to consciousness the relevant frames or schemas in our mental spaces, and in a way that is pleasant enough to desire repeating it, again, and again. Not only are the heuristics that so often regulate our lives below the level of consciousness, most of our beliefs are not consciously engaged at any given moment, even when they might be causally efficacious with respect to our action. This is a problem if those underlying causal beliefs are flawed and might lead to unethical acts against others. This is one reason why philosophical thought experiments can be so effective, for example, as they are designed to tweak our intuitions in the “laboratories of our minds”, our mental spaces, as opposed to empirical testing in physical labs which is not always possible.

It is a useful exercise to consider how many beliefs you might actually have, and then, ask how many of them are likely true? Where did they come from, when did you acquire them and why? Listening to some comedians, it seems this Cartesian method is central to their performance: you think you know all your beliefs are true? Well, what’s the deal with death and public speaking?

“According to most studies, people’s number one fear is public speaking. Number two is death. Death is number two. Does that sound right? This means to the average person, if you go to a funeral, you’re better off in the casket than doing the eulogy” (Seinfeld, 2014).¹⁶ Well obviously, that is false, even absurd. But then why do we keep claiming we fear public speaking so damn much? In other words, we are wrong about what we think our own fears are! How stupid can we be? A better question: can we ameliorate our ignorance through recognizing an error within our own belief system? If we cannot, then perhaps “stupid” is apt. If we can, and even enjoy the process, well then, we might just be brilliant!

What’s so funny about me being so wrong?

It is true, our gleeful error-detection in other people’s words and deeds is more common because it is much easier than realizing I have reasoned repugnantly. But sometimes we can laugh at our own ludicrous behavior and thought, and be better for it. After all, a philosophical attitude critical only of others comes perilously close to dogmatism, so we should be able to direct our humor-analyzing mechanism to our own web of beliefs as well. I will close with an anecdote to make this pedagogical point, even though it will be at my own expense--such is the sacrifice heroic educators must sometimes make.

There was a time when I suffered from “road rage” and I would often yell and pound my fist in the air at my freeway opponents. Once I was cut off by a pickup truck and immediately flew into rage-mode, screaming and punching the ceiling of my own car--I acquired the stereotype “all pickup drivers are jackasses” from my father; striking my own car is my embellishment. I briefly caught sight of myself in the rear-view mirror, and in that second I burst out in uncontrollable laughter, at myself. This happened so quickly that the laughter began before the ceiling-pounding had ended, making for a borderline psychotic, clearly ridiculous scene.

This was not a typical eureka moment that happened in a flash; I had built up to it through months, if not years, of my wife’s gentle, and at times more aggressive, humorous mocking of my deep character flaw. My self-directed laughter was not ridiculing or a superiority-type of mockery espoused by Hobbes (see Sophia Stone’s chapter on superiority theory in section 1), as I would then have had to be feeling superior to myself in that very moment--this would be incoherent. The sense of humor in that instance put me in the right distance metaphorically from the source of the humor (myself, perceived in an unappealing light), and enabled me to understand, and perhaps feel what I must have looked like from someone else’s perspective, and that something had gone horribly wrong with me. It worked! This, finally, made me conscious of the stereotype-driven character flaw, and changed my behavior; the 78 laughter at myself drove me to ride a bicycle to work. I am happy to report, I no longer feel any rage at those pickup truck driving jackasses.

Foot Notes

¹ From Philosophy Bites Podcast with David Edmunds and Nigel Warburton, ep. 151, 4/9/11. https://hwcdn.libsyn.com/p/4/4/0/440...38&cs_id=3170938&expiration=1593445900&hwt=96d8eb7bc5bf362449d62701916c818e. Carroll believes that “Humor is about humility, realizing what cognitively frail beings we are.” He’s probably right.

² If I know I know nothing, then there is something I know; that I know nothing. But that is not knowing nothing, it’s knowing something--that I know nothing. Therefore, it’s false that I know nothing. And I know it’s false. So, I know something. Something doesn’t smell right--but nothing smells worse.

³ Yes, morally troubled waters here. I will only say this: Louis CK is like Immanuel Kant, if only in this respect: both displayed egregiously sexist ideology and/or behavior, and both are difficult to completely remove from the canons of their respective fields. For more on this, see Becca Rothfeld’s “Can Sexual Predators Be Good Scholars?” *The Chronicle of Higher Education* (2017). Kant probably also masturbated into plants in front of people.

⁴ Russell did though. For a fun time, find his logical grounding for that equation halfway through volume 2 of the massive tome *Principia Mathematica*. Now that text is hilarious. You will vomit.

⁵ Our President: “When you do testing to that extent, you’re going to find more people, you’re going to find more cases, so I said to my people, ‘Slow the testing down, please.’” Jane C. Timm, “Fact check: Trump blames testing

for spike in COVID-19 cases. Experts fault reopening of states.” <https://www.nbcnews.com/politics/don...perts-n1228671>. June 10, 2020, accessed 6/29/20.

⁶ You thought there’d be a joke here, didn’t you?

⁷ Special thanks to Brian Wagner and Michelle Rotert for all our conversations on this topic. For a look at funny fallacies in Sesame Street, see (Ross 2015).

⁸ That's not exactly how it went down. Instead I actually made some esoteric case against propagandistic language that indoctrinates us into thinking we help the poor by helping the rich; and we hurt the poor by trying to help the poor. Not as funny or clever. But the witty reply only really occurred to me just now. If brevity is the soul of wit, immediacy-of-rebuttal is its body

⁹ This is an example of paralipsis, more of a rhetorical device of manipulation than a fallacy, but usually resorted to when one is bereft of logical argument; and it can also be quite funny. It is purposely calling attention to something in the very act of asserting that you are not going to talk about it. It could be classed as a variant of performative contradiction, like that found in Augustine and later more formally in Descartes: if I can doubt my own existence, that entails I must exist. Put in terms relevant here, "I don't exist!", once uttered, annihilates itself--"Who said that?"

¹⁰ That is called understatement--exaggeration going the other direction. See Timothy Johnson's "Here is exactly what Alex Jones has said about the Sandy Hook massacre" <https://www.mediamatters.org/alex-jo...-hook-massacre> (2017) for Jones' long-standing perspectives on Sandy Hook. Accessed 7/1/2020.

¹¹ There are plenty more supremely stupid claims that would have to be true if the "Sandy Hook Conspiracies" (there is more than 1) were true. Why this will not always convince a conspiracy theorist that they have made an error is curious, but would require a separate chapter to properly address. Suffice it to say here, their perseverance in maintaining a self-sealing web of beliefs is extraordinary, against which even laughter might prove ineffective.

¹² Our meme-obsessed culture sometimes can provide decent educational examples: [https://www.bing.com/images/search?q...contradictio](https://www.bing.com/images/search?q...contradictio&form=IGRE&first=1&scenario=ImageBasicHover) &form=IGRE&first=1&scenario=ImageBasicHover. Accessed 6/10/20. Kierkegaard would love the internet! (Sarcasm, not paralipsis).

¹³ There might be exceptions to this according to non-classical logics, in which some contradictions can be true. This view can be found in paraconsistent logic--which is itself a joke. And also, it isn't.

¹⁴ Being open to error is essential, and we can see in at least one way how a humorous attitude differs from an overly serious one: "The opposite of laughing and joking is seriousness. Accordingly, it consists in the consciousness of the perfect agreement and congruity of the conception, or thought, with what is perceived, or the reality. The serious man is convinced that he thinks the things as they are, and that they are as he thinks them" (Schopenhauer 280, my italics). Such a dogmatic lens is highly susceptible to ignoring errors, not just committing them. For more on the ambiguities of "seriousness" and "playfulness", see (Kramer 2015b).

¹⁵ For more on this see (Kramer 2013; 2015ab).

¹⁶ <https://www.youtube.com/watch?v=yQ6giVKp9ec>. Accessed 7/3/2020.

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3.4: Stop Saying Things are Funny Because They're True

Time travel with me, for a moment, back to the year 2018. It was a year marked by political factionalism and Keto dieting, among other cultural pillars, but according to a Vox article from January 2018 one trend outshone them all: “there is perhaps no single item that has moved the dangerous desires of the human spirit as much as the brightly hued laundry detergent capsules known as Tide Pods” (Abed-Santos, 2018, 1). These colorful blobs of cleanliness owed their prominence at the time to the viral Tide Pod Challenge, which involved people filming themselves putting liquid laundry detergent pods in their mouths (sometimes chewing them or even cooking them first) in defiance of warnings on the products’ packaging. At around the time the Vox article was published there had been thirty-seven cases of Tide Pod ingestion during the first month of 2018 in the US, half of which were intentional (Bever, 2018). Remarkably, what far outpaced the actual consumption of Tide Pods was the massive number of funny memes that popped up to lampoon the challenge, like this one:



Figure 3.4.1: Tide Pod meme. (Liz Sills)

Abed-Santos observed that these memes mocked the silliness of the trend and the strange reality that a few people were actually participating in it. That is, they were based in real-world events, but they made that reality seem ridiculous and, hopefully, undesirable. Since the frequency of meme-ing the Tide Pod Challenge far outpaced the frequency of actually participating in it, we can assume that people found the spoofs far preferable to the trend on which they were based.

Tide Pod memes tell us a lot about society and the ways it reflects on itself through funniness. And in doing so they are especially illuminating in one respect: Funniness does not deal in hard, fast, capital-T Truth. It takes our perceptions of reality, scrambles them around in our heads, and leaves them even more open to interpretation than they already were. The cliché that a joke is “funny because it’s true” needs some revising: it would be more accurate to say that things are funny because they make us question truth. They drag us into a fictional realm where our assumptions about reality might not be so reliable. And we, addicted to the happy hormones that come with mirth, open ourselves cheerfully to that truth-bending questioning.

Pack Your Bags for a Truth-Vacation

Philosopher Henri Bergson tells us that experiencing comedy, humor, and other attempts at provoking laughter leaves people in a state of unreasoning “absentmindedness” as they passively process “facts and fancies” (14). Abandoning rational thought like this allows the (non-) thinker to change perspective during a brief sensation of utter chaos. A thinking person, for example, knows that the sky is blue, and does not find that fact in any way amusing. But tweaking deadpan knowledge in a funny way asks us to take a quick vacation from the world of fact and do some (thoughtless) reevaluating. The next time a small child asks you why the chicken crossed the road, for example, they are counting on you to come at the joke from the realm of reason (chickens exist, crossing the road is generally a goal-oriented activity with an obvious objective, reality is mundane). But you will only be able to join the child in their absentminded glee at a form of explosive anti-humor if you’re willing imagine ridiculous alternatives, then return to the banality of the real world and laugh at it.

Funny things are, of course, grounded in things we would consider really, truly true: Chickens, Tide Pods, etc. If they weren’t, they wouldn’t contain enough common ground for multiple people to understand a joke. But the act of finding something funny takes us away from epistemological certainty. In fact, things wouldn’t be funny unless they took us (at least temporarily) into the realm of fiction.

Funniness dances a complicated tango with knowledge. It is, of course, possible to learn things from funniness – but the things we learn often change our conception of what’s true rather than reaffirming it. It’s a form of inquiry that way. In fact, funniness leaves us more in the real of the ideal than that of the real. It blends experience and reason in a weird cognitive zigzag that leaves us understanding the world differently after the punchline than we did after the setup. And whatever species of knowledge we

embrace after we've laughed is certainly not a priori or unitary. It differs from person to person, varying widely based on whatever cognitive junk we have stored away in our spacious mental closets. Now let's spend some time making sense (but not Truth!) out of all that.¹⁷

If Your Professor Remembers the Year 2005 Ask Them What "Truthiness" Is Kenneth Burke, a philosopher of rhetoric famous for both his studies of the proclivities of human nature and his explorations of it in his personal life, says that the comic frame of understanding the world is useful for "making a man the student of himself" (171). We do indeed learn through funniness – in fact, Burke says we use funniness to interpret knowledge. That knowledge is of a particular kind, though: knowledge of human relations with emphasis on human power and decision-making. He does not think that the comic helps us piece apart great Platonic, super-human truths about the universe. Rather we laugh at things because of their humanity, and that amusement helps us understand each other and ourselves and culpable, fallible agents of our own destiny.

Laughing at ourselves and others can have a variety of rhetorical functions. It can unify people when we all laugh at our common weirdness. It can also divide people when we laugh at others and act like they're the only weird people in the entire world. Either way we're learning – we learn understanding or we learn judgment. It's important to remember, though, that the study of humans is a subjective field and is at the mercy of our own subjective human perception, particularly because of that power of individual decision-making that the comic frame brings to our attention. We're not learning any a priori truths as we laugh. In fact, I challenge you as a reader to come up with a juicy joke about an ontological proof that doesn't involve any kind of human snafu. Go on. I'll wait.

Want to Change the World? There's Nothing to It

Not only does funniness make us contemplate humanity, it does so in new ways that make us question the rightful order of the world. When we experience mirth we are snatched from our everyday lives and deposited, at least briefly, into an ideal world. (By the way, when I say "ideal" I don't necessarily mean "good" – not a world of perfect justice, courage, and armpits that smell like a spring day in rural Ireland. "Ideal" here means "existing in the realm of ideas.") Let me explain what I mean.

Consider parody. It's a form of funniness where you mimic something, sometimes something more powerful than you, in order to make it seem silly. If you were to stand in front of the room and hilariously imitate your professor before they arrive to teach, that would be parody. If you were to rewrite the course syllabus in order to make fun of the class, that would be parody. (Feel free to do so and show your professor – odds are they'll just be very happy you're paying such close attention to the document.) Even the Tide Pod Hot Pockets box at the beginning of this chapter is an example of parody. Think about this, though: When you're mimicking something, you're thinking about it and re-imagining it in a way that it doesn't exist. Your new conception of it might even disrupt the way it originally worked – like parody that's designed to take down power structures (also known as satire).

This process happens with funniness of all kinds. Even if you're laughing because your best friend fell down some stairs, or because a toddler made an awkward pun, you're still reimagining how things work. No! you're thinking, stairs are for walking down, not for sliding down! Or no! you're thinking, that's not what words are supposed to do! Thus, you have arrived in the realm of pure ideas, of pure imagination, because you're questioning your reality. That questioning process means that finding something funny doubles as a form of inquiry: Rather than seeing the thing as part of a hard and fixed reality, you're seeing it as something moveable, malleable, and worth asking questions about. Of course, the original reality stays in your mind: You will still eventually have a crisis of conscience and stifle your laughter enough to ask your friend at the bottom of the stairs if they're ok. But your return to reality is preceded by a trip into a realm of thought that will, perhaps, defy real-world explanation. More importantly, when you 83 return from your mental adventure you will probably be somewhat changed for the experience.

Ziggedy-Zag

Funny things blend experience with reason. Isn't that provocative? We often think of those two constructs as separate things. There's the realm of experience in which I am taking a bite of ice cream and adoring the flavor, and there's the realm of reason in which I am (maybe too late) thinking about the pros and cons of eating ice cream and deciding whether I should do it or not. Experience and reason can even disagree with each other. I might, for example, know from experience that my Aunt Karen hates ice cream, but I also might keep fantasizing that if only I could discover the perfect flavor I could change her mind. But the neat thing about funniness is that even when experience and reason seem to be at odds with each other, laughing can swirl them around together in our heads and leave each kind of understanding a little bit changed for the experience.

Discourse that makes us laugh is often based on the Aristotelian notion of an enthymeme. An enthymeme is a rhetorical syllogism that has, as its major premises, facts that are so commonly understood by the audience that they don't need to be said. When stand-up comedian Mae Martin quips "My stomach just fell out through my vagina" after a surprising interaction with an audience member (Just for Laughs, 2018), she is counting on her audience to understand 1) figurative language, and 2) the basic physical sensation of surprise, both without her having to explain them. Otherwise she wouldn't be able to make jokes like that without worrying about audiences rushing her to the nearest emergency room, in which case she certainly wouldn't have time to stop and enumerate her major premises and their connection to her conclusion.

Enthymemes give audiences a collective starting point. We all understand "gutwrenching shock," for example, thanks to our own experiences with it, and without having it explained to us we can move on into more interesting parts of the joke. But funniness works by taking that common starting point and twisting it, tearing it away from our common lived experiences by juxtaposing it with absurd things that make us think about it in a different way, thanks to our ability to reason. Laughing thus involves a cognitive zigzag where the audience starts thinking about the unstated premises of a particular joke, shatters that usual conception, and then lands a little far afield from where it started that thought process. Importantly, the audience is still thinking about the same enthymemes. They're just doing it in a different way. After the Mae Martin quip, for example, people are still thinking that she's surprised (zig), but now they're considering surprise as a function of the human vagina (zag) – probably a new way of viewing the subject for many people in the crowd. In short, if you want to make someone look at a familiar object in an unfamiliar way, make a joke about it. If the joke is good enough, they'll apply reason to experience in a way that might not otherwise have occurred to them. Funniness creates novelty that makes us abandon previously understood knowledge.

The Junk in Your Cognitive Trunk

Inasmuch as we assume we're all beautiful and unique individuals, we each follow our own beautiful and unique zigzags when we hear something funny. We all arrive at our own new ideas by fluctuating between experience and reason. Does that make funniness a form of inquiry? Sure. And doesn't inquiry get us all closer to the truth? Absolutely not. Thanks to a wonderful and maddening concept called polysemy, each person who hears the same joke – even if they all are somehow understanding it through the exact same enthymeme – will get something slightly different out of it because we all have different brains with different things stored in them. The knowledge we gain through laughing therefore cannot be unitary, and therefore-therefore cannot be considered absolute Truth.

Imagine your brain as a basement filled with storage bins. Psychologists Robert S. Wyer and James E. Collins argue that when you're trying to make sense of something (something like an enthymeme that's been twisted in an unfamiliar way by a joke), you start unconsciously rummaging through those bins looking for relevant stored material. Of course, when you're processing a joke you don't have time for a thorough search – your brain just opens the nearest likely-looking bin and finds the most relevant thing it can. In Wyer and Collins's theory of humor elicitation, you would hear "restaurant" in the setup for a joke, wrench open the bin in your head-basement labeled "restaurant," and hope that something in there meshes with the joke you're about to hear. (This process is the reason that jokes about outdated material don't work well. Material about 85 frosted lip gloss and bedazzling is going to make people dig deeper into their cognitive storage bins than they're willing to go on short notice, even if they really bought into those fashion trends in the early 2000s.)

The thing about those bins, though, is that each of us has different things stored in our bins, even if the labels on them are the same. Try this experiment with your friends: Say the word "dog," and then have everyone describe the image that popped into their head when you said it. Some people might visualize their own pet. Others might be fans of Paw Patrol and get a more cartoonish image. One person might be remembering that they meant to fill out an application to volunteer at the Humane Society. Everyone has a storage bin labeled "dog," but the contents are all different.

That variation is the root of polysemy, the idea that any cognitive prompt has "determinate but non-singular" (Ceccarelli, 399) meanings. That is, every person who hears something will process it in a slightly different way and end up at a slightly different final destination, even if everyone started out in relatively the same place with the same enthymeme. If I tell a joke designed to shatter common conceptions of penguins, each person who hears it might be duly shattered but might also walk away from their zigzag process with an entirely different new conception. There's no telling the directions people will go when you untether them from the concrete realm of experience.

If our cognitive storage bins are all so different, and if our funny zigzag journeys are all so different as a result, funniness cannot result in epistemic certainty. We cannot leave a joke with the confidence that we have learned The Truth and Nothing But the Truth. Our reasoning processes are too individualized. We land in similarity at best – but not in absolutes.

Funny Hot Pockets are Neither True Nor False

Scroll back up to the beginning of this essay and give that Tide Pod Challenge meme another gander. Consider this: We learn things from it, but we're not learning about Tide Pods or even about Hot Pockets. We're learning things about the curious and unpredictable people who confuse the two, and about the population of individuals who find that ludicrous enough to lampoon. It's a parody of a common product image, meaning that it invites us to think about that product in a new way rather than just 86 solidifying its current perceived reality. We each appreciate that parody by starting with our lived realities of Tide Pods and of Hot Pockets and putting them together in a new, weird way that we find happily nonthreatening but that also makes us reimagine how the world works – or at least how people eating food works. But each of our reimaginings is slightly different. Some people might see this image and actually decide to try putting laundry detergent into food. (Please don't. That's too much of a TruthVacation.) Some people might condemn participants in the Challenge. Still others might want to experiment with food dye and see if they can make their own colorful Hot Pockets. Whatever your reaction, though, and however differently you're looking at the world because of that meme, you have not landed on Absolute-Knowledge that can be proven true or false. Your results are epistemically agnostic.

Foot Notes

¹⁷ For a more complicated explanation of all of these ideas than the one you're about to read, please see my longer, more academic version of this train of thought entitled "The Epistemology of the Funny," which was published in 2016 in *Empedocles: European Journal for the Philosophy of Communication*, 7:3.

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CHAPTER OVERVIEW

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4.1: Ethics

The next two chapters will look at the part of philosophy we call axiology. **Axiology** is the study of value judgements. We say things are good or bad, right or wrong, beautiful or ugly, sublime or mundane. The central question of axiology is “on what basis can we justify such claims?” There are two branches of axiology corresponding to two different sorts of judgements we make. Judgements about the moral rightness or wrongness of a freely chosen human action is **ethics** and that will be the topic of this chapter. The study of the basis for judgements concerning beauty and the quality of art is what we call **aesthetics** and will be the topic of the next chapter.

Before we launch into in depth discussions of the rational grounds upon which to make ethical judgments, we first need to answer two objections: (1) there can be no rational grounds for judgments in ethics because it is just whatever a person/society thinks, and (2) there are grounds for making ethical judgments, context-dependent and subjective to each person’s experience, but they are not rational, human reason is not enough to justify them. How we respond to these questions depends on our **ethical system**.

An **ethical system** is a working definition of the concepts of morally right and morally wrong. We all have vague ethical intuitions that suffice for most day-to-day situations. We just know that it is good to help the needy and bad to torture newborn infants with a fork just for the fun of it. But if we want to be able to approach the sticky, hard to answer issues, then we need explicit definitions for our basic moral concepts. When we say that an act is morally wrong, we need to be able to clearly and unambiguously explain why. In other words, we need to articulate reasons to defend these intuitions.

That is why we need an ethical system. Think of an ethical system as a box with a slot on one side, a button on the top, and three lights on the front. The top light is green and has the word “MUST” written in large bold letters. The middle light is yellow and has “ok” etched into it. The bottom light is red and imprinted with the words “Stop! No! Verboten! Cut it out, you degenerate! What kind of sicko are you, anyway?” You stick the description of an action into the slot, push the button, and one of the lights comes on. If green lights up, the action is ethically necessary; you are morally obliged to do it. If the yellow light comes on, then the action is morally permissible, that is, you don’t have to do it, but there’s no problem if you do. If the red light comes on, then the action is morally impermissible, it is an ethically wrong behavior.

The two central claims that we need to establish are – playing along with the metaphor – 1) that such a box exists and 2) that we can pop the hood and see how the gears are put together, that is, that we can understand exactly why an action is determined by the machine to categorize why the morally necessary, permissible, or wrong buttons light up. The idea that we can and should understand the intellectual mechanism behind moral judgments is called **ethical rationalism**. It contends that “ethically right” and “ethically wrong” are meaningful notions and that people with minds like ours can fully understand them; in other words, that there is a box, and we can understand its programming.

In the next section, we will examine several ethical systems that have been proposed by important, and for the most part dead, philosophers through the last twenty-four centuries. We will be quality control, testing the calibration of each proposed box by sticking in uncontroversial actions that we can all agree are right or wrong and making sure that we get the desired output. If you put into the box the action “Rescue drowning child at the edge of the pool right in front of me” and the green light doesn’t come on, we know that the box is faulty. If you stick in “Enslave the next-door neighbors so I never again have to mow the lawn” and the red, morally impermissible light doesn’t come on, again, we know the internal workings of the box are to be rejected as a way of determining moral rightness and wrongness.

The goal of determining how a box works is equivalent to being able to fill in the blank in the sentence, “Act x is morally right if and only if _____.” We want to be able to explain clearly and completely what makes an action morally right or morally wrong because if we can’t explain our judgments, we can’t defend them. And then moral discourse completely collapses into the sort of closed-minded shouting matches that plague us now. To make progress on the hard issues before us, we need to clear up a few questions at the foundational, theoretical level before we try to apply them to the world around us.

Before we can do that, however, we need to answer the two challenges to ethical rationalism that have emerged from contemporary, politically infected, pseudo-ethics speak. On the one hand we have what’s called **moral relativism** and comes in two flavors. The first, **ethical subjectivism**, contends that moral rightness is just whatever any given person thinks it is. There’s my morality, your morality, Soupy Sales’ morality, but no objective, universal morality apart from what any given person holds. Moral rightness and wrongness only have meaning relative to some person or other. In other words, what makes an action moral is whether or not I

feel that it is moral. The second flavor of this view is **cultural relativism**, the position that moral right and wrong are a function of the social acceptability of an act. There is no real sense of right and wrong, according to this view, only how a given culture defines it. “Because I was brought up that way,” simply ends the discussion. In other words, what makes an action moral is whether or not a society has decided that it is moral.

Neither of these are unusual views today, and if you listen carefully you can frequently find people sliding back and forth between subjectivism and cultural relativism as if they were the same thing. The similarity that interests us is that either view, if true, would eliminate the possibility of there being a box of the sort we are seeking. No one could possibly be wrong about any ethical statement they make, and thus, moral judgment is trivial to the point of disappearing. Everyone has his or her own box and no box is any better than any other. Because morality would just be a matter of how you feel or what society thinks, there would be no such thing as an objective moral truth – in other words, there would be no “right answer” to any moral question. Say that I feel that killing kittens is wrong, and my society agrees with me. But you feel that it’s right, and your society agrees with you. Without some sort of objective moral standard, or truth, to determine which of us is right, we have no way of determining who is right. Morality becomes meaningless if we have no way to determine whose moral feeling or moral society is right.

On the other hand, there are those who do not deny the existence of a box whatsoever. Indeed, quite to the contrary, people who argue for a brand of **moral imperialism** assert that a box must exist, that there are absolute answers to every moral question. Some even claim to have in their very possession The One and Only True Box and are willing to do very nasty things to the bodies and relatives of others who have what they deem to be fake versions of The One and Only True Box. The problem is, while they contend that a box exists, they hold that it is impossible to see how the box works and why exactly it works that way. They claim that there is absolute right and absolute wrong, but, in their view, there is no rational reason that human beings could understand as to why any given act is morally right or morally wrong. It is a matter of faith and not reason. Ethics ceases to be a matter open to rational consideration.

The first view undermines ethical rationalism because they claim that a box does not exist, and the second view undermines ethics because they say it exists, but you can’t know how it works. So, before we can start comparison-shopping for ethical systems, it is imperative that we first understand the flaws in these positions. The fact that they are unworkable does not mean that there is not something in both sides that is attractive on some level. There is, and will always be, an aspect from each that needs to be incorporated into a successful, complete ethical system. What we want to do in the next section is figure out what is wrong with each of these views, what is right about each of these views, and what can be saved.

Ethical Subjectivism

Ethical subjectivism is the view that moral judgments are purely a matter of personal decision. Everyone has his or her own ethical system, and the fact that you consider an act morally right for whatever reason (or, indeed, for no reason at all) means that, for you, the act is morally right. We can set it out like this:

Ethical subjectivism – An act x is morally right for me if and only if I think it is.

There are two things we need to focus upon in this definition. First, it is a relativistic definition; that is to say, the truth of any moral claim is relative to the person judging it. It is not universalized to all people. The second aspect is the infallibility of moral judgments. According to this view, it is impossible for anyone to be wrong when they make a moral claim. If I say so, then I must be right simply because I said so. It is logically impossible for me to be wrong about any moral claim.

Reasoning about ethics now becomes akin to reasoning about your favorite flavor of Ben and Jerry’s ice cream. If your favorite flavor is Cherry Garcia, then no matter how good of an orator I am, no matter how strong of a rational argument I formulate, I could never get you to change your mind and assert that, “While I thought that Cherry Garcia 91 tasted better than New York Superfudge Chunk, I have now come to understand that I was wrong and, in spite of what I tasted, I now assert for rational reasons that New York Superfudge Chunk actually tastes better than Cherry Garcia.” The simple fact is there is no accounting for taste. If Cherry Garcia tastes better to you, then it tastes better to you. The matter is not open to rational conversation. If you came across two people in a screaming match, one yelling passionately, “I prefer Cherry Garcia,” and the other responding with equal volume and zeal, “I prefer New York Superfudge Chunk,” you’d do well to think that these two will never convince the other they are right.

He screams, she screams, but we need not all scream for ice cream. The real problem is not that one’s favorite ice cream flavor seems insufficiently important to warrant fistcuffs (although, yes, some anger management therapy might not be the worst of

things in this case). No, the real problem is that the two people have nothing that they disagree about. They are both simultaneously correct. There is no point of contention; his favorite flavor is Cherry Garcia and her favorite flavor is New York Superfudge Chunk. So long as they are truthfully reporting their preferences, they are both right.

The ethical subjectivist reduces morality to this same level. From time to time, you will even find a sense of taste explicitly substituted for moral reasoning. The usual form is “Act x is morally wrong for me because I think it is yucky.” For example, “Eating meat is wrong, I can’t imagine killing a little pig, it’s gross.” It may be, but that does not necessarily make it morally problematic.

The real crime of ethical subjectivism is that it makes moral disagreement impossible. If ethical subjectivism were true, then if Hitler really thought exterminating Jews, homosexuals, and political opponents were morally acceptable actions, then for him it was. And we can’t really object to this anymore than we can object to his favorite flavor of ice cream. When a radical pro-lifer and a radical pro-choicer sit down at a table, they have nothing to discuss; they don’t really disagree because there is no debatable, underlying principle to disagree about – it’s simply a matter of subjective taste. It may be that I can’t understand why you don’t find certain things to be yucky like I do, but, hey, some people are turned on by grown people dressed in diapers, some people like Brussels sprouts, and somebody really bought all those Nickelback albums. Again, there is no accounting for taste.

But ethics is cannot be merely a matter of taste. When we disagree about the moral acceptability of an action, we are disagreeing about something. When the radical pro-lifer and the radical pro-choicer are arguing, they do have something to argue about. Neither may explicitly state what it is, but there really is some implied or explicit principle underpinning the disagreement. Unlike the ice cream argument, they cannot both simultaneously be right – though they can both be wrong. They do disagree. Something more than taste is at issue.

How do we know this? After all, who’s to say? Consider moments of moral doubt. From time to time, we all find ourselves at points where we are not sure about what the right thing to do would be. We need to make a choice, but it is not at all clear to us what the right choice should be. We feel torn. We feel anxious. We know that there really is something at issue. We feel guilty if later on we feel like we made the wrong choice.

If ethical subjectivism were correct and moral rightness was therefore merely a matter of taste, then such reactions could not exist. No matter what you decided, it would instantly become right because you decided it. There’s never any reason to fret over any moral issue, and certainly no reason to feel guilty. Guilt just doesn’t make sense on a subjectivist model of morality. Just making it up as we go along is fine – and if we discover later that our preferences have changed, that’s also fine. But this simply doesn’t make sense given what we actually experience. We do feel tortured by hard moral decisions. That horrible knot in the pit of your stomach wouldn’t be there if the choice of action was just another version of Coke or Pepsi, paper or plastic, medium rare or well-done. And we certainly wouldn’t feel gnawing guilt or shame about telling that guy at the ticket counter to also have a good flight when we know damn well he’s not going anywhere. Where does this sensation come from? Where does regret, embarrassment, shame, or sadness come from if everything we do truly is just “what was best for us at the time”, or what we considered a moral preference?

In cases of deep moral doubt, we don’t just feel, we think. We deliberate. We weigh both sides. Maybe in the end we throw up our hands and do what is most expedient, maybe we play “eeny, meeny, miney, moe,” maybe we let someone else make the decision for us, but sometimes we make our choice based upon a rational argument. Sometimes – sure, not all the time – but sometimes (and that is all we need to see the problem with ethical subjectivism), sometimes, we find an ethical argument convincing, and we then have a good, rational reason for choosing how to act in that situation. In fact, we do this most of the time, even if we don’t realize it. But if anyone asked you why you did anything – why you made any decision, from why you took this class to why you wore that shirt to why you ran that red light – you can give them a list of reasons, even if you weren’t aware of those reasons at the time. Because of the infallibility of moral judgment that comes with it, such moral doubt and such good reasons could not possibly exist. If ethical subjectivism were true, then whichever way you decided would instantly become morally right because an act is morally right, in this view, just because you think it is. It would never matter what actions you choose, you wouldn’t feel anything but contentment with those actions in retrospect, and you wouldn’t justify those actions with reasons if asked.

Furthermore, subjective understandings of morality seems to be something that develops over time. Have you ever changed your mind about the moral rightness of an action? Think of the way we refer to our previous view: “I used to think that putting beef bouillon cubes in the shower heads of my dorm was funny, but I was wrong.” If morality is purely subjective, then such a statement

would be nonsensical – you couldn't have been wrong if you really thought you were right at the time. But the action was immoral, regardless of the fact that your thinking was skewed when you were younger.

If you've ever tried to convince someone that an act was morally right or wrong, if you've ever changed your mind about the moral acceptability of an act, or if you've ever been convinced by an argument from someone else, then you must allow that moral right and wrong is more than mere personal taste. Ethical subjectivism is false.

But there is a good reason why ethical subjectivism is so attractive to so many people. It is a reaction (an overreaction, but a reaction nonetheless) to something that many intuitively and correctly sense is wrong in some contemporary moral discourse. We want to avoid being moral imperialists – the sort of people who assert that there is only one right thing and only one way to do that right thing. According to these folks, there is never any reason for moral doubt. There is no moral ambiguity. Everything is absolute and clear-cut. Not only that, but they have all of the right answers, and if you disagree with them it is a clear demonstration of a serious flaw in your character. The technical philosophical term for such people is “self-righteous blowhard,” (although we often use other terms that we will refrain from printing here) and ethical subjectivism is 94 often an attempt by good, caring, rational, open-minded people not to be self-righteous blowhards. In the face of widespread intolerance towards people who hold disagreeing moral views, many who embrace ethical subjectivism do so because they wrongly think that it is the only way to make room for legitimate moral disagreement.

The move to subjectivism is based upon a crucial and mature insight into ethics: “I may be rational, and I might have what seems to be a really strong argument for my position, but, you know what, I might be wrong.” It seems to be a critical property of robust, authentic, adult deliberation that room exists for moral doubt and disagreement between smart, thoughtful, good people. There are real moral conundrums – situations in which the decision seems hard because it is hard – and sometimes we do have to agree to disagree. Life doesn't always work in black and white – it's wildly complicated and nuanced. Any ethical system that we come up with needs to reflect this reality. If an ethical system makes difficult questions seem too neat and easy, then it is trivializing ethics. A successful ethical system needs to show us why the tricky questions are, in fact, tricky.

But while the move to ethical subjectivism is motivated by good intentions, it actually fails in those intentions. Not only is the view problematic, as we have just seen, but it does not accomplish our other social goal of supporting good faith, open-minded ethical discussion.

As we have seen, ethical subjectivism fails in the attempt to make room for competing views about ethical issues because under ethical subjectivism there are no competing views! Everyone is right. It finds itself on the exact opposite side of the spectrum from moral imperialism; just as extreme, but in a completely different way. Ethical subjectivism most often derives from the attempt to be tolerant, but in the end it ends up entirely intolerant. If we were all ethical subjectivists, we would not be living in harmony with people who disagree with us, rather we would each be sequestered in our own little ethical bubble where it doesn't matter how reasonable or wacko the folks in the surrounding bubbles are. We would not be safeguarding open-minded moral conversation, we would be making it impossible. It would be as if we all have our fingers in our ears screaming, “I can't hear you! LALALALALA! Talk to the ethical hand.” If the idea was to create thoughtful ethical discourse, this ain't it.

Further, this view does not disarm the self-righteous blowhards. They've figured out that beating ethical subjectivists in moral debate is easier than finding an out of date magazine in a dentist's waiting room. In reaction to the self-righteous blowhards' lack of tolerance, the ethical subjectivist has elevated tolerance from its rightful place as a virtue and set it upon a pedestal as the one and only morally relevant virtue. There is no doubt that, all other things being equal, we ought to be tolerant, but there are plenty of things we should absolutely not tolerate, morally, socially, or politically. If tolerance above all is the only moral value, then not only do we have no right to say that Hitler was wrong, but we also have no moral grounds to claim that the views or actions of others are unjust. If it's all subjective, I can't really complain if someone wants to kill my kitten, it's their preference. I don't want my kitten to be killed, but I can't claim that it is unjust and should be punished or prevented, because that would require some sort of agreement on what constitutes a thing being punishable or prevented. Subjectivism does not allow for that possibility. So not only do we lose the possibility of disagreement in dialogue, we also lose any foundation for justice itself. All anyone would have to say is that by considering their horrendously morally objectionable views to be horrendously morally objectionable you are being intolerant, and, since you say that we always have to be tolerant, you must therefore tolerate the intolerance and injustice that they are advocating. The goodhearted folks who make the move to ethical subjectivism get their backsides kicked every single time because the rules of the game can be used against them. Yes, it is good to be tolerant, but in some particular cases other virtues have

to come first. Sometimes justice, sometimes fairness, and sometimes even the promotion of tolerance itself require taking actions that do not place tolerance at the forefront. Tolerance is an important thing, but not the only important thing.

Real tolerance does not mean everyone is entitled to his or her own opinion. Some opinions are poorly thought out, unsupported, detestable affronts to morality. Such opinions ought to be opposed, and the flaws demonstrated for all to see. Tolerance means giving people with differing opinions a genuine opportunity to thoroughly explain their position before making a determination about that position. It is approaching others with an open-minded hearing and listening in good faith, such that if they demonstrate a flaw in your position you would consider that flaw in a genuine sense, perhaps even giving up your position and changing it to theirs. It means playing 96 the moral deliberation game fairly. We want to find the right answer, not just win the argument. If the other person turns out to be right, we need to be open to changing our minds. But we can't find out if the other is right if we don't give them the space to speak, and if we don't listen with a genuine willingness to understand them. In Plato's words, we need to make sure that we "nobly submit to the argument." The self-righteous blowhard is one who puts the conclusion first and then tries to backfill a moral justification. If they are not playing fairly, they do not deserve the same moral status. Tolerance may mean live and let live, but it does not mean think and let not think. Open-mindedness and the space for legitimate moral disagreement needs to be preserved in our eventual ethical system but worked into the system in such a way as to avoid these problems.

Cultural Relativism

Cultural relativism is the more filled-out big brother of ethical subjectivism. Both offer relativistic definitions of our basic moral vocabulary; in both cases it is claimed that there is no objective sense of an act being morally right or wrong, only right or wrong relative to something. In ethical subjectivism, that something is each individual; cultural relativism, on the other hand, that something is a group, a culture, a society. The definition could be set out this way:

Cultural Relativism – An act x is morally right for culture S if and only if x is approved of in S .

Moral rightness, in this view, is completely determined for a society by the practices and norms of that society, and the ability to judge anyone's behavior by those criteria is strictly limited to that society.

Versions of the problems we saw with ethical subjectivism will pop up for this view, but a new problem arises for the cultural relativist that wasn't an issue for the subjectivist – What counts as a culture? With subjectivism, at least we could identify the individuals – except, of course, when it came to moral disagreement between conjoined twins. But what about cultures? Is it the national borders of countries that decide it? Is there one morality for the whole United States or are there different definitions of right 97 and wrong in New England and in the South? Is it heritage? Are there distinct Caucasian, African-American, Asian-American, and Latinx ethics in Los Angeles? How big does a group have to be to count as a culture? Do Lithuanians in Chicago get to decide what's moral and immoral for Chicago Lithuanians, but Lithuanians in Albuquerque don't – unless they manage to relocate enough retirees from Chicago to have a "Little Vilnius"? The social relativist needs to be able to unambiguously define what a culture is to answer all of these questions. It is a tall order, but not their only problem.

There is no doubt that groups of all sorts have norms for behavior, that what is acceptable conduct in one group may or may not be acceptable in another, and that they enforce these expectations through social mechanisms ranging from Amish shunning to Jewish guilt to a good old Bronx dope smack on the back of your head, "What's the matter with you?" But this enforcement of social norms is unfortunately all too easy to mistake for morality. Just because each society has its own rules for acceptable and desirable behavior, and reward and punishment procedures that keep people accountable for that behavior, does not mean that these socially enforced values are moral values. Even though many morally wrong behaviors are also socially unacceptable, the social and the moral are different, distinct notions. It might be morally neutral to wear a color other than pink on Fridays, but it would merely be a social slight against a group of "mean girls".

The problem is that the words "right" and "wrong" have several distinct meanings and that it is far too common for people to shift between these different meanings unknowingly. The two easiest senses to distinguish between are "morally right" and "factually right." A sentence is factually right if what it says about reality is true and factually wrong if what it says about reality is not true. The sentence, "Bill Barr wears women's clothes," is true just in case Bill Barr frequently adorns himself in women's attire and false if he doesn't. But moral statements are not factual statements. They do not describe how people do act, they describe how people ought to act, and very often people don't act the way they ought to. Ethics does not describe, it prescribes. "Bill Barr should not shoplift panties from the women's section of Macy's". Thus, morally right and factually right are completely different animals.

But there are other distinct notions of “right” besides morally right which are also prescriptive, which tell people how to behave and how not to behave. One can be “legally right” but morally wrong. Take drug laws, for example. In some states, marijuana is legal, and therefore legal right, or at least not legally wrong, to use. Other states, though, marijuana is not legal, and it is legally wrong to use. Morality doesn’t work that way. If something is morally wrong in Wisconsin, then it is morally wrong in Illinois, and morally wrong in Colorado, and Washington, and everywhere else. Laws don’t work that way – something is legally right or wrong depending on the borders that law governs. Laws are made by legislatures. Legislative powers in some cases are given to representatively elected bodies; sometimes this power resides with the population itself, sometimes with dictators or small groups in star chambers. But whatever the mechanism, legal right and wrong are determined by the whims of those legislators.

Laws may require citizens to do things which are morally necessary (don’t murder random people on the street) or they may require people to do things which are morally problematic (return humans who have escaped their masters back to those who own them). Most of the time, however, what the law tells you to do is morally irrelevant. Our laws demand that we drive on the right side of the road, British laws demand that they drive on the left. Which one is immoral? Laws structure society, sometimes in accord with morality and sometimes in violation of morality, but most often laws are merely conventional decisions made to keep some sort of order that have nothing to do with morality.

Now, we hope that laws do not require you to act immorally or make morally required actions illegal. But this may or may not be the case. “Legally right” is the result of a legislative process that may be bought and paid for by moneyed interests, or it may be controlled by people who are acting to benefit only themselves, or it may be the outcome of a compromise that pleases nobody. But the notion of “legal” is the accidental result of a legislative process, which is not the same as moral deliberation. There may even be a moral obligation to oppose immoral laws, but that in no way means that the legal and the moral are the same.

Similarly, groups have their own social mores. You may ask, “What are mores?” When the moon hits your eye like a big pizza pie, that’s a more. But, there can be no doubt that etiquette is a strongly socially enforced system. When you’ve committed a 99 faux pas, a social/cultural oopsie, it is made clear to you, and you know not to do it again. But simply because society demands that certain kinds of behaviors be curtailed does not mean that such behaviors are immoral. Picking one’s nose in public is rude and disgusting. It is a behavior that will generate unfavorable comments, lead to disapproving looks, and keep you from receiving further invitations to dinner parties. But as long as you wash your hands immediately afterwards, so as not to communicate any germs beyond your own body, mere rudeness – gross as it may be – does not constitute unethical behavior. Socially wrong and morally wrong are not the same thing.

To see this clearly, consider the case of someone disapproving of a socially acceptable act on moral grounds. Suppose we discover the writings of an antebellum Southern abolitionist, someone who opposed slavery in the South before the Civil War because, she contended, the social institutions that allow someone to own another human being are immoral. This person would be seen as ethically admirable today, but the cultural relativist would have to see this person as morally wrong and irrational in relation to her cultural context.

The reason is that for the cultural relativist, it makes no sense to talk about moral rightness and wrongness outside of social acceptance. Consider the person who says, “It is raining outside, but I don’t believe it is.” This person is an idiot or a liar. He has asserted the truth of a statement and then asserted that he will not accept the truth he has already asserted. Only an idiot refuses to believe what he knows to be true. But if we accept the cultural relativists’ definition of moral rightness, then our abolitionist is in the same position. Because slavery was socially acceptable at the time, according to the cultural relativist, it would be morally right in the society to which she belonged when she condemned it morally. Thus, the statement “Slavery is socially acceptable, but I think it is immoral” would be the same as “Slavery is moral, but I think it is immoral.” The abolitionist becomes an idiot. People who object to common practices on moral grounds might be right or wrong about their claims, but they are not irrational for questioning the morality of everyday social practices, and the only way we can save their rationality is by denying cultural relativism.

While the view is irreparably defective, like ethical subjectivism it comes from a good place: the desire to be tolerant. We want to understand that there are other morally acceptable ways to live life and structure society than what we are accustomed to, and grant that we have something to learn from other cultures. It also stands as a reaction (albeit again an overreaction) to cultural imperialism. Like moral imperialism, this view claims that my culture has it right and every other culture damn well better live like us or they are immoral human beings and ought to be thankful for the waterboarding. There is a long history in humanity generally to subject members of other cultures to horrendous, egregious, despicable treatment simply for being different. Longstanding

customs that are well-adapted to the environment in which people live have been forcibly changed, even if the fashions of Western Europe and the United States make no sense in the contexts of the lives of these people. This sort of tampering in other cultures is often morally unacceptable.

But there are two problems. First, cultural relativism undermines its own ends because the cultural relativist cannot morally condemn the cultural imperialism he opposes. The cultural relativist wants to say (1) that it is immoral for one culture to force its ways on another culture, and (2) that there is no sense of morality outside of what any given culture says it is. Notice that the claim in (1) is exactly the sort of universal moral declaration that (2) does not allow. (1) and (2) contradict each other. They can't both be true at the same time. To end cultural imperialism, there must be a universal, objective moral truth about the wrongness of interfering in the ways of another culture. But the notion of "morally wrong" by the cultural relativist's own definition is culturally relative. It is impossible to have a universal, objective moral truth about anything!

The second problem is that sometimes cultural practices are so horrible, so evil, such an affront to morality itself, that stepping in to stop them is morally necessary. "Never again" is the slogan that arose from the horrors of the death camps in Europe after the Second World War. This proclamation is ethical, it demands that all people be seen as people, and if that means stepping in to stop the slaughter of innocent lives, so be it. Of course, exactly what justifies intervention, especially military intervention which is sometimes the only way to protect the innocent, is a tricky business. When do we cross the line? Yeah, it's a hard question, but it's a real question. Welcome to ethics – it ain't always easy.

So what we want to keep from cultural relativism is similar to what we found desirable at the heart of the ethical subjectivist's motivation: the notion that there may be more than one way that is allowable even if we are forced to pick only one. In these 101 cases, tradition or sentiment may be the deciding factors, and we must accept that we will not be able to criticize the character of someone who chooses differently.

Contrary to the relativized definitions of ethically right and wrong, this doesn't necessarily mean that there are no universal, objective moral notions, it just means that they do not always neatly and completely decide every hard choice for us. There is a difference between every choice being morally acceptable and there being a range of mutually exclusive, morally acceptable options. Sometimes, moral theory can narrow down the field, but not pick a winner. Sometimes there is a moral tie.

The French existentialist, Jean Paul Sartre, gave a moving example of this in his work "Existentialism is a Humanism." He describes a student who came to him during the Second World War when the Nazis occupied France. His father had become a Nazi collaborator and was thrown out of the family. His only sibling, his older brother, joined the resistance and was killed. He is the only person his aging and beloved mother has left. If he were to go off to fight the Nazis, his mother would not only be broken-hearted, but would likely die. At the same time, if he stayed with his mother, he would not be doing what he saw as his moral duty to try to free his homeland from the evil occupiers. If he joined the underground, he might or might not make any real difference. If he stayed with his mother, he knows he would make a real difference. What should he do? Which comes first: the duty to your country or the duty to your mother? There may not be a single right choice here, but that does not mean that all morality is relative. While either option might be the right one, and we it may not be able to condemn one choice over another, we can still say with certainty that taking an axe and hacking his mother to pieces while swearing allegiance to Adolf Hitler would clearly be a morally blameworthy decision.

So there seems to be an irremovable place for personal decision making, and for sentiment and emotion in moral deliberation, even if we are able to build the sort of box we want. A successful ethical system will show us why the hard cases are hard and why the competing rational choices both seem rational, even if we must ultimately choose one over the other. The resolution of these questions will often require human consideration, not mere calculation.

Sentiment will also be part of the process when we move from deliberation to action, in moving from knowing what you should be doing to actually doing it. 102 Remember that acting in a morally good fashion requires not only figuring out what is right, but having the strength of character to do it. It is often emotion that forces us into action. When we heap blame upon someone who has done something wrong, we often appeal to their emotional failures, not their intellectual ones. Sarah McLachlan is going to keep showing us those pictures of abused animals until we are guilty enough to pick up the darned phone because we all know we can afford to help and therefore we should. When we complete our picture of honest, vigorous, real life moral deliberation, we need to make room for personal choice, sentiment, and emotion in these places.

Divine command theory

A frequent claim that you will hear if you speak about ethics with people is, “My morals come from my religion.” Many people draw tremendous strength from their spiritual faith. Beside empathy, religious conviction surely stands as the other preeminent source of moral courage, the ability to actually go through with what one knows one must do. In the aftermath of the South Asian Tsunami, hurricane Katrina, and any number of other disasters, not to mention feeding the hungry and housing the homeless on any given day, religious organizations are often the ones doing the morally admirable work for the neediest among us. Martin Luther King, Jr., Mahatma Gandhi, Mother Teresa, the Dalai Lama, Dorothy Day, and countless other champions of moral justice and in-the-trenches good works explicitly place their spiritual views atop the reasons they did what they did. Religion can be a tremendous power for good and right.

Of course, every now and then you get a Reverend Fred Phelps, who pickets the funerals of soldiers saying God killed them because the US allowed gay marriage. Torquemada burned and tortured countless people to death for being insufficiently Christian. Yigal Amir, an orthodox Jew, murdered the Israeli Prime Minister Yitzchak Rabin in cold blood for negotiating with the Palestinians. Who could question the religious fervor of the Hindus who murdered of innocent Muslims in Gujarat or the 9/11 hijackers? How do we understand religious moral conviction when, in these cases, the practice of it can be so wildly immoral?

There is no doubt that when beginning to deliberate upon a daunting moral question that requires action, it is a fine starting point for your thinking to ask “what would Jesus do”? Or the Buddha? Or Shiva? Or the Great Spirit. Or... But the point of 103 this section is to demonstrate that while religious conviction can be a fine starting point to this discussion, it cannot be the entire discussion. The key difference between a religious belief and a philosophical one is what counts as prove for the truth of the claim. Religion and philosophy have different criteria for what counts as good evidence – and this criterion rarely overlaps. Subjective emotional evidence is powerful religious evidence, but it’s not going to convince a logician. In fact, some religious arguments begin with the logically sound premise that God’s knowledge is inaccessible to human beings and therefore must be taken solely on faith. For our purposes as philosophers, religious criteria alone isn’t sufficient – we need logical argumentation to support claims, even those that have theological origins. Plenty of philosophers throughout time have shown us how to have both religious conviction and philosophical rigor, from St. Thomas Aquinas to Alasdair MacIntyre.

Even though religion and philosophy have different criteria, their subject matters are often overlapping. Religious organizations are social institutions and, as we saw with cultural relativism, there is no doubt that most religions have behavioral codes, usually in the form of rules or commandments. Further, organized religions have reward and punishment mechanisms to make sure that those in the structure obey the rules – indeed with the threat of fire and brimstone, eternal damnation, sitting at the right hand of God, and the promise of 70 adoring virgins, religions take reward and punishment enforcement mechanisms to an entirely new level. Like social etiquette, some of these theological rules overlap explicitly with moral concerns and are perfectly in line with the demands of morality. This is often the point of religious stories and allegories that have unambiguous moral overtones. “Thou shalt not murder” and “thou shalt not steal” are both theologically and morally good rules of thumb.

But just as the ethical is different from the social and the legal, so the moral and the theological are also different. If someone enjoys a hamburger, he may be a bad Hindu; if on Good Friday, a bad Catholic; if during the day during Ramadan, a bad Muslim; if with cheese and/or bacon, a bad Jew; but violating any of these theological rules does not by itself entail that his action is unethical. Just like which side of the road to drive on, some theological rules are moral in nature and some are just part of how you must act to be a part of that religious organization. Some theological rules are moral 104 rules, but just because it is a theological rule does not automatically by itself transform it into a moral one.

This is not to say that the moral teachings of any given religion are not morally good teachings, rather it is to say that subscribing to any given faith does not get you off the hook for thinking hard and deeply about the difficult ethical issues one comes across in real life. To fall back on religion to justify blind allegiance and not consider competing arguments when faced with a real ethical quandary is simply a cop out. Many of the lessons taught by the world’s religions are good ones, and the world would be a better place if people actually behaved according to them instead of merely affixing fish to their car bumpers, but belonging to a religious organization does not allow one to avoid moral deliberation.

The claim that morality is the result of God’s will with respect to how we behave is called Divine command theory, and the notion of moral rightness may be set out in this way:

Divine command theory – An act x is morally right if and only if God prefers that you do x .

While some religions have philosophical reasons for why God prefers x, and there exist moral theories that explore these (such as the Natural Law Theory) Divine Command Theorists are not concerned with discovering or speculating on those reasons. Moral judgments in this view are determined by how well one's conduct conforms to the desires of the Almighty. The only thing consulted in determining whether an act is right or wrong is what God wanted that person to do in that situation.

A couple of the worries with this position should be obvious. Putting aside all of the metaphysical issues about the existence of God, the problem of evil and the suffering of innocent children, and the ability of God to create a rock so big that even God can't lift it, there are specifically ethical concerns. The first problem is that defining moral rightness solely in terms of the Divine Will means that making any moral judgment at all requires the ability to know the mind of God.

The historical claim for the Divine Command Theorist is that this Divine will is exposed to people not through reason, but through revelation. Certain people at certain 105 times have had God appear to them in one of a variety of forms, and He has revealed His desires to them. Some of these experiences have been recorded as Scripture. Moral rightness therefore requires strict adherence to rules written in ancient languages and translated into modern language. Holy books, aside from their other functions, are moral code books in this view.

There are three main problems here: 1) the problem of interpretation, 2) the problem of completeness, and 3) the problem of soundness. We'll look at these in order.

The Scriptures are written words, and written words may be understood in many different ways. This is especially true with the Bible and its many allegories. There are not easy, straightforward, unambiguous meanings to many passages. The question, then, is that if moral rightness derives from the Word, but we only have access to it through a human understanding of the words – and there are several possible coherent understandings – how could we ever know which one interpretation is the right one? This becomes even more complicated when we consider that what we read in our native tongue is a translation from the original written language – there are some words that exist in Latin, Hebrew, and Greek that do not exist at all in English. So who translates the Word, and what words they use to bring out what meanings, can further effect the final product. How could we ever actually make objective moral judgments if the subjective opinion of the translator is present in the very translation of the texts? On every side of every moral issue, you will find authentically religious people who derive the strength of their convictions from their faith. Just as one should worry about anyone who claims to have God's cellphone number, anyone who claims to have the one true interpretation of all of Scripture ought to be viewed with great suspicion.

But even if we did somehow have uninterpreted access to some underlying Divine sense, there are still two other problems. One is the problem of completeness. If your only source of moral guidance is a book written by prophets millennia ago, what could one do when faced with dilemmas that involve issues not seen in that time? The word "internet" does not appear anywhere in the King James version of the Bible. In vitro fertilization, cloning, surrogate mothers, spousal abuse, "aggressive accounting" and repackaged mortgage-backed derivatives, feeding tubes and life support,...the list of new moral questions that result from technological and social progress goes on and on. Reality is a complex and constantly changing place. Any finite set of rules, no matter 106 how large, general, and insightful, will ultimately be insufficient to handle new cases. We would have to focus on general principles and apply them to specific new cases – which creates another opportunity for us to get our interpretations and applications wrong.

One way to deal with this is to take the Amish route and simply eschew new technologies. That certainly avoids some problems; but it doesn't answer the question, it merely sidesteps it. There are novel, complex moral issues that must be sorted out, and Scripture, while perhaps helpful as a starting point for discussion, is simply not sufficient to end the discussion for every case.

But apart from the new problems and whether the old commandments are sufficient to handle any moral conundrum that comes down the pike, there are passages that tend to be overlooked in modern times because there are practices that are allowable according to Scripture, but which are nonetheless immoral.

Warning: uncontroversial claim ahead. Slavery is immoral.

Yet, if you go back and look at the debate over slavery in the United States, those who were arguing for keeping the institution legal did so primarily by drawing support for it from Scripture. Nowhere in the standard canon do you find an unambiguous statement that it is wrong to buy and sell human beings and use them as inhuman tools. Indeed, one can point to passages that assert just the opposite, which set out the rules under which slavery is permitted (for example, see Exodus 21: 7-11, Exodus 22:1-3, Deuteronomy

15:12-15, Leviticus 25: 44-46, Ephesians 6:9, and Colossians 4:1). Again, uncontroversial claim, slavery is wrong. But to accept this requires moral reasoning beyond religious belief. It requires moral reasons.

Beyond these deep problems associated with Divine Command Theory, there remains one last significant worry when we take moral rightness completely away from human reason and place it in the realm of faith. By making faith rather than reason the central condition, a problem pointed out by Plato emerges. In one of Plato's dialogues, Socrates comes across a young man named Euthyphro and discusses the nature of morality. When Euthyphro defends the Divine Command Theory, Socrates asks, "Is an act morally right because God prefers it or does God prefer it because it is morally right?" It's the moral equivalent of the chicken and the egg, but it has some very serious ramifications for Divine Command Theory no matter which side of the bet you take.

If one says that God prefers acts because they are morally right, then you must accept that the act was morally right before God took a look at it. This requires that moral rightness exists independently of God's desires and that God then only prefers it because it was already morally right. This takes God out of the moral picture. We need only understand the nature of moral rightness, and do not need any understanding of God at all. He's just standing there on the side giving a wink and a big thumbs up, but the thumb is not the reason for the goodness. In other words, all God is doing is pointing to the good thing, and the thing that would be good whether God pointed to it or not.

That leaves the other horn of the dilemma, that the reason an act is good is simply that God prefers it. What is good is whatever God decides is good – and that has nothing to do with the goodness of the act itself. That means that if God enjoyed seeing people set infants on fire and roasting marshmallows over them, such horrendous acts would be morally good. The immediate impulse is to say, "But God would never prefer such a thing." "Well why not?" we ask. "Because it is morally wrong to set an infant on fire in order to make s'mores."

D'oh, look what just happened. That move takes us back to the first horn of the dilemma, where acts are morally good independent of God. You can't refer to the morality of an act when that morality is – as you, yourself just claimed – completely determined by what God likes and doesn't like. You can't say that God wouldn't like it because it is immoral, because to be moral just means that God likes it. If there is a reason why God would or wouldn't like it, then it is the reason that is important, not God's preferences.

By taking this second option God is kept in the picture, but it would mean that moral rightness and wrongness would just amount to a particular individual's preference. There could be no good reason why an act would be right or wrong any more than there would be a good reason why God prefers chocolate ice cream to vanilla. Therefore, there would never be any reason to think about or discuss moral problems – you buy the chocolate because it's what God wants, and that's that. There would never be good reason to think hard about or change our minds about moral issues. We are back to irrationalism.

The other remaining problem about this – especially for the biblical literalists – is that one of the early stories in Genesis is about Abraham willingly bringing the knife down on his son Isaac because God told him to kill the boy. God tested the patriarch by seeing not only if he was willing to commit murder for Him, but if he was willing to murder someone with whom Abraham had a special moral relationship, his own child. We see versions of that sort of behavior today. Consider cults like the Branch Davidians following David Koresh or Jim Jones and the people who were willing to give what they thought was poisoned Kool-aid to their families. We look at these people as crazy, sick, or brainwashed, but certainly not morally exemplary, especially the cult leaders, who, we say, are acting like they think they are God. Demanding or following through on these requests may be a clear showing of religious fervor or commitment, but that commitment is not morality.

The 19th century philosopher of religion Søren Kierkegaard pointed this out when he discussed the story of Abraham and Isaac. What Kierkegaard concludes is that ethical and religious duties are different: ethics comes from reason and religious duties come from faith. Ultimately, he thinks we need to make a leap of faith to overcome ethics and become truly devout. This is what Abraham did when he willingly attempted to murder his innocent and beloved only son; Abraham chose faith over morality. Personally, while there are many people who are both extremely pious and very moral, if someone who put theology before morality were to baby-sit my kids, I would make sure to hide the knives and show them clearly where we keep the sacrificial rams out back next to the altar, just in case the voices show up while we are out at dinner.

So divine command theory is up to its commandments in problems, just like the relativistic views. But there are some aspects to divine command theory that are crucial for our complete ethical system and need to be kept. What motivates divine command folks is the claim that ethical disputes are about something real and that the solutions should not be relative, but universal. Morality is

more than just a matter of personal taste. The idea of moral universality, that there is one box for all of us, is a good one that we want to keep.

Further, the idea that there is some aspect of morality that has the form of commandments, what we call imperatives, is absolutely correct. In some cases, we absolutely can look at an action and declare it immoral because it violated a rule that starts “Thou shalt not...” Some actions are, in and of themselves, wrong.

But then the nagging question, “What makes them wrong?” pops up. Being able to simply fall back on “because God said so” would be easy, but it doesn’t work. There is a difference between theologically right and wrong and morally right and wrong. We can – and sometimes do – have ecumenical discussions about morality and these can be enriching and enlightening. But these discussions may be just as enlightening if they include atheists.

We are looking for an ethical system, a box that will tell us when an action is morally necessary, morally permissible, or morally impermissible. We want to be able to use this box and to examine it. We need to know what it is that makes ethical actions ethical and what makes unethical actions unethical. To do this, philosophers since the times of ancient Greece have proposed different systems. Each of these systems focuses on one of five different aspects of the moral situation and tries to elevate that aspect so that it alone becomes the defining characteristic of moral rightness and wrongness. These aspects are:

- the way the behavior affects the character of the person acting;
- whether the action itself is intrinsically good or bad;
- the consequences of the behavior for everyone involved;
- whether it violated the rights of the person to whom the act was done; and
- personal commitments that the person acting has to people he or she cares about.

Consider again Sartre’s student. How would we judge his choice? We would ask a number of very different questions, all of which seem relevant to judging his eventual action. We would ask questions like: Are you really the kind of person who would leave his mother when she really needs you? But doesn’t he have a duty to defend his country when it has been invaded? And what would the results be if he did go? What real difference can one person make in a war effort? Isn’t the choice between making a real difference to somebody or possibly no real impact in something larger? But does he have the right to ignore the needs of his countrymen? On the other hand, isn’t there a special responsibility that someone has to one’s mother? She gave life to you, raised you, took care of you when you were sick, doesn’t that mean something morally?

Each of these is a question that is relevant to determining how one ought to act in this unfortunate situation. Each is based upon a different aspect of the moral situation and each is representative of a different ethical system. What we need to do, then, is test drive each of these boxes and see if any of them are the right answer.

Virtue Ethics

In virtue ethics, the rightness or wrongness of an action results from the effect on the character of the person who did it. The consequences that we consider here are not the material consequences in the world, for example whether the person made a lot of money for doing it, received a medal, or has nasty memes made about them. Rather, we look at what kind of person the person who acted has become as a result of the action. We are what we do. We are only honorable if we do something honorable. We are only brave if we don’t wet our pants at the sight of danger. We are only generous if we give money to good causes, or at least pick up a check every now and then. It is what we do that makes us who we are, not what we feel about it. I don’t care that you really are very, very sorry for what you did with that cigar. Sorry don’t mean nothing. You are a louse if you act like a louse. You are a cad if you act like a cad.

The insight beneath virtue ethics is that human beings are creatures of habit. We are much more likely to do something if it is something we have done before. If it is something we have done many times before, we do it almost automatically, sometimes cavalierly. This is the psychological reason behind marketing and brand loyalty. If they can get you to try their product once, you are, in verifiable fact, significantly more likely to pick it up again in the future. It is the reason that many criminals get caught. At first, they are very careful to cover their tracks, knowing how bad their action is. You’d think that the more they get away with it, the more skilled they would become at leaving no trace of their identity behind. But what often happens is that they become sloppy because the action no longer seems that far out of the usual course of things. There seems to be less reason to be concerned with covering their tracks.

Whenever we act, we shape our underlying moral structure and make it more likely that we will act in certain ways thereafter. This is not to say that we are irreversibly programmed, but that we are certainly psychologically affected in such a way that it ultimately takes concentration and effort, sometimes great effort, to change our ways once they are set.

What we now know from detailed sociological and psychological research was pointed out in the 4th century B.C. by Aristotle, the father of virtue ethics. He held that the human mind is shaped by human actions and this is what we call our character. We are perfectly free to choose our character through our actions when we are naïve, young, and stupid, but over time that character becomes more and more set until we are crotchety, old, and stupid.

There are certain properties that ideal people have and less than ideal people lack. Those properties are called virtues. The properties that less than ideal people possess, but ideal people do not, are called vices. To behave in a fashion that is morally correct is to act in such a way as to become virtuous. To act unethically is to act viciously. Virtues are something that everyone has the potential to actualize through actions, and so are vices, but no one is just born virtuous or vicious. That is a matter of what you choose to do, and what you choose to do as a matter of habit.

The obvious related questions are, “Who is the ideal person?” and “How do we determine what are the virtues and vice?” The answer to the first is either Mr. Rogers or Mother Teresa, or maybe the love child of Mr. Rogers and Mother Teresa, who would probably look a whole lot like a wrinkly Ron Howard.

Aristotle, however, addresses the second question concerning how we figure out what are the virtues. He says that the key is to understand that each human, by being a natural member of the human species, has an inborn goal. A taller, stronger oak is a better oak, and all oaks come from acorns, so for each acorn there is a natural, innate goal: to be a strong, tall oak. Those things that lead the acorn to actually become the oak it potentially could be is good for the acorn. In the same way, there is embedded in human nature potential that we may or may not actualize through our actions, and to actualize that potential is what “good” is for humans.

The human mind or soul (they meant the same thing for Aristotle) has two parts that are particular to humans. One part deals with knowledge of facts, logical reasoning, and analytic problem solving; the other part deals with ethical matters. One part is for intelligence, and the other is for wisdom. With respect to intelligence, more is always better. No one ever said, “Oh, you won on Jeopardy. I’m sorry. Maybe next time you’ll be a little more of an idiot, or at least, for your sake, we can hope so.” Knowing something is better than not knowing it. Making fewer mistakes balancing your checkbook is always better than making more.

With the moral part of the soul, however, things are different. Aristotle argues that where intellectual virtues are found in the extreme, ethical virtues, by contrast, are found in the mean, in the middle. The key is to find the happy medium. Too much is bad, too little is bad, down the middle is just right. To be standoffish or over-effusive is bad, to be even-tempered is virtuous. Cheap bastard or spend like Imelda Marcos in Payless, both bad; generous is good. Wet blanket or buffoon, bad; witty, good. The middle road is the path to virtue according to Aristotle. The virtuous action is the action that will be the right thing, at the right time, to the right degree, for the right reason, and for the right ends.

How in the world can you figure that out? You learn through practice, but building up a good character, and then it becomes second nature. If every day I leave the house and I don’t kill anyone, it won’t be hard for me not to kill someone today. But if I’ve been killing people every day for a year, it might be just part of my normal routine. I’ve gotten in the habit of killing people. The actions you do repeatedly build up habits that become second nature, part of your character. The way muscle you want to exercise to be able to determine the right thing to do (at the right time, to the right degree, etc.), is your practical wisdom. Practical wisdom is like street smarts – it’s an intuition you hone based on experience that helps you figure out how to read the situation and determine the right action. You can’t be practically wise by reading about what other people do, or by studying virtuous people; practical wisdom requires action. You can’t learn how to play the guitar by reading about guitarists, or by watching YouTube tutorials. The only way you’ll learn how to play the guitar is if you pick up a guitar and start playing. The same is true of virtue – you have to use your practical wisdom and practice, and the more your practice, the better you’ll get.

Some folks object to virtue ethics through what’s called the universalization problem. Is the ideal person ideal for everyone? Isn’t it, in some sense, determined by individual circumstances and each person’s own goals? That is the view of some contemporary virtue ethicists, like Nel Noddings. Noddings argues that we each have an ideal ethical self – a realistic picture of the person we really could be, living the life we really could lead. It is from this image and what we would need to do to live up to it that we get our virtues. You may be the sort of person for whom a full life includes a significant place for contributions to the arts or maybe it is a life dedicated to furthering scientific knowledge. Creativity and freedom of mind would be important virtues for the first

person, while rigor of mind and patience may be more crucial for the latter. One's own projects will determine what qualities are to be preferred.

We can now set out the system explicitly:

Virtue Ethics: An act x is morally right if and only if doing x makes me more like the ideal person I could be.

The sort of person you should be may be universal if you follow Aristotle or a matter of personal circumstance if you follow Noddings, but either way, it gives us grounds for moral judgment. "Can you believe what that lying sack of fertilizer just said?" now has moral teeth because no matter who that person is, his or her ideal moral self would most likely rise above the level of "lying sack of fertilizer."

But there are problems. If we just focus on the person acting and whether the actions are virtuous, sometimes we get it wrong. Immanuel Kant points out that the last thing you want is a virtuous criminal. If someone has bad intentions, the last thing you would want is someone clever, brave, and temperate. The most evil villains in literature and film are also the most virtuous. Think of Count Dracula or Hannibal Lector. They are so much scarier because they don't make the mistakes of someone who does not display such virtue in being so vicious. This is why it's so crucial to understanding virtue ethics that we understand the theory as a character-based ethic rather than an action based one. Vicious people can do virtuous actions, a virtuous person can have bad days. But a virtuous person will never be a serial killer, and a vicious person will never be a saint.

Let's now shift the focus off of who did it (character) and onto what they did (action).

Deontology

The ethical system that locates rightness or wrongness in the action itself is what we call deontology or duty-based ethics. Unlike virtue ethics, this is an action-based ethic, meaning that the goal is to focus solely on performing moral actions, and not focused on developing a good moral character. Rightness, it holds, is intrinsic to the act just as blueness is part of blue jeans. The duty-based theorist sees considering some aspect of the situation other than the action itself – say, looking at the effects of the action on the agent or anyone else – to be like looking at someone's shirt to determine what color his pants are. If you want to know what color his pants are, look at his pants. You want to know if the act was ethical, look at the action.

People may be honorable or not, trustworthy or not, obnoxious drunks who tell you how much they love you and then punch you in the mouth claiming you seduced their girlfriend or not. But it is behaviors, not people, that are ethically necessary, permissible, or impermissible, and to determine the moral status of an action the only thing we need to consider is the action itself independent of any context.

Murder: bad. It doesn't matter whether you are Professor Plum, Colonial Mustard, or Charles Manson. It doesn't matter if you used a candlestick, a revolver, or several brainwashed, strung out followers. Murder is intrinsically wrong, and we have a moral duty not to murder. Duty-based ethics are based on universal, absolute rules. To act in an ethical fashion is to follow the rules. If you break a rule, you violate morality. Codes of ethics that you see in various professional and social organizations have this sort of system underlying them.

People who are comforted by Divine command theory intuitively hold a duty based system to be the foundation of ethics, and the move to bring in God can be seen as an attempt to deal with one of problems of a duty-based system. If moral rightness and wrongness are intrinsic properties of actions, how do I tell which it is for some specified action? With blue jeans, I just hold them up to a light or put them in a fancy spectrometer. We can always determine with absolute certainty whether something is blue or not. But there is no ethicometer. Ethical properties are not descriptive of the way the world is – they tell us how it ought to be. So, who decides what the rules are? Who is to say how the world ought to be? God is an easy answer to that question. Easy, that is, until we really start thinking hard about it. But if not God, then who?

But the problems get worse. If morality is determined by absolute, universal rules, then those rules would have to cover a potentially infinite number of possible actions. As such, we'd need a potentially infinite number of rules. But I can't know an infinite number of rules; hell, I can't remember what I had for breakfast. That means that morality is beyond my limited human intellectual capabilities, and so I, and every other mere mortal, am off the moral hook. After all, no one can reasonably demand that I do what I am incapable of doing, and I am incapable of knowing all the rules.

An answer to these problems came from Immanuel Kant, a man so rule-bound that he died a virgin and would have his manservant wrap his hands before bed. Kant's extremely clever complete answer to this question includes lots of words like a priori, prolegomena, and antinomy, and so was not understood for about half a century after his death. But the basic idea is that if you pop open the rule-based box, inside is another box that makes the rules. Whenever a situation is put into the duty-based box, the second box looks at the paper, generates the proper rule, and if the action is in accord with the rule, the green light goes on and if it violates the rule, the red light goes on. So now all we have to do is open up that second box to see how it works. This second box is what Kant called the "categorical imperative." It works like this, take the action, remove all context – who did it, to whom it was done, why it was done, when and where it was done, what happened as a result of doing it,... – ignore it all. Get down to just the bare action and ask, "Which ought to be the universal rule, always do it or never do it?" or "What if everyone did it?" This will serve as your ethicometer and illuminate the intrinsic ethical nature of the action for you. Think of "What if everyone did it?" it as the rule that generates the rules.

The system can now be set out explicitly:

Deontology: An act x is morally right if and only if there is a universal moral rule 'Always do x .'

When deciding whether it is ok to murder someone who delights in creating a public nuisance, forget about who it is, what the world would be like without him, what the punishment would be for killing him,...none of that matters. Just ask whether "always murder" or "never murder" ought to be the universal ethical law. The fact that "never murder" is the appropriate choice makes that and every other murder morally wrong – no matter what. But while Kant seems to have answered our two concerns above, there is another problem. By placing the ethical properties of an act solely within the nature of the act itself, we lose the ability to deal with cases where the consequences of the act seem to make a big difference.

Suppose you are asked by an angry person with a gun where his intended victim is hiding. You know the intended victim is a good person, you know the murderer has a mistaken belief about the person but won't listen to you, and you know the hiding place. Kant says that morally you need to tell the truth. Really? And get an innocent person killed? Don't listen to Kant. Don't tell the murderer the truth. Consequences matter. An unnecessarily dead good person is a bad thing. So, while there is definitely some sense in which ethical rules are important to a complete ethical system, sometimes you have to break the rules to act morally.

Utilitarianism

You are sitting in a park people watching. A stranger walks up to you and, for no reason at all, hands you a freshly baked chocolate chip cookie. As you say, "Thank you," and take a bite, another stranger walks up and, for no good reason at all, punches you in the nose. First act, good; second act, bad. Why? Simple. The first act generated happiness and the second act generated pain. Our actions have ramifications in the world around us – real life costs and benefits. We can choose to act in ways that either make the world a better place for everyone in it or act in ways that don't. Morality seems to say that determining the rightness or wrongness of an act requires determining whether the act will result in a better or worse world.

The system where the consequences of an action are the determining factor in the rightness or wrongness of an action is called **utilitarianism**. The utility or usefulness of an action is the reason an act is ethically necessary or not. To determine whether an act is moral or not, perform a cost benefit analysis taking equally into account the pain and pleasure of everyone affected.

Should I lie? The answer, according to the utilitarian, depends upon to whom and about what? To some attractive woman in a bar about what kind of car I drive? No. This lie, while at best may produce passing pleasure, in the end will cause things to come out badly for everyone involved. Should I lie to my best friend in order to get her to the surprise party I know she'll enjoy? Of course. How about to the angry person with the blunt instrument in search of his victim you see hiding in the bushes? You lie. To the three-year-old who asks you if Santa is real? Don't be a jerk.

The utilitarian asserts that there is nothing intrinsically wrong about lying. In fact, there is nothing intrinsically right or wrong about any action. It all depends upon whether the lie will have better or worse consequences than not lying. But those consequences need to include all the consequences, even the long term ones, not just the "it makes life easier at this moment" ones. The seemingly convenient lie will often have very bad unintended consequences. But that does not mean that one ought never lie. Repeat after me, "No, I don't think that makes your butt look big at all."

The folks who advocated utilitarianism in the 19th century were also the people in favor of political reforms that gave more people, including women, the right to vote. The idea behind both of these systems is that everyone's pain and pleasure is considered

equally – the moral equivalent of one person, one vote. Everyone’s potential pain and pleasure are all thrown onto one big ethical tally sheet, and everyone is considered equally in the calculation, no matter who it is. If someone experiences more pain or pleasure, of course the amount is considered, but whether it is prince or pauper is completely irrelevant. Utilitarianism is meant to be democratic ethics.

These are also the folks who championed free market economics. The idea that the marketplace is rational and will stabilize prices in order to maximize overall benefit for everyone is right in line with the idea that ethics ought to do the same in the same way. It is fully intended to make moral deliberation into ethical accounting.

We can set out the system, then in this way:

Utilitarianism: An act x is morally right if and only if it is the action that brings about the best overall consequences.

We are morally responsible for the state of the world around us, and to be moral is to act in such a way that we leave the best possible world behind.

So, what could possibly be wrong with that?

Imagine that one day you come home to find that you have been robbed. Your computer, TV, ipad, speakers – gone. You go room to room noting that your most expensive leisure-time and labor-saving devices have all been stolen. Shocked, you walk into the kitchen and there, on the refrigerator, under a “Save the Children” magnet you’ve never seen before, is a note: “Got tired of waiting for you to call, so I just took all your stuff and hocked it. Using the money to feed and build schools for the children of three villages in sub-Saharan Africa. Thanks for your ‘generosity.’ Sincerely, Bono.”

There is no doubt that the wealth tied up in your entertainment equipment is generating more overall good in the world having been liberated from your sorry, Dorito-eating, couch potato possession. Does that make it morally appropriate to send in the Bono brigade to burgle your home? Maximizing utility in cases like this does not lead to ethical action, quite the opposite. And if one were to confront Bono, and they indignantly ask why shouldn’t they do what they can to help these people in need, your response would most likely be, “You have no right to come into my home and take my stuff.” While there is certainly an aspect to a complete ethical system that hinges on leaving a better world than we found, ethical right and wrong here seems to hinge on this idea of rights which – at least in this case – seems to trump utility.

Rights-based Ethics

In the 20th century the most influential moral notion was that of rights. Women’s rights, civil rights, gay rights, human rights; all have been the rallying points from which injustice was fought, and, in some cases, outright defeated. Exclusion from full humanity and citizenship is the hallmark of an unjust social structure, and the most powerful moral weapon in the dismantling of barriers put up by the haves to keep the have-nots out has been the notion of rights.

One of the reasons this tool has been so effective is because the notion of rights is also crucial to the haves. The place where the concept of rights begins is with property rights, with the erection of social protection structures for the stuff of the wealthy and the ability to enforce contracts so that they have a stable business environment in which to seek further enrichment. What property rights do is guarantee that nobody can mess with my stuff and that I’ll get paid if I sell it. The powerful are almost always also the rich, and in order to keep what they have in terms of both wealth and power, they rely on the inviolability of a structure based on rights.

It was then a very small step to extend the notion of rights from keeping my things safe to keeping my body safe, and then we were off and running, declaring moral rights to protect our privacy, access to healthcare, and countless other needs. More and more got packed in until we started seeing claims like “I have a right to drive a gas-guzzling, fume-spewing SUV,” regardless of how it impacts the environment or other cars in collisions.

We now throw around the term “rights” without having any real sense of what it means. To fix this, we must first distinguish again between the notions of legal and moral because we use rights-talk in both cases. If a buddy confided in me that he got herpes from his roommate’s girlfriend and I promised to keep it secret, and then I immediately text this fact to a mutual friend, I cannot cite the First Amendment to the Constitution of the United States in my defense. Breaking confidence while gossiping is not a federal crime, but it does make you a slime bag. Your legal right to free speech means that you cannot be arrested for saying most things. It doesn’t mean that there are no moral responsibilities to watch what you say. Just as in the case of cultural relativism, where we had

to be careful not to confuse legal with moral, here we need to keep legal rights – which again are decided by the whims of a legislative body – distinct in our minds from moral rights.

This difference is part of the reason why we see so much talk about human rights from the United Nations, a body which sits outside of individual governments and the legal rights they may or may not grant to their citizens. The UN advocates for measures that bring the legal rights of each individual nation closer to the basic moral rights shared by all people. The idea of universal human rights is a moral notion, and the hope is that by having an extra-governmental organization concerned about moral rights, we may be able to affect the granting of legal rights within individual countries in such a way that legal and moral rights converge. There are two reasons why this does not devolve into cultural relativism. First, universal human rights are always present to serve as a lowest level of inalienable rights. The social contract is constrained by the demands of basic human existence and flourishing. Second, the contract is based on a moral good that the group has chosen to elevate – equality, security, freedom – and there may be deep, intellectual discussion about whether this good ought to occupy a privileged place. Rationality may still exist in the negotiating of the social contract.

Where virtue looks at the actor, duty looks at the action, and utilitarianism looks at everyone in the world, rights-based ethics focuses all attention on the person to whom the act is being done. The central insight is that all human beings have the same basic needs and the same basic conditions that will allow them space to develop freely and flourish. As such, since every human – and animal rights advocates argue, every member of the animal kingdom – is an autonomous being who by his/her/its very nature has a certain intrinsic value, the conditions of their thriving ought to be morally protected from transgression.

But not all of the conditions for human or animal flourishing are the same everywhere and at all times. Certainly, what is needed in some contexts is different from others. This is where we bring in the concept of a social contract that both affirms universal human rights and allows for local variation. Societies are set up differently, and in each, rights are distributed differently. In some cases, the distribution is designed to maximize individual freedom, in other cases to maximize social orderliness and security, in others to maximize equality. There are competing moral goods, and different groups in different contexts will choose to elevate different ones as primary. This can even change in a single culture over time, so the social contract is dynamic, constantly renegotiated in the face of a changing social context.

It is here that we see some of the cultural relativists' insights beginning to appear in a more sophisticated form. In normal times, markets may be allowed to set prices, say, for plywood; but after a natural disaster, where scarcity may take the price of goods necessary for the protection of life and property through what little is left of the roof, price gauging makes you a scum bag. Rights are not entirely absolute and may vary with the social context.

But regardless of the source of the right, universal or from a social contract, we can now define our basic moral vocabulary.

Rights-based Ethics: An act x is morally permissible if and only if it does not violate any person's rights

Oliver Wendell Holmes, Jr. famously said, "The right to swing my fist ends where the other man's nose begins." As long as you are not violating the rights of anyone else, you may do as you darn well please.

And that is the key to rights-based ethics; it entails purely negative duties. Rights never tell me what I have to do for you, they only say what you can't do to me. For all of the historical heavy-lifting they have done over the last couple of centuries, the moral concept of a right is an extremely weak notion. You can act in a way that doesn't violate anyone's rights and still be a complete prick.

Suppose you are taking a walk down the street and you suddenly have what seems at the time to be a great idea. You want to write it down so you don't forget it, but you don't have a piece of paper. Suddenly, you realize that you are passing a yard sale, and there on the table is an old notebook for a nickel. You buy it and write down your idea. Later, when leafing back through the notebook, you come across some strange symbols and a paragraph from the former owner as to their meaning. It turns out that it is the chemical formula for a substance that would be the greatest wonder drug in history. It can cure cancer, AIDS, malaria, sleeping sickness, male-pattern baldness, menstrual cramping, and erectile dysfunction – every major threat to humanity. You now own this piece of paper because you bought the notebook and have acquired the right to use its contents as you see fit. You could turn this piece of paper over to medical science and save the lives and end the suffering of many people.

But, if you follow a rights-based ethic, you wouldn't have to. You can do whatever you want. You could burn it. You could eat it. You could go to oncology wards and wave around the page saying, "I bet you wish you had this," while dancing the Can-Can. That

page is yours to do with as you please, and you don't have to be a nice guy to still be moral according to a rights-based system.

The folks who buy into rights-based ethics Locke, stock, and barrel are called Libertarians. Just as ethical subjectivists elevate tolerance above all other virtues to the status of the one and only virtue, so libertarians elevate individual freedom above all other moral concerns. Rights are needed to guarantee individual freedom, all else be damned. It is certainly true that, all other things being equal, liberty is an incredibly precious thing that ought to be protected with one's life if need be. One cannot say 122 enough about how important and wonderful freedom is. But, as with tolerance, it is not the only thing. Life is a complicated place, and while liberty is tremendously valuable, it is not, as libertarians want to maintain, the only thing of moral value.

The notebook example above demonstrates the moral poverty of libertarianism. The view is generally supported by well-off, well-educated, self-centered white guys who above all else want to make sure that now that they have theirs, a) no one else will take it, and b) they don't have to feel guilty about not wanting to share it. By focusing exclusively on rights and the resulting freedoms, libertarians free themselves from what we usually think of when we think of morality, that is, being decent, caring, empathetic human beings who actually give a darn about anyone other than themselves. This is not to say that everyone who calls him or herself a libertarian is a selfish, uncaring clod. Freedom is important and we need people dedicated to protecting it, but it is not the only important thing and those who hold it to be can work against human flourishing. When the notion of rights is allowed to seep its way into questions of morality around personal relationships, we end up with really bad relationships. If your sweetie pie gives you flowers or chocolates on Valentine's Day because they see it as fulfilling a romantic contract, your honey bunny probably does not really understand the meaning of the word "romantic." And if smoochums now expects that, having satisfied their end of the romantic contract you are now required to satisfy your part, a visit to a couples' counselor (or the acquisition of a dating site membership) might be prudent. Being a good person requires more than just avoiding violating the rights of others. It involves actually feeling the pleasure and pain of others, especially those close to you. While the concept of rights needs to be kept in some capacity, morality seems to need to move beyond mere rights to empathy, concern, and care.

Care-based Ethics

One thing that all of the above systems have in common is that they were all developed by men. This is evident in the character of the systems. Notice how they bear a striking resemblance to the way that traditional men's occupations work: they are legalistic approaches or economic-based approaches. When coming up with a system, it is not strange that men would model that system on other systems of socially enforced behavior. But that is not the only such model.

Carol Gilligan was a research assistant in the laboratory of Harvard psychologist, Lawrence Kohlberg, who was studying the development of moral reasoning. He followed Jean Piaget in asserting that one could rank moral maturity with the lowest level being obedience to authority for fear of punishment and the highest level being the use of universal abstract moral concepts such as justice. He noted that boys would frequently reach this most abstract level of moral sensibility, but that girls most often would not, remaining instead in the concrete world of the situation around them. He concluded that males are frequently more morally developed than females.

Gilligan thought that something was wrong, not necessarily in the observations, but in Kohlberg's analysis of them. Women, she argued, do, by in large, approach moral situations differently. It is, indeed, less based upon strict adherence to cold, abstract rules and more based upon relating to people as the people they are. But this does not mean that girls are less morally developed. It means that women most likely are dealing with a different sense of how one ought to relate morally to other people. This sense is based not around the contractual model of tit for tat and abstract principles, the sort of thing that boys would have to internalize if they were to be successful in traditional male social roles. Rather, it is based around the sort of relational skills that girls would have to master to be successful in the traditional roles reserved for them: wife, mother, nurse, and teacher. In all of these roles, the core principle of the relationship is care. To care about another is to take legitimate interest and concern in their development and well-being.

Notice how different this is from the contractual-based relationships that are standard parts of the work world. In the work world, the focus is not on the development of the other person, but on your own self-interest. You enter into relations with others for the sole purpose of advancing your own interests, and you remain in that relationship only as long as you both believe it is mutually advantageous. If someone else gives you a better price and you haven't yet signed on the dotted line, see ya. Legal and business relationships are built around the notion of contracts where it is clearly set out what each must do for the other. Once both parties agree to the contract, you are tied in. You now have an obligation under the contract. Once you fulfill your end of the bargain, you

are released from the relationship. You need not have anything more to do with the party of the first part. You may choose to continue to do business with this person, but 124 you are under no obligation to do so. In a contractual relationship you only do as much as you have to, and you do it so that the other person will do for you what he agreed to. You act in the interest of the other person only so that he will do what you need him to. Once he's done it, goodbye.

Care-based relationships are a completely different animal. Where acting releases you from a contractual relationship, with a care-based relationship, acting in the interest of the other person further embeds you in the relationship. You become someone the other person knows she can count on when she needs you. Parents do not keep track of the time and money they spend on their children expecting to be repaid. They act out of love and care, out of a genuine sense of concern for the flourishing of their child. To be a good parent is to willingly sacrifice, to put your child's interests before your own. The approach to morally good behavior that we see in the other systems fails in cases where there is a special relationship.

Suppose you are late for an important meeting and you see someone broken down on the side of the road. It is cold, raining, miserable. Your eyes meet his as you pass, and you can tell that the person does not have a cell phone. The road is not a main thoroughfare, so it might be quite a while until someone else happens by. If you drive past the person thinking, "I wish I had time to stop for you, but I have a meeting I have to get to," the person most likely would watch your taillights and simply say, "%\$&!." You'd probably feel a small pang of guilt, and rightly so. It wasn't the nicest thing you could have done.

But now suppose that it was your best friend whose car broke down, and when your eyes meet, you know he recognized you. Now, when your best friend – the one who lifted the toilet seat just before you revisited those tequila shots and burritos; the one who would vouch for any alibi, no matter how inane; the one who listened to you drone on and on for days about the love of your life leaving you for the person everyone else knew they were sleeping with for all those months – that friend sees your car driving away leaving them stranded in the middle of nowhere. Needless to say, they will add a few more expletives to his rant when watching the fading taillights, and some of them will include your mother. This better not be the same small pang of guilt you felt with the stranger. You just screwed over your best friend. What kind of self-absorbed uncaring piece of garbage are you? Friends, family, and lovers come with an additional level of moral 125 responsibility, an additional level that is not abstract, but which lives in the same world as your loved one. We can set out the heart of the care-based system in this way:

Care-based Ethics: An act x is morally good if and only if you do x because you believe that it will help some particular person with whom you have a relationship live a better life

Moral goodness comes from caring about someone and acting on that care to make their life a place where they are more likely to flourish.

There is no doubt that the foundational insights here are right on the money. There is a special ethical obligation that you take on when you are in a caring relationship. But this ethic of caring cannot be universalized to cover all acts. Unless you are Oprah, you cannot care about everyone. At some point, your care for others will necessitate neglecting the well-being of those you began caring about first. If you really care about someone, it means that you are willing to put her welfare above others. If you try to elevate everyone to that level, it will quickly become self-defeating. There are – and must be – people you don't really care about. That doesn't mean that you wouldn't care about them if you knew them or knew of their plight. If you are a decent, empathetic person, of course you would.

Not being in a caring relationship with every other person on the planet does not mean that you do not have an obligation to those other people. You do. That's why care-based ethics is by itself – like all the other views – insufficient. At best, it must be a part of the larger complete system.

Now what?

Ok, so there are five aspects to moral situations and a proposed ethical system that takes each of them as the single, unique factor that needs to be considered in making a decision about what is morally necessary.

Aspect of the situation	Ethical System based on it
The person acting	Virtue Ethics
The action itself	Duty Ethics
The consequences of the action	Utilitarianism
The person the action is done to	Rights-Based Ethics
Special relationships of the person acting	Care-based Ethics

For each and every one of these systems, there are cases where each hits the nail right on the head, and for each there are cases where following them is clearly wrong. None of them is sufficient on its own, but each properly paints part of the picture. The natural instinct is to say, “Can’t we put them together and get one big system? Can’t we figure out a way to hook all the boxes together into one big box?”

Well...yes and no. This is where we turn to discourse. We do employ all of these ethical systems when we think and talk about ethics. Listen closely when you hear those around you talking about moral issues, they will use the language of virtue, duty, consequences, rights, and care. All of these are part of how we think about the hard moral questions.

What is fortunate for us is that in the overwhelming majority of cases, all five of these ethical systems point us in the same direction. This is why we have the mistaken idea that we have some natural intuitive sense that guides us. We have a complex sense of morality, but in most cases there’s nothing complex happening so it all seems so easy.

Until it doesn’t. In the hard cases, what we see are two different systems giving us two different prescriptions for ethical action. Take the case of the murderer looking for the innocent victim. Deontology says to never lie, so tell the murderer where the hiding spot is. Because the harm of telling the truth in this case outweighs any minor harm from lying, utilitarianism tells you not to tell the murderer where the victim is hiding. Which do you listen to? In this case, utilitarianism.

But always? No. If we generate tremendous pleasure by enslaving a small subpopulation, utilitarianism says you have to do it. Deontology tells you that slavery is wrong. In this case, deontology wins.

In these two cases, it was easy to pick the winner. But in our hardest cases, it is not easy at all. That is why the hard moral problems are hard. We have a multifaceted account of ethics and the persistent problems, the ones that seem like they have no solution, are the cases where two or more of our moral systems disagree with one another concerning what to do and we have strong cases on both sides. It is not that these cases don’t have solutions. It isn’t that there is not a best answer. It is just that it is unclear what the best answer is. This is where we need to talk and think. This is where we need to weigh the strengths and weaknesses of the outputs of the different moral systems and engage in thoughtful, open-minded ethical discourse. These moral systems will not always determine the answer for us, but they will give us the comparative grounds upon which to collectively decide.

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4.2: Tendentious Jokes are Immoral

What is a tendentious joke? As a first approximation it's a joke that uses stereotypes as part of its structure and which is designed to introduce or reinforce a bias. The stereotype can appear in either the set-up, the punchline or both. If you want a classic example of a tendentious joke just think of a joke which hinges on the idea that blonde persons (especially women) are not as smart as everyone else. In its most common form tendentious jokes use negative stereotypes. There are, of course, many examples of tendentious humor, as many examples as there are negative stereotypes.¹⁸

So, what's wrong with this kind of humor? Isn't it, like any other humor, just using the shared cultural background of the comedian and audience? Don't all jokes play on expectations in some way? Can you even tell a joke without using some sort of stereotype? We don't have space in this chapter to address the broader questions about humor, but it will be fruitful to consider the issue briefly, at least as a point of comparison.

The simplest answer is that not all humor uses stereotypes because humor is broader than joking. Physical humor and practical jokes, for example, can be performed without leaning on our shared assumptions about different groups of people. If we restrict ourselves to verbal humor, we can still find jokes that do not use stereotypes. Knock knock jokes and observational humor are examples of joke styles that do not rest on stereotypes:

What did the 0 say to the 8?

Nice belt.¹⁹

It is possible, therefore, to be funny without using stereotypes. Does that mean that we should always avoid using stereotypes? Aren't there non-harmful stereotypes, even positive ones? If a joke uses the stereotype that isn't derogatory is that still a problem? In other words, is it harmful to use any stereotype, full stop, or is it only harmful if we use negative stereotypes?

Types of Stereotypes

To better answer that question we should consider some examples of stereotypes that we might use in a joke.

1. salespersons are mendacious,
2. Asian people are good at math
3. men are childish

To begin to see what's wrong with this sort of humor we can start by looking at the differences between those three examples. Once we've teased them apart we can more easily consider why stereotype using jokes should be avoided.

To start with we can see that (1) is about a category of persons that is not an intrinsic property. No one is born working in sales. Anyone who does work in sales can choose to quit and pursue a different line of work. So, when we make jokes about salesperson, lawyers, doctors, etc. we are not making fun of a characteristic that a person has no control over. Indeed, using the name for a job or career is just a shorthand for a series of actions. They don't describe inherent characteristics like skin color, gender, height, etc. If you don't like having people assume that you are a liar, you can stop working in sales. You can't stop being a man or being a person of Asian ancestry.

Does this make it OK to make jokes that incorporate the sort of stereotypes that we see in (1)? Maybe. For now, we can note that while it seems right to say that making fun of what a person does is not as troubling as making fun of who a person is, the people who are being mocked may not like it very much anyway.

Another important difference between the examples is that (1) and (3) are negative stereotypes while (2) is, at least on its face, a positive stereotype. It seems likely that putting someone down in a joke is worse than lifting someone up, and using a 130 positive stereotype might be an example of the latter. However, we should note that people do not always see eye to eye on the issue of whether or not a particular stereotype is positive. Latines are stereotypically said to have a good sense of rhythm.²⁰ This might be a positive stereotype, if you're Latine and looking to find a dance partner. But it can be a negative stereotype if you are a Latine with two left feet who keeps getting asked to dance by strangers who just assume that you are good dancer.

Indeed, in some cases, like the example in (2), putatively positive stereotypes are seen as a bad thing by many persons within the community. Many Asian Americans, for example, suffer from being used as examples of a "model minority."²¹ The stereotype that they are good at math, and science, is part of that burden. So, we can conclude, that, at the very least, if you are using a stereotype

that you see in a positive light, you cannot be sure that it will be seen that way by everyone. Furthermore, the use of stereotypes whether positive or negative will inevitably reinforce biased attitudes toward that group. If nothing else, this should cause some concern.

One last distinction that we can point to is that (3) refers to a group, men, who are generally in positions of power in our society. Does this mean that it's OK to make fun of them? Many comedians subscribe to the notions that it's acceptable to punch up, but not to punch down. Which is to say, it's acceptable to for someone to make of fun of people who have more power than the joke-teller or the audience. The idea, in brief, is that the group that is the butt of the joke, because of its privileged position, cannot actually be hurt by the joke. It is probably right to say that the ability to be harmed by a joke, or a stereotype, varies with the amount of privilege a person or group has within society. More powerful people, whether their power is economic, socio-political or structural are less likely to be vulnerable to the opinions of others. When you think of things this way it does seem like punching-up is a victimless crime. We should note, however, that even if some groups are less harmed than others by tendentious humor, that doesn't mean they aren't harmed at all. And, again, reinforcing biases that make it harder to see persons as unique individuals, and not merely tokens of their group, is something that we should be wary of.

So, we can see that even when we are just discussing tendentious humor and the use of stereotypes in a general way the whole thing is, at best, a problematic practice. Even before discussing the sorts of harms tendentious humor can cause we can see that there is at least a *prima-facie* case for concern.

Let's turn to the specific harms that tendentious humor can cause.

The Harm of Tendentious Jokes

In this section we'll look at three harms that tendentious jokes can inflict.²² Of course, this is not an exhaustive catalog of the harms of stereotypes in humor, but, even this brief list will make a strong case against tendentious humor.

We can start with the observation that individual members of a group, even one with significant institutional advantages can be hurt by the stereotypes in humor. Many individual men are no doubt bothered or hurt by the media's depiction of men as barely functional, overgrown children. It should be even more obvious that persons who are not as privileged as cis, straight, middle class men will often be hurt by the stereotypes used in jokes.

And even in the case of jokes about jobs and not identities, it's not hard to imagine that a lawyer being aggravated at the millionth telling of the "good start" joke. It is true that these jokes are not as damaging as some others, we might think of these instances as small scale harm, but it is a real harm nonetheless. And yet consider that tendentious humor isn't the only way to get a laugh, that the harms just mentioned, small as they may be, are not tempered by any great need. How can we then justify these jokes?

Of more concern are jokes that reinforce harmful stereotypes for groups of persons that are in positions to be harmed. Many racial, religious, ethnic and gender minorities spend their lives in harms way. They do not have the institutional advantages to protect them, as a class, from the damage that stereotypes can do. The biases employed in jokes exposed them to even greater danger.

The most obvious way in which tendentious humor is harmful is in the way that it can demean entire groups of people by employing negative stereotypes.²³ Anyone with a minimal awareness of humor and jokes is aware of the many shameful ways in which minorities can be depicted: Jews are greedy; blondes are dumb; Muslims are hateful; immigrants can't be trusted; women are crazy; and fat people have no discipline. To name just a tiny fraction of the stereotypes that are often used in humor. Consider how queer men and women might feel when they hear friends casually retelling homophobic jokes. But there is a different, more subtle, way in which stereotypes used in humor can be harmful.

One way in which jokes cause harm is via their role in social policing. Social policing is the use of social cues, such as humor, to reinforce norms. Take, for example, the social norm that men should be stoic.²⁴ The notion that men are weak or less manly, if they show almost any emotion²⁵ is enforced by peer groups via jokes at the victim's expense and which employ stereotypes to debilitating effect. You can see much the same effect in the supposedly playful teasing of little girls who don't express enough interest in being typically feminine. The girls quickly learn that to the only way to stop the teasing is to conform to the toxic norms. And, of course, recall that even in the case of so-called positive stereotypes, like the stereotypes of Asian students, the attitudes displayed in jokes, and stories, that employ them reinforce biases that place unfair pressures on the affected groups. Tendentious humor, when deployed in this way, robs us of individuality and the freedom to be the persons we want to be.

Finally, if we look at the role of stereotypes in reinforcing prejudicial attitudes, we will see a third type of harm. Jokes that employ stereotypes reinforce biases which cause fissures within society. The primary mechanism is similar to the what happens in the social policing examples, jokes use stereotypes to reinforce biases, but in this case the effect is to highlight and harden the differences between groups in society. This type of humor creates an in-group and an out-group. The out-group is mocked, belittled and out-right insulted with no particular care given to the effects of these actions. This is perhaps the most harmful result of tendentious humor.

Recall the example of jokes that make fun of people working in sales. We can now see why, even though a job is not a central part of a person's demographic identity, and so making fun of a lawyer is different from making fun of a black person, lawyer jokes still encourage us to adopt divisive insider/outsider attitudes.

When we make jokes at the expense of certain groups we set the stage for thinking of them as fundamentally different from us. This, in turn, makes it easier to think of the out-groups as alien, as not really belonging, and as inferior. Of course, this is in itself a bad thing, but it also makes it easier to pass laws and take actions that directly harm the out-group. There is a direct line between making jokes denigrating a group and adopting a hateful attitude toward the group. This style of humor drives wedges between in-groups and out-groups in a way that isn't just about solidarity or cultural affirmation, but about hurting the out-group.

Answering the Objections

If tendentious humor supports some of our ugliest tendencies, then why is it so prevalent? It's defenders often resort to two defenses:

1. Free Speech
2. It's just a joke

The free speech defense is insufficient. It is simply not the case that we can say anything and everything that we wish to say. There are prohibitions against lying on the witness stand or using racist language at work. It is true that not all forms of insulting or harmful expression are formally disallowed by law or corporate policy, but simply being free to say a thing does not make it acceptable to say it. We have a right to express 134 ourselves, but this does not give us a right to harm others. If tendentious humor is harmful, then it ought to be avoided by good people whether or not it is officially censured.

The more common defense among persons who enjoy this humor is that they're just jokes and that the offended group is too thin skinned. In other words, humor is not able to actually harm you, if you don't let it. It seems very unlikely that this is true. In the case of children being shamed into conforming with toxic norms it's not at all clear that they can defend themselves from the harm. In the case of out-groups the harm comes from the in-group's behavior, as affected by the humor-reinforced biases. How is a thick skin meant to keep a black person from being denied a promotion because of their skin color? How is a thick skin meant to keep an immigrant from being denied a job because of their accent?

Finally, proponents of tendentious humor assert a particularly problematic attitude. They argue that their preference for a type of humor is more important than anyone else's preference to avoid being denigrated and harmed. Is this a reasonable position for a good person to take? Should it be acceptable, morally or socially, to simply not care about the effect your words have on other people?

At the very least a person who wants to enjoy tendentious humor about blondes adopts the attitude that they don't think blonde women deserve to feel upset. The joke teller also does not care, if blonde women do get upset. Is that an attitude that a good person would embrace?

Jokes like those we have been discussing are harmful in themselves, but even more importantly they help to desensitize us to the resulting and related harms that accompany the humor and makes it easier to do even more and greater harm.

Footnotes

¹⁸ It is possible that a joke can express a bias without resorting to stereotyping. A joke could simply be insulting, crude or dehumanizing. In this essay, we will focus on the use of stereotypes, however the conclusions that we draw will hold true for tendentious humor across the board.

¹⁹ Share this joke with any male parent, they'll love it.

²⁰ Latine, pronounced lah*tee*neh, is a newer word that takes the place of latinx. Latine sounds better to fluent Spanish speakers and can be conjugated, in Spanish, in a natural way: un latine, los latines, etc.

²¹ <https://cmhc.utexas.edu/modelminority.html>

²² It would be a good exercise for the reader to consider what harms have been left out.

²³ Here we will focus on negative stereotypes, but recall that even seemingly positive stereotypes can be harmful.

²⁴ Boys don't cry.

²⁵ Men are allowed to be angry and horny and that's about it.

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4.3: It Really Is Just a Joke

Jokes are funny things. When I tell a joke, I'm telling it because I think it's funny, and I think you'll think it's funny too. Or I think it's funny, and I don't care if you find it funny, because I think it's funny, and telling it will tickle me. Or, I know you won't find it funny, which I will find funny.

As philosophers, we want to be very precise about what we mean when we use words, because the way we define words determines whether you and I can agree, and whether you and I are even talking about the same thing. Defining our terms assures both of us that we are talking about the same thing, and mean the same thing, so we can figure out if agree or disagree about that thing. When I say "jokes are funny things", philosophers the world over roll their eyes and demand that I be more specific. But I don't really have to be. Jokes are funny things, as I'll explain, and funny things have no necessary moral value.

Moral value is a term that indicates that a thing, like punting a baby, can be judged as either moral (good, ethical, praiseworthy, right, just) or immoral (bad, unethical, blameworthy, wrong, unjust). When we say something has a moral value, we mean that it is a thing that we can make moral judgments about. I make a moral judgment when I say that it is bad, unethical, blameworthy, wrong, and unjust to punt a baby, no matter how football-shaped that particular baby might be. This is a particular sort of judgment – a common one, but a specific one.

Another sort of judgment is a judgment of perception, or a conclusion we decide upon based on sensory evidence. I can judge a chair as green, while you could judge it as blue. When the room is brightly lit, the chair appears green to me. I judge it, that is, decide, that it is green. But when you walk into the room, the room is dark. You see a blue chair. You decide that the chair is blue. We can disagree about our judgments based on the sense data we collected from our experience of the chair at the time we saw it. We can disagree about the color of the chair. We won't know who is right or who is wrong about the color until we both go back into the room together and turn on the lights and look at the chair. Immanuel Kant called these a posteriori judgments²⁶. These judgments rely on experience to make and disagreements rely on experience or the senses (called empirical evidence) to resolve. Judgments of perception are amoral. This means that they have no moral value at all. I can be factually right or wrong when it comes to the color of the chair, but I'm not morally right or wrong if I see a green chair and you see a blue chair.

Another sort of judgment are a priori judgments²⁷. These are things we can judge without having any experience of them. I can judge a triangle to have three sides even if I'm not looking at a triangle and even if I've never seen a triangle. I can make this a priori judgment because I know that the definition of "triangle" is "a three-sided figure". I don't have to ever see a triangle to know that this is true, because I know what the word means. I can use the same sort of judgment to conclude that $2 + 2 = 4$. I don't need to count two things and then two more things to know that the total will be four things; it is logically, obviously, and automatically true, without empirical verification (or, to put another way, without having to use my senses to experience it as true). A priori judgments are amoral. It's not morally right or wrong for a triangle to have three sides, it's simply definitionally true that triangles have three sides.

I can judge, a priori, that jokes are funny things. In order for a joke to be a joke, it must be funny. If it's not funny, it's not a joke. I don't have to hear a joke to know it must be funny – funniness is the bare minimum of what a joke has to be in order to be a joke. It can be defined in more specific ways too, as philosophers of humor do, but the necessary condition for a joke to be a joke is that it is funny, and I can know this without ever needing to hear a joke and without ever having to verify it by hearing a joke. This is why I won't go further in specifying a definition. Whatever other features you throw in there – that jokes can be verbal or nonverbal, that jokes are told or performed by jokesters – it's an a priori fact that jokes are funny, whether verbal or non, etc.

Whatever jokes are, they're performed by people. Dogs don't tell jokes. We can find a dog funny, but a dog isn't going to ever say, "Stop me if you've heard this one...". Because people are the only things that can be moral or immoral, we assume that all the things that people do are subject to moral judgement – we don't say that a tiger is morally bad for stalking and killing a zebra, but we do say that a human is morally bad if they stalk and kill another person. Insofar as jokes are performed by people, it's common to impose all sorts of moral judgments onto them. But not all the things that people do are either good or bad, right or wrong, moral or immoral. The way I tie my shoes isn't a moral action, and it doesn't have moral value, neither does my preference for purple over pink.

But, some philosophers argue, when you laugh at a joke, or tell one, you are doing something that has moral value – you're morally endorsing the ideas of the joke, or signing off on those ideas, or agreeing with those ideas.²⁸ But that's just as silly as saying that

I'm morally endorsing the idea of tying my shoes in a certain way. When I tie my shoes bunny-ears style, I'm not doing it because I think it's morally right to do so, or that I'm endorsing it as the way everyone should tie their shoes, or because I'm agreeing that this is the moral way that shoes should be tied. I'm simply tying my shoes the way that I prefer. I don't prescribe that method to you or say you're bad for not doing it the same way. I'm not even thinking that it's the only correct, or morally right, way to tie shoes. It's just the way I tie them. If you told me I was doing something morally wrong in tying my shoes that way, it would be just as absurd as telling me I'm morally wrong for liking purple more than pink.

Laughing is involuntary.²⁹ It's a physiological, bodily response to a stimulus. To say that someone has done something morally wrong by laughing at a joke is as silly as saying that someone is morally wrong for sneezing. Saying someone is morally wrong for telling a joke is just as silly as saying that someone is morally wrong for thinking purple is better than pink. The person tells the joke because she thinks it's funny. You might not think it's funny, but you might not like purple either. You're not morally wrong for not liking purple, and you're not morally right or wrong for thinking the joke isn't funny. But it's not the joke's fault you don't like it. It's yours. You just don't find it funny. So, for you, it's not a joke. And as soon as you decide it's not a joke, you change the definition of what you've heard from "joke" to "statement" or "claim", and once you do that you can, and often will, start to impose moral categories onto it.

Let's take the following joke as an example:

What do you call a cow on the floor?

Ground beef

This one kills to an audience of five-year-olds. Little kids love punny jokes about animals – likely because they are just learning how language works and they're learning a lot about the different kinds of animals in the world. This is right in their wheelhouse, and boy, is it a knee-slapper. If you don't think the joke is funny but can see why a kid would find it funny, you will still understand it as a joke, but just not one that hits your giggle button. But if you can't see why a kid, or anyone else, would find it funny, then you probably don't think it's a joke at all.

A vegan or an animal rights activist (yes, these can be different categories even though they often overlap) might take huge exception to this joke. Not only does he not think this joke is funny, he doesn't understand how anyone could find it funny, and furthermore, he doesn't think you should find it funny either. As soon as he starts thinking in terms of "should"s, he's taken the joke and shoved it into a moral category and already begun to make moral judgments about it. He does not recognize this as a joke. He might recognize it as a statement, or a claim, or a sentiment, one that perhaps undermines the pain of the cows that are farmed under inhumane conditions and turned into mere products for human consumption.

This practice of making moral judgments about jokes requires two closely related but distinct moves. First is a category mistake and the second is a mistake in judgment. Let's take each one in turn.

A category mistake is when you judge something of one category by the criteria of a different category. When I take something that has no moral value and act as though it does have moral value, I'm making a category mistake. I make the same mistake when I confuse an "is" with an "ought"; when I say that because something is the case, that it 139 ought to be the case. For example, if I say, "There's nothing wrong with lying, people do it all the time", I'm confusing categories. What people actually do says nothing about what people should do. In the case of the vegan, he's taking something that has no moral value (a pun) and judging it by the criteria of something that does have moral value (a statement about the moral permissibility about turning cows into food).

This is precisely the mistake philosophers and non-philosophers make whenever they make moral judgments about jokes. The above joke is not arguing for the idea that grinding cows into beef is a good thing, nor is it undermining the pain and suffering of animals in industrial farming. And I can assure you that that six-year-old who loves that joke is not trying to slip in any moral implications whatsoever when she tells it. The joke is simple wordplay. It has meaning insofar as words have meanings that you need to understand in order to get the wordplay, but there is truly nothing beyond definitions of words at play here (pun intended).

Because jokes do require understanding of words in order to make sense, some folks argue that jokes require us to understand norms of cultural morality in order to get a joke. But this is a category mistake. All I need to understand the joke is to understand the meanings, or definitions, of words, not tie those words to cultural morality. I can get a joke and find it funny, or I can get a joke and not find it funny. If I get the meaning of the words and find it funny, I understand it as a joke. If I understand the meaning of the words and I don't find it funny, and don't understand why you find it funny, I don't think it's a joke. If I understand the meaning

of the words and then tie cultural morality to those words, then I'm making a category mistake, whether or not I find the joke funny.

As soon as I've made the category mistake of applying moral categories to an amoral joke, I can immediately (or automatically, or simultaneously) make a mistake in judgment. A mistake in judgment is when I judge something of one kind as if it is of a different kind. For example, if I refuse to believe that triangles have three sides until I've seen a large sample of triangles and counted the sides, I'm making a mistake in judgment. I'm using a judgment of perception when I could easily make an a priori judgment that will give me the right answer. By refusing to believe that triangles have three sides until I've counted enough of them to prove it, I've not only given myself a whole mess of work to do, but I've also given myself an impossible task. I'd have to count all of the triangles that have existed or could exist if the three-sidedness of triangles was the sort of thing that could be verified through the senses. No matter how many I count, I would always have to leave open the possibility that one day I could come upon a triangle that has more or less than three sides. Even someone like David Hume, one of the most famous empiricists in the history of philosophy (meaning that he argued that new knowledge could only be accessed through the senses), would say I'm making a mistake in judgment if I judge triangles as if they are the sort of things that can be proven or disproven to have three sides based on empirical evidence.³⁰

When I place a joke within the moral category and then make a moral judgment about it, I'm making both a category mistake and a mistake in judgment. I'm insisting that a joke is the sort of thing that has moral value, and then making a judgment about what that value amounts to – right or wrong, good or bad. But that has everything to do with me and nothing to do with the joke. I've miscategorized the joke, and then I've imposed moral judgments based on that miscategorization. The joke isn't wrong, I am.

Now of course you're thinking, "yeah sure, for a joke like that it's easy to argue that there's no moral value. But what about racist or sexist jokes? Those ones definitely have moral value!". Challenge accepted, dear reader.

"We like our beer the way we like our violence: domestic."³¹

Ooooooooo. Uh oh. Is that joke endorsing domestic violence? Is it making fun of people who are physically assaulted by their partners? Is it undermining the seriousness of intimate partner violence? Only if you make a category mistake. This joke requires you to know the meaning of words, but it doesn't require you to make any moral judgments about the words. It doesn't require you to defend the plight of abusers or have a moral disregard for their victims.

Comedian Bill Burr explains in his set that this joke was written on a sandwich board outside of a bar. A customer complained, and the manager said that that was just their sense of humor and to have beer. The customer took a picture of the joke, posted it on social media, and the subsequent outcry led to the firing of both the waitress who wrote the joke and the manager that defended her. As someone who understands jokes as amoral, he argues that firing these employees was completely unjustified. He says that it is a great joke: "there is zero fat on that – you need every word of that joke. You take one word out and it doesn't work, it's a perfect joke".³² He goes on to argue that no one who reads that joke is going to suddenly think it's morally acceptable to abuse their partner. "What are you telling me? You're telling me someone who never hit a woman is going to come walking in, read that joke, and just be like 'Wait a minute!'"³³

You may object that just because the joke wouldn't necessarily cause someone to actually abuse another person doesn't mean the joke isn't immoral. In other words, your taking the perspective that there is something beyond the actual consequences of the joke that determine its moral value, while Burr is arguing from a consequentialist perspective. Consequentialists argue that the moral value of an action is entirely based in the outcome of the action; if the action does not lead to negative consequences, like the abuse of women, then the action is moral. But you're making a category mistake. Burr isn't arguing from a moral position – he's arguing from the position that jokes have no moral meaning at all. If someone were to read that joke and derive moral meaning from it, they would be making a category mistake, just as someone who objects to it on moral grounds is making a category mistake. Jokes don't make people abuse people.

When you find a joke to be morally reprehensible, you're making a category mistake followed by a moral judgment. But it's not the joke's fault that you take moral exception to it – it's yours. That doesn't mean that you are at moral fault for your disgust or disapproval, it just means that you made a philosophical error in how you understand jokes. If it's not funny to you, and you can't imagine a world in which it is funny to anyone, then you simply don't recognize it as a joke. If you don't recognize it as a joke, you can make moral judgments about it so long as whatever category you do recognize it as is an expression of a moral category. But you'll want to be careful when you do that. Not every expression is an expression of a moral category, and you don't want to find

yourself making moral judgments about my preference for purple or the three sidedness of a triangle. You can be philosophically consistent and say that you don't like the moral sentiment expressed by a statement, but it would be a mistake to say that you don't like the moral sentiment of a joke. Jokes don't make moral sentiment. They make giggles.

Footnotes

²⁶ Kant, Critique of Pure Reason A7/B12

²⁷ Ibid B4

²⁸ I've even said this before, in Marra 2019 and 2020! I'm not alone though, and a lot of highly respectable scholars have made similar arguments – see Zaldivar and Julin in this volume, Kramer 2015, and Smuts 2010, among many.

²⁹ See Provine 2000

³⁰ Hume, An Enquiry Concerning Human Understanding, Section 4

³¹ This joke is referenced by Bill Burr in his 2014 special "I'm Sorry You Feel That Way".

³² Burr 2014

³³ Ibid

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4.4: Punching Up and Down in the Comic Thunderdome

During the 2016 Golden Globes, British comic Ricky Gervais told a joke so appalling that the world collectively gasped:

I've changed. Not as much as Bruce Jenner. Now Caitlin Jenner, of course, and what a year she's had. Became a role model for trans people everywhere, bravely breaking down barriers and destroying stereotypes. She didn't do a lot for women drivers. But you can't have everything, can ya? Not at the same time.³⁴

Referencing a fatal automobile accident involving Olympian Caitlin Jenner prior to her gender transition surgery, Gervais's joke pokes fun at the tragic death of another, "deadnames" a transgendered person, while perpetuating trite and misogynistic stereotypes. Ricky Gervais is known for his abrasive comedy, but the widespread backlash from all sides of the cultural and political divide indicated that this joke had crossed a line. For most, Gervais' joke was a classic example of "punching down"—i.e., when humor functions by "making fun of" a socially marginalized or vulnerable party. In recent years, the punch up/punch down framework has dominated popular discourse regarding what constitutes ethical comedy, and perhaps in no small part for its ability to make simple comedy's complex terrain. According to this framework, humor that punches up is not only ethical, but an act of social justice; humor that punches down, based on cheap and easy laughs of an already marginalized group, is considered bullying. Yet, is this framework too simple? This chapter examines the ethics of punching up (and down) and its suitability for assessing the ethics of humor in popular discourse.

Fighting with Humor

Comedy's pugilistic character is embedded in the violent language we use to talk about humor. A comedian "kills," "murders," "slaughters" and "slays" on stage ... if not, they "die"! Humor is biting, searing, and burning. Comics rip, roast, and tear into their targets in the punchline—a word with its origins in Mr. Punch's "playful" pummeling of wife Judy in the Punch and Judy puppet plays of the 19th century. The ferocious and aggressive nature of comedy's violent comic spirit manifests most explicitly in 20th century slapstick, a very physical comedic performance entailing a litany of violent comedic pratfalls—face slapping, eye-poking, nose turning, nose pulling, board thwacking, bowling-ball-head-hitting—to the uproarious amusement of its audience. Hence, on the surface it does not seem altogether misguided that we should discuss comedy with regard to throwing and receiving punches. Further, everyone has experience in comedic violence. Everyone has thrown a comic punch; everyone has been the butt of a joke. Yet, most fail to cultivate their comic sensibility so that they may harness its unruly spirit and reap the full potential for personal and social flourishing. Like the philosopher Spiderman once said, "with great power comes great responsibility," and like all powers, it must be used with great concern and care.

Punching up at Goliath: Comedy as a Defensive Strategy

In the realm of comic sparring, punching up is typically presumptive of a defensive (rather than offensive) attack. Presumably derivative of the expression "punching above one's weight" in boxing where one scraps against a far more powerful adversary, punching up indicates a David and Goliath battle where one of its combatants is an underdog. In most instances of punching up the target is perceived as physically stronger, but morally inferior. Such a comic jab is reactive and retaliatory—a form of self-defense against a bully or aggressor. When Michelle Brown, an African-American comic, joked at the 2018 White House Correspondence dinner that president Donald Trump is "the one pussy you're not allowed to grab," her joke threw a counter-punch against the president's own words that one should just "Grab 'em by the pussy ... You can do anything."³⁵ As both a woman and person of color, Brown's target punches up, from a marginalized position, at an individual who is perceived as a bully by multiple parties—not just to minorities and women, but to all victims of sexual harassment and assault.

The Power of the Comic Punch as Self-Defense

In the hands of a skilled wit, humor packs a powerful punch. Ancient Roman orator and rhetorician Cicero argued that humor is more effective than rational dispute in "break[ing] the force of offensive remarks (II.LVIII)," stating that "all admire wit . . . because it overthrows the adversary, or hampers him, or makes light of him, or discourages, or refutes him (II.LVIII)." As a means of self-defense, the searing retort of a skilled wit not only shields her from the cruel words a verbal assault, but temporarily strips one's aggressor of their privileged status through laughter's debasing ridicule. No one is fully protected from humor's eviscerating force—not even the Gods! When ancient Greek drama introduced comic elements into depiction of Gods and religious themes in their performances, German philosopher G.W. F. Hegel argued that the Gods become indistinguishable from humans because "the

religious consciousness no longer distinguishes between the divine and itself.” (Hegel, 450, 452-3) While many comic “Davids” have long praised humor as a great political equalizer, many political Goliaths, seeking to preserve their power and control, have loathed its debasing and destabilizing force. As John Lennon succinctly stated from his week-long “Bed In for Peace” in 1969, “The only thing they [the establishment] don’t know how to handle is non-violence and humor.”³⁶

Comedy as A Preemptive Power

An essential presumption of the punch up/punch down framework is the idea that a joke or comedic piece’s normative (ethical) value is located in the power structure between the humorist and its target, and not its content. On the surface, this framework seems far superior than attempts to view humor from the vague “offensiveness standard,” which suggests a joke is wrong if one has taken offense. Because offensiveness is an elusive quality varying from person to person and culture to culture, the mere feeling of being offended offers little ethical guidance in thinking about the ethics of humor. Such a consequentialist ethical framework, which reduces the normative value of comedy to matters of personal and cultural attitudinal tolerance, not only muddies the waters of ethical comedy but offers no consistent framework to think about one’s target prior to potentially degrading them. In addition, in instances where offense is taken, the joker can always shirk responsibility for the insult on the basis that one was “only joking” or unaware of one’s threshold for offense, which is of little comfort to the scorned victim of a painful insult. However, the punching up/punching down distinction does offer a consistent framework for thinking about humor before one tells the joke. Prior to hurling a potentially incendiary remark, one can ask, “does this joke harm someone or a class of people who are vulnerable? If so, I should probably hold this one back.” With these preliminary remarks in mind, let us examine the primary arguments in favor of punching up in comedy.

Arguments for Punching Up

(1) Punching up Levels Social Inequities

The primary justification for punch-up humor is the argument that punching up levels inequities, while punching down exacerbates them. In the 1883 satirical print cartoon “The Protectors of our Industries,” robber barons Vanderbilt, Gould, Field, and Sage lethargically rest on bags of gold while patting their bloated bellies with dollar signs bursting through their opulent suits.³⁷ As the reader’s gaze drifts from the gluttony depicted at the top of the picture to the bottom of the cartoon’s panel, the true source of their wealth is revealed to be the exploited 19th century industrial workers whose backs strenuously toil to support the greedy oligarchs for slave wages. Contrary to the self made “titans of industry” (or in more current language “job creators”) to be most esteemed for their bootstrap-pulling grit and determination, the cartoon depicts the robber barons as greedy, lazy, lecherous scoundrels who keep their bellies and coffers fat off the backs of exploitative wage labor. The cartoon not only directly attacks specific people, but the idea of capitalism as a whole. The cartoon “levels” the power structures by stripping the “titans” of their perceived greatness while empowering those who are the true wealth generators of the world—the nation of factory workers and laborers who toil daily for meager pay. On the other hand, political humor debasing a marginalized group with a history of oppression—as was the case in Charlie Hebdo’s racist depiction of Muslims as violent terrorists—further divide existing power structures in ways that only perpetuate present inequities with no vision for resolution.

(2) Punching up has an Ethical Foundation

Further, because the idea of punching-up is an idea with its foundation in an ethical purpose—namely righting some larger social injustice—it encourages people to approach humor in relation to right and wrong, good and bad, just and unjust, while simultaneously placing serious demands on wielders of weaponized comedy to take deep responsibility for the consequences of their words in the free play of comedic jousting. Long before the phrase “punch up comedy” came into vogue, satire from its earliest days has always punched up. From Aristophanes to Swift, the greatest satirists aim to instigate social change for the common good. In the previous example, the political cartoon’s attack is not, as some would argue, a spiteful reaction to the success of the affluent, but an earnest hope for a more equitable world. While not all punching up functions to bring about social reform, the fact that punching up has baked into it a social aim offers a far more fruitful framework for navigating comedy’s complex ethical terrain than critics allow.

(3) Punching Up is Non-Violent Political Participation

Finally, the force of laughter’s power is as close you can get to violence, without actually committing real physical violence. To quote a T-Shirt I once saw at an amusement park: “I love sarcasm ... It’s like punching people in the face, but with words.” Comic

burns sting and fester in one's psyche, sometimes for years after the 148 punch was thrown. However, while it is not impossible die from laughter,³⁸ no one has been physically murdered by a joke. In addition, like other forms of non-violent protest and political engagement, late night satirical news programs have become an integral component of contemporary political discourse in recent decades and continues to drive public discussion on important social issues of the day. Of course, there will always be those who abuse the free space of humor without concern for ethics, and sometimes such reckless use of the comic results in real physical violence, as was the case on January 7, 2015 when two hooded gunmen forced their way into the Paris offices of Charlie Hebdo and committed France's deadliest terrorist attack—killing 12 of the Hebdo staff. However, such examples only demonstrate the need for a preemptive ethical framework. If one were to consider the power dynamics of any social conflict prior to attacking it and any potential consequences that might arise when anger, offense, and resentment foment into real violence—rather than recklessly abusing the free frivolity of humor by lobbing comic haymakers from protected walls of power and privilege—such tragedies would likely never happen.

Consequently, there is good reason to consider the punching up framework as a general tool for thinking about comedy. Where punching up is based in an earnest concern for justice and comes to the issue through lenses of social reform, punching down recklessly abuses the free space of the comic in order to further assert power over already vulnerable and oppressed groups in ways that only further exacerbate inequities their oppressors enable. Yet, the idea of punching up is not without its critics. Let us now examine some of its major challenges.

Arguments Against Punching Up

Criticism 1: Comedy Trivializes Important Social Matters and Problems

From satire's early origins, adherents of punching up have faced a recurrent attack from critics on both sides of the political divide. If the purpose of punch-up comedy is to right a wrong or achieve major social, political or economic reform, humor seems a poor rhetorical device to reach such a goal. Not only does the ambiguity of comedy afford a real danger for misinterpretation,³⁹ but, even when understood, a piece of satire always risks diluting and (even worse) devaluing its message in the playful levity of humor's frivolity. Satirical attempts at addressing institutional misogyny or racism, even in good faith, have been attacked for trivializing important social issues that, critics argue, should be treated with sober and earnest concern. More recent attacks correlate political apathy to the "memeification" of culture that transforms every important social, cultural, and political event into a viral meme. For these critics, because everything becomes a joke, so does civic and political engagement. While some argue that these memes give light to important social issues, many question the ability of memes to have any lasting impact on the short-term memory of a social consciousness so easily distracted by the shared social seduction of meme culture's latest obsession.⁴⁰

Some critics see a far sinister consequence of using comedy to address social issues—nihilism. Thinkers from Plato to Baudrillard have bemoaned the apathy that results from devaluing and debasing important ideals, values and social problems. Lamenting the post-irony of contemporary culture long before it would become memeified, American author David Foster Wallace (1962 - 2008) attacked his generation's apathetic insincerity.⁴¹ For such critics, when all is suitable in comic jesting nothing is taken seriously and everything becomes a joke. It is for this reason that thinkers like Plato place strict regulations on the use of humor against the state and its institutions. For Plato, joking about important ideas runs the risk of devaluing essential religious, ethical, and political structures that society is based upon. Since Plato, many critics have expressed similar concern regarding the use of humor as a means for achieving social reform. Instead of social change, these critics argue that jesting about important social issues is more likely to result in skepticism and nihilism—a far sinister threat to society.

Criticism 2: Only the Marginalized Can Joke

Other critics argue that punching up places burdensome and unnecessary limits on the free play of comedy, absurdly restricting humor to the marginalized and oppressed. From this interpretation, a person in power who unjustly falls victim to mob rule (as happens when one is called out or "cancelled" online) seems to prohibit retaliation given their placement in the social hierarchy. Nearly all agree that jesting is an acceptable means of self-defense, and it seems contradictory to allow for humor in the name of equality while placing restrictions on who can joke about what and why. These attacks typically result in arguments over the importance of free speech and the need for ideas and jokes to play out in the cultural (rather than political) marketplace. In short, even in the name of social justice, most democratic societies would find implausible the idea that humor should be regulated by one's social hierarchical position.

Criticism 3: Which Way is Up?

Finally, and most importantly, who or what party determines the direction of a joke's punch? In examining Gervais' Golden Globes' joke about Caitlyn Jenner, the majority of his critics perceived it as a clear instance of "punching down." Yet, from Gervais' perspective, he was punching up. In his comedy special "Humanity" (2018) 151 released two years after the Golden Globes' backlash, the British comic had this to say of his joke:

I'm playing with the notion of stereotypes. I start off saying she's a real woman... and I go, 'Oh, well, she's a real woman, I hit them with the old fashioned reactionary stereotype: She must be a bad driver then. The target of the joke is a celebrity killing someone in their car ... Let's not forget that, shall we? A celebrity killing someone in their car, running home and popping on a dress — that's the target of the joke, just so we're clear.⁴²

In Gervais' mind, the joke intended to draw attention to the fact that a powerful celebrity got away with murder.⁴³ For him, the joke's target is not the transgender community, but rich and powerful celebrities who use their position of power to cheat the system. Even though Caitlyn Jenner is a member of the most marginalized group in the LGBTQ community,⁴⁴ Gervais insists his target was not the transgender community. Regardless, it cannot be denied that Caitlyn Jenner, as a member of one of the most visible and powerful families (the Kardashians), is seated in a far higher position of social power with far greater global presence and power than Gervais.

Gervais' joke reveals a major problem in the punch-up model that defenders must address. As the previous example illustrates, the simplicity of punching up or down posits a Manichean moral perspective where one party is evil, the other good—when in reality all relationships are based in a very complicated web of power structures with its own unique set of ethical challenges. In most conflicts, rarely is a singular oppressor outed as a Machiavellian Goliath universally recognizable to all. In short, identifying and objectifying power structures in the complicated power dynamics of society, culture, government, politics and religion is an incredibly difficult task, especially when each party perceives its adversary as the oppressor (as is certainly the case in many longstanding political, religious, and cultural conflicts). Regardless of who is in power, all parties see themselves as the oppressed, and some argue that examining comedy through the lenses of social hierarchy only further obfuscates already complex social conflicts.

Responses to Criticisms

If true, the above challenges reveal some major flaws in the punch up framework. Yet, I think these attacks assume a weak version of the position uncharitable to the spirit of the model, whose flexible framework seems to facilitate (not obstruct) the free flow of public discourse between power structures in conflict with one another. Let us address these attacks so that we can come to see why such a framework is more productive than critics suggest.

Response to Criticism 1: "Comedy Trivializes Important Social Matters and Problems"

The claim that punch-up comedy trivializes and ultimately devalues the issues it aims to remedy is a concern for all who wield comic power on the battlefield of social reform. Yet, while it is true that the playful levity of comic sphere affords a freer means of discourse for addressing important social issues, to suggest that satire universally and consistently devalues the social problems it aims to remedy overlooks the presence and importance of art (and comedy in particular) throughout the major cultural and political shifts since antiquity. Political and social change is inseparable from the art and comedy that emerges within its unrest. Satire has long been utilized as a weapon against political oppressors to not only degrade their adversary, but to also inform and illuminate social conscious as a whole on important political, ethical, religious and social problems apart from the establishment's account. In short, comedic aesthetics will always be a voice of the oppressed in their fight for social reform. While it is true that research suggests that satire has little impact on changing people's mind (only emboldening pre-existing attitudes),⁴⁵ any piece of political art provides an opportunity for discussion, reflection and sometimes action. While memes, as with any comic rhetorical device, always run the risk of relegating important matters to a punchline or ironic hashtag, the playful realm of humor offers a less belligerent space to illuminate and discuss complicated social issues in ways that can foster meaningful discussion in hopes of working towards a peaceful resolution.

In short, to blame the crass nihilism of modernity on grumpy cat memes—and not the structural problems that enable oppression—seems to misunderstand the realities of class conflict and how democratic political systems operate. While comedy can debase and devalue targets, such debasing can be good if it draws attention to important social issues that some may be otherwise oblivious to.

While there will always be causalities that lay in the battlefield of comedy's vicious assaults, the potential that comedy holds for furthering public and social discourse on important political issues seems to far outweigh any potential harms it might cause on the way to social reform.

Response to Criticism 2: "Only the Marginalized Can Joke"

The challenge from critics that punch-up comedy denies non-marginalized parties from using humor in public discourse seems to straw man the position into a framework few would defend. A more charitable interpretation would never deny or limit specific voices from engaging in public discourse within the comic thunderdome— especially if speech is the only legal means of retaliation in a democratic society. In all, those in favor of punching up for social reform would surely want to advocate for the free use of humor. However, this charitable framework would oblige people to consider the direction of their verbal attacks and thereby assume responsibility for harms beyond its initial sting, including the values and voices that are raised up and devalued in the process. Consequently, the retweeting of a degrading meme targeting an AfricanAmerican football player for his refusal to stand for the national anthem by the President of the United States to his hundreds of millions of followers worldwide is not only outright bullying, but immoral.

Response to Criticism 3: "Which Way is Up?"

The most compelling critique of punch up comedy is that it lacks a clear indicator for identifying unjust power structures. If true, weaponized comedy on the battlefield would offer little guidance when each combatant views its adversary as the morally inferior party. Without a God's-eye battlefield perspective to designate who is the oppressed and oppressor in each conflict, it is unclear how such a framework could be used for facilitating social progress. In response to this criticism, this problem would be less of an issue if all parties adopted the punch up framework, including the comic Goliaths of the world who abuse their power to silence others. The punch up framework is a preemptive battle strategy that forces people to consider the context of the situation, the historical relationship leading up to the conflict, and the weight and meaning of words as they relate to these historical and material forces. Although this framework would not expect to eliminate bias from the conflict, it does seem to offer a space for each party to think through the various power dynamics that may otherwise be concealed by power and privilege.

This interpretation seems to also address attacks that the punching up/punching down dichotomy oversimplifies the complex nuances of contemporary humor. To the contrary, viewing comedy from the perspective of power seems to allow for far greater nuance than its critics allow. Those who come to the comic battlefield with an eye to complex web of power structures and cultural forces in play with have a better strategy for navigating and battling through the complicated debate that confronts them and the issues and values at stake for all involved.

For those who remain unconvinced of the viability of an ethics of humor that is based on righting unjust power structures, it must be reiterated that the entire system is based in an ethical foundation of justice that obliges all to take responsibility for their comic assaults—especially for the marginalized who are calling out and publically berating their presumed oppressors. Those who challenge authority with weaponized humor must see it as their obligation—as it is with all who challenge authority and status quo—to establish the burden of proof that the standards, values, and ideals in question 155 are indeed in need of reform. Such comic warriors will have to carry out their fight with unrelenting political vigilance both in and out of the comic thunderdome.

Conclusion

To summarize, the punching up framework deserves continued consideration as a means for navigating the complex and chaotic battlefield of weaponized humor. While some critics challenge that the ambiguity and frivolity of humor muddles and ultimately counteracts the problems satirists address, such a position overlooks the value of using the free space of the comic to play with and think through complex ideas in a way that facilitates, and often furthers, public discourse on important social matters. Until a better model is offered by its critics, and given the increasing role of humor in political discourse, it seems we must learn to punch up.

Footnotes

³⁴ <https://www.hollywoodreporter.com/ne...-golden-854126>

³⁵ <https://www.nytimes.com/2016/10/08/u...ranscript.html>

³⁶ "When it gets down to having to use violence, then you are playing the system's game. The establishment will irritate you – pull your beard, flick your face – to make you fight. Because once they've got you violent, then they know how to handle you. The only

thing they don't know how to handle is non-violence and humor." During the Bed-In for Peace in Montreal, Canada (1 June 1969)

³⁷ <https://www.loc.gov/pictures/item/94507245/>

³⁸ Though incredibly rare, with nearly all instances of death laughter sourced from classical and medieval commentators, there have been but two recorded instances of death laughter in the 20th century, with none since March 24, 1975 when Alex Mitchell was said to have laughed himself into cardiac arrest while watching an episode of *The Goodies* entitled "Kung Fu Kapers" starring a Scottish "Eckythump" ninja who is "armed with a black pudding." His widow is said to have written the show to thank them for making her husband's final breaths so happy. <https://www.telegraph.co.uk/news/health/healthsyndrome.html>

³⁹ In a 1974 research case study on public perceptions of Norman Lear's satirical program "All in the Family," it was revealed that many had simply misunderstood Lear's satirical aim, instead viewing the bigoted patriarch in a likeable and comical way. (see Vidmar and Rokeach 1974)

⁴⁰ While the viral Kony meme remains a mainstay in meme culture, the "invisible children" were forgotten when the internet became obsessed with the death of a 17-year-old Gorilla at the Cincinnati zoo, which was shot by a zoo worker to protect a 3-year-old who climbed into the gorilla's habitat. Today few would recall what either viral meme was about, but both Kony and Harambi remain comedic pillars of meme culture.

⁴¹ In Wallace's "E Unibus Pluram: Television and U.S. Fiction" (1993), he calls for a new genre of literature that is based in a sincerity, not apathetic post ironic posturing. This theory would be developed in his 1996 novel, "Infinite Jest."

⁴² <https://www.standard.co.uk/stayingin...-a3789111.html>

⁴³ While prosecutors did not charge her criminally, three civil suits were filed against Jenner which reached out of court settlements of an undisclosed amount.

⁴⁴ The transgender community has the highest rates of mental illness, homelessness and drug abuse. See Kattari and Begun (2017).

⁴⁵ See Knobloch-Westerwick & Lavis (2017) and Boukes, Marjolein Moorman, & de Vreese (2015).

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CHAPTER OVERVIEW

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5.1: Aesthetics

Many philosophers believe that there is a distinction between two types of sentence: sentences of fact and sentences of value. Fact sentences or descriptive sentences say how things are. The sky is blue. I am hungry. Value sentences, prescriptive or normative sentences, on the other hand, don't tell us how things are, but how they ought to be. One sort of value sentence concerns how humans ought to act. That is the purview of ethics, our last chapter. But there is another sort of value sentence that we need to discuss – aesthetic claims. **Aesthetics** is the study of value judgments concerning art and beauty.

“Does this soup need more barley?” That is an aesthetic question. Would the addition make this object, intentionally created by a human for the sake of artistic appreciation, something that inspires a greater sense of quality? The answer could be yes or no, but either way the person responding would have a reason for it. “The texture is great, adding more would soak up more liquid and it would be too thick. It would feel funny in your mouth.” So, how do we determine what sorts of arguments work and which ones don't in this kind of matter?

Leo Tolstoy famously drew a distinction between two distinct distinctions concerning art. On the one hand, there is the distinction between art and non-art. On the other hand, there is the distinction between good art and bad art. The first distinction draws the line between those acts which we will consider artistic and those which we do not. This became an important question in the 20th century when modern art was often self-reflexive, that is the subject of much art became art itself. Artists pushed the boundaries, challenging artistic norms and historically accepted rules, trying to force the community to grapple with the boundary between art and non-art.

The French artist, Marcel Duchamp, for example, took mass produced objects, what he called “Readymades,” and displayed them out of context in galleries. His most famous work, “Fountain,” was a urinal displayed as a sculpture. Another, “In Advance of the Broken Arm,” was a snow shovel. These were objects that we had seen many times and not thought about. But now, displayed out of place, they seemed weird. When looking at them, you see them differently. “Why is this here? Really, a urinal?” is where the internal monologue starts. “What could he be saying with this?” it continues, “Is it a 157 political statement about how modern life makes us pissed off? Is it that this is something we do in private and now the thing is displayed publicly, so he's saying the job of art is to bring the personal out in the open? Is it just a gag? Is he messing with us? Is this even art? I mean, I could place random things around, does that make me an artist? But why this thing?” Art challenges what art is, but what exactly is it? That is a philosophical question.

But it is only one philosophical question. Once we can distinguish art from nonart, we need to think about how we judge art. What makes one piece of art better than another? What makes one thing more beautiful than another?

The temptation is to wave these questions off, to remove them from philosophical discussion by saying that it is all just a matter of taste. It's subjective. **Aesthetic subjectivism** is the view that the quality of a work of art is a function of each person and determined only by how much that person likes it. It is absolutely true that there is taste, that is, every person likes different things to different degrees. One need not have any intellectual justification for one's taste. If chocolate ice cream tastes better to you than vanilla, then it just does. There is no rational argument that can change your mind. It tastes as it does and you just prefer one to the other. End of story.

While there is an instinct to go immediately to that position, it has deep flaws. It is true that we have different tastes, but we also have guilty pleasures. Have you ever liked something, say a television program, that you know is bad? “I know this not good writing, terrible acting, and cheesy special effects, but I just love it.” We all have something that we enjoy, yet know it is of inferior quality. In the other direction, we can admire the artistry of something we don't enjoy. “I don't like this kind of music, but I can really hear how good she is with tone, rhythm, and depth of lyrics. I'd never listen to it, but that's a quality song.” These sorts of claims, of course, only makes sense if we also believe in a distinction between taste (what we like) and quality (what is good).

So, if we want to try to figure out what makes a piece of art good art, the challenge is “who's to say?” The answer, of course, is we are. You, me, philosophers, people who think hard about these questions.

Some have placed the determination of the quality of the art within the piece itself. **Formalism** is the view that the aesthetic quality of the work is a function of the formal properties of work. In visual art, the eye prefers symmetry, so questions of 158 balance and geometric structure would be relevant to determining the quality of a painting. Complexity impresses us. If something is intricate and clearly difficult to do, then we elevate the work. Similarly, if the artist misses the mark, we condemn it. If you are listening to a

pop song and the drummer is off rhythm or the singer is unintentionally off-key, these would be formal flaws that would make the song lower quality. “That was a terrible rendition of the national anthem, she was flat on some notes and completely missed others. She screeched on the high notes. Oooof. It was terrible.” This is more than “I didn’t like it,” it is justifying panning that performance with reasons that refer to internal elements of the performance itself.

Intentionalism is the view that we cannot judge the quality of the work by only looking at the elements of the work itself, but need to also consider the intention of the artist in creating it. Pablo Picasso’s *Guernica* is horribly ugly. But that is what makes it such a great work of art. It is meant as a response to the needless killing during World War II. It is intended to illustrate the ugliness we have shown toward fellow humans. If you didn’t know that this was Picasso’s intention, you could not properly appreciate the work.

it, we taste it (culinary art only – don’t try licking paintings in the art museum, please). But artist’s intentions are not on display. They are in the head of the artist. We cannot know what was intended. The artist herself may not even know. And if the artist is dead...now we have no chance of legitimately gaining access to this information.

So, formalism puts the important aspects of judgment in the work and intentionalism puts it in the mind of the artist, there is one more place it could be – in the experience of the audience. Aesthetic expressivism is the view that the job of art is to express and evoke human emotion. If a sad song makes you cry, it was a good song. If a movie leaves you uplifted and inspired, it was a quality film. The work of art is meant to move the audience and if the audience is moved, then it did its job.

A competing view that looks at the reaction of the audience to the work is aesthetic cognitivism. Aesthetic cognitivism is the view that works of art make us think, they convey ideas. The more intellectually affective a piece is, the better it is. Immanuel Kant famously distinguished between two sorts of reaction we can have to art. On the one hand, we can think it beautiful. Beauty is when we lose ourselves within the qualities of the work. “Oh my gosh, this is so delicious, I can’t stop eating it. I’m completely stuffed, but I still want more.” A work is beautiful when we appreciate it fully for what it is. It draws us in and we want to stay focused on it. “That is so beautiful, I can’t look away.”

On the other hand, Kant argues, some art is sublime. Something is sublime when it takes us beyond it and beyond ourselves. The beautiful allows us to get drawn in and appreciate thing itself, the sublime blows everything up and puts us in touch with something higher, bigger than ourselves, beyond our own limited perspective. Religious art is intended to take us beyond our own mind to a sense of awe associated with the Divine.

Let’s turn our gaze from religious art to ethnic and dirty jokes. We will consider a question in humor aesthetics – what makes a joke a good joke. Comic moralism is the view that jokes with morally problematic elements are less funny for being immoral. Comic immoralism is the view that immoral content makes a joke funnier. Comic amoralism contends that the quality of a joke is irrelevant to the moral status of its content. Does the ethical status of the content of the joke matter?

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5.2: Why Moral Failure Leads to Comic Failure

Comic moralism is the view that morally problematic content in a joke decreases the funniness of the joke. It will be assumed for the sake of the argument that jokes can have immoral content and we will ignore the resultant ethical questions about whether it is morally right or wrong to tell such ethically problematic jokes. The claim here is that even if you have no problem delivering these sorts of jokes, you shouldn't tell them – not for moral reasons, but for artistic ones. They are less effective jokes.

Humor is a particular type of art form, it is “teleological.” The word “teleology” comes from the Greek words “telos” which means aim or goal. Something is teleological if it has something it is seeking to accomplish.

Some art is teleological and some art is not. Non-teleological art is creative work for its own sake. Consider miniatures, that is, tiny replicas of large-scale objects, like doll furniture. There was a movement wherein artists created incredibly intricate copies of ornate furniture using all the actual materials but they would be three inches high. The talent and patience required was incredible. These pieces are stunning. But there is no purpose beyond themselves that they serve.

Think of art as creating relationships. In the case of non-teleological art, the only important relationship is between (1) the artist and (2) the artwork. Whether you see it, whether you are impressed by it, whether you like it is irrelevant. The goal was simply for the artist to make it. Non-teleological art has a two-place relationship at its heart.

Teleological art is intended by the artist to do something, to be a tool for some goal beyond the work. That goal could be of one of two types: external or internal. External teleological art is art that is meant to give rise to an impulse in the viewer to act in the world. Pete Seeger's folk songs, for example, were intended to inspire political activity that would benefit workers, the poor, world peace, and the environment. He wrote and performed his songs with the intention of creating in his audience a feeling that would then be translated into action beyond the concert venue.

In the case of external teleological art, the relationship is four-part (like Pete Seeger's harmonies). There is (1) the artist who created (2) the artwork that is then viewed by (3) the viewer who is then inspired to change (4) some element of the wider world. The fourth element in the relation is the externality.

Internal teleological art is art that has a goal, but the goal is simply to create some sort of response within the viewer. Consider a horror film. The goal is to scare the viewer. It is teleological – if you are not scared by the horror film then it failed for not achieving its goal. But while it is teleological, the goal has nothing to do with the broader world beyond the engagement of the viewer with the artwork. That fright is not meant to lead you to do anything after you are done watching. The telos is not external to the viewer, but internal. As such, internal teleological art has only a three-place relationship at its core: (1) The artist creates (2) the artwork to give rise to some affective state within (3) the viewer.

Jokes are internal teleological works of art. There is a goal to telling a joke, but it is not something beyond (1) the teller, (2) the joke and (3) the audience. The goal of telling a joke is a particular affective state of the audience, comic amusement. Maybe that comic amusement generates a laugh, maybe a smirk, if it is a bad pun an eye roll, if it is a really bad pun a slap upside the head. But the point of the joke is to generate within the listener a particular emotional state.

What is fascinating about comic amusement is its complexity. It is generated in a two-step cognitive process. First you have to get a joke, then you have to appreciate it. Both of these are cognitive acts. Both require neurological processing. But they are distinct. You can do the first without doing the second.

This is not universally true for internal teleological art forms. In the case of the horror film, we also have an internal teleological artform, but the scare is (usually) a one-step neurological process. The music slowly swells, the character creeps slowly toward the curtain, pulls it back nervously to see nothing behind it, they (and you) let out a deep breath and relax. They turn around to see **THE KILLER IS RIGHT BEHIND THEM WITH HIS KNIFE READY TO STRIKE!** You scream, your heart races, your breathing stops and then quickens. It all happens in an instant. It is a one-step mental process that gives rise to this immediate reaction. Yes, there are psychological thrillers that function more like jokes with a two-step process to give rise to a deep sort of fear, but the standard shock-based horror effect is a one-step process (despite the significant psychological priming it takes to set it up well).

Jokes, however, have a two-step process: getting the joke and appreciating the joke. A joke that fails to meet the first goal is what comedians call a joke that “does not land,” that is, it goes over the audience's head. Have you ever said something jokingly and the person you said it to didn't even realize it was a joke? That is a failed joke of the first kind.

A failed joke of the second kind is a joke that lands, but does not succeed in generating comic amusement. “No, I get the joke. It just isn’t funny.”

Failed jokes should be distinguished from bad jokes because the term “bad joke” has a different meaning when we use it in conversation. Dad jokes are corny, clean, pun based jokes. By virtue of their corniness they are bad, but they can be effective, especially when delivered at an unexpected time. Kids, in spite of themselves, smirk at the joke while saying, “Daaaaaad.” Alternatively, many a comedian has been highly successful by pretending to be an incompetent comedian and getting us to laugh at flawed jokes (poorly constructed or intentionally badly delivered). These are bad jokes, but they are still successful jokes because they created comic amusement in their audience. We are not interested in such bad jokes, we are only concerned with the distinction between successful jokes and failed jokes.

So, to take stock of where we are, jokes are works of art. Further, they are teleological works of art, they have a goal. That goal is an internal goal, that is, it involves an emotional state of the audience and need not go any further. That emotional state is complex in having two parts – landing and appreciation. A joke is successful if and only if the teller tells the joke, the audience hears the joke, gets the joke, and appreciates the joke thereby ending up in a state of comic amusement.

We need to focus on success and failure in the second part of the processes. Once the audience gets the joke, what is it to find yourself in a state of comic amusement?

The first thing to notice is that comic amusement is a totalizing emotional state. When you are really laughing hard at something, that is the only thing you can think about. Full-on hilarity takes over your body and your mind completely. You double over, your sides hurt, you can’t catch your breath, as much as you try to stop laughing, you can’t. And just when you think you have yourself settled down and under control, it starts again and off you go. Laughter forces everything else out of your mind for the period of amusement.

This is why we take someone who is in pain (physical or emotional) and try to cheer them up by making them laugh. If you can get the person laughing, then, at least for the brief moment when they are laughing, they stop feeling the pain. Henri Bergson, in his classic book *On Laughter*, says that comic amusement creates “a temporary anesthesia of the heart.”

But it is hard to get someone in pain to laugh, certainly harder than it is to get a person not in pain to laugh. And the easiest thing is to get people already laughing to keep laughing. If you are around friends, you are relaxed and laughs come easily. Comedy clubs have opening acts for their main attraction because if the earlier comic already has you chuckling, the headliner will have an easier time making you guffaw. The two-drink minimum at these clubs help, too. Alcohol relaxes you and lowers inhibitions (like laughing loudly in public) and increases the likelihood of comic amusement.

But the person in pain has to overcome the pain to get to where they are capable of laughter. If, say, someone is mourning the loss of a loved one, their mind will be so focused on the grief, their memories, and the loss that the ability to totalize their emotional state with something humorous will be extremely difficult.

In cases like this, there is a competition between affective states. The person is in an emotional tug-of-war. Grief and comic amusement are both totalizing emotional states and so the person can only be in one at a time. They may alternate. This is what often happens at a funeral when endearingly funny stories are told about the departed. For a brief moment we are joyful transporting ourselves mentally back to that time the funny thing happened. It allows us to escape our sadness for that moment. But when the moment is over, the sorrow returns. With grief and comic amusement it is one or the other, not both.

Moral indignation is another totalizing emotional state. When we see something that is truly ethically problematic – not some minor, using the wrong fork on your saladtype breach of etiquette, but a really morally despicable act – it has an effect on us mentally and physically. There is outrage. There is the desire to have it stopped. There is the urge to see if the victims can be helped. There is a yearning for revenge against the perpetrator in the name of justice. All sorts of cognitive elements bounce off of each other, as the body reflects the state. Your heart rate increases, blood flow makes your 164 cheeks and the back of your neck flush, eyes open widely. We react to immoral acts in a totalizing way.

Sometimes we just pretend. We feign moral outrage when something challenges a political view we hold, or when we want others around us to think we agree with them, or want them to think us as high-horse moral authorities. But these are not the cases we are talking about. We are dealing with the reaction when confronting authentically morally problematic actions. These have an effect

on us, not because we choose to act as if we are offended, but because we really are. And in these cases, we should be. When you see something immoral, you ought to be upset by it.

And again, that upset is totalizing. It demands our full attention. It dominates our emotional being.

So, what happens when we put the Mentos of immorality in the Diet Coke of humor, that is, what if there is morally reprehensible content in a joke? It may well pass the first test and land. The audience may understand that it was a joke. But in trying to appreciate the joke, the mind will focus on the immoral content. The tug-of-war is on. The joke is demanding full control of the mind because the comic amusement it is trying to create is totalizing. On the other hand, the mind will find itself focusing on the harm and injustice associated with the immoral content. The moral disgust will demand the resources of the full mind as it, too, is a totalizing emotional state. The comic amusement and moral disgust will refuse to compromise, they cannot share the mind. Their nature is totalization.

There are three possibilities. Either one of them wins or it is a tie. If the moral indignation wins, then the joke is deemed inappropriate and dismissed. If it is a tie, then just like the funeral story, there will be alternation between the two and comic amusement will only get half of its time, thereby decreasing the effectiveness of the joke. If the comic amusement wins, then the utterance is deemed a successful joke, but emerges like a heavyweight champion boxer who just won a title bout: bruised, bloody, with a swollen eye. The joke may be recognized as funny, but because of the tug-of-war it used up much of its energy that it was going to use generating laughs. So, no matter which of the three it is, the joke has lost some of its artistic capital, the immoral content had the effect of rendering the joke either unfunny or less funny.

It is important to note two things about this conclusion. First, note that this is not an all or nothing proposition. The claim is not that immoral jokes can never be funny at all. The claim is that the immoral content necessarily decreases the joke's effectiveness. An immoral joke may or may not be funny, but it is less funny for being immoral. The ethically troublesome content acts like an anchor, a drag that drains at least some (and sometimes all) of the artistic/emotional energy out of the joke.

Second, comic moralism is not the ethical view that you should not laugh at jokes with immoral content. Remember that comic moralism is an aesthetic view, not a moral one. It is a question of the joke's effectiveness. The joke had a job to do, an artistic job, and the only thing we are concerned with in this argument is how well it does that job, not whether it is a morally acceptable tool to use in doing the job. It may not be, but that is a different question for a different philosophical discussion.

What has been argued for here is that immoral content in a joke diminishes the jokes funniness. That is what is called "comic immoralism" and it is true.

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5.3: It's Still Funny Though- A Defense of Moderate Comic Immoralism

“If you lose one sense, your other senses are enhanced. That’s why people with no sense of humor have a heightened sense of self-importance.”⁴⁷

A joke that is morally repugnant can still be funny. In fact, some jokes are funny precisely because they are morally repugnant. It doesn’t take being a philosopher to understand this. All it takes is a visit to the comedy club, or a night out with some jokesters. Still, philosophers have taken this belief that appears fairly obvious and argued that it is untrue because, well, that is precisely what philosophers do. In response to these challenges, I will do what any sensible person would and dedicate an entire textbook chapter to the vindication of a claim that is indisputable: Jokes can be funny because they are immoral.

Before I dive into my argument, allow me to make some distinctions as any good philosopher would. One could argue every joke that contains immoral content is made funnier in virtue of its immorality. This view is called strong comic immoralism. I do not defend this view, not least of all because it is indefensible. In the words of Noël Carroll, “no one on this side of Satan” endorses strong comic immoralism (Carroll, 48).⁴⁸ All it takes to show that strong comic immoralism is wrong is one immoral joke that is either made less amusing – or at least, is not made more amusing – because of its immorality. Clearly, there are some immoral jokes that are made less funny because of how distasteful they are. Perhaps you have been the butt of such a joke. (Lord knows I have been). The mean-spiritedness, lewdness, or insensitivity of these jokes at least sometimes make them less amusing.

In this chapter, I defend a version of moderate comic immoralism. According to this view, sometimes jokes are made funnier because they are immoral. Moderate comic immoralism, on its face, is much more plausible, intuitive, and defensible than strong comic immoralism. All that is required to show that moderate comic immoralism is true is a single instance in which a joke is made funnier because it is immoral. Since I am an overachiever, I will provide two examples in which jokes are made more amusing because they are immoral and explain why their amusement is enhanced specifically by their immorality. In due course, I anticipate some objections to moderate comic immoralism and put them to rest. By the end of this chapter, you will be able to justify your belief in what you already knew to be true about the relationship between immorality and funniness. You’re welcome.

Racism and Cannibalism and Pedophilia, Oh My!

When I refer to an “immoral joke,” I do not mean that the joke itself has done something blameworthy, like murder someone or make out with her best friend’s brother. All I mean, as most people do when they call a joke immoral, is that the joke contains immoral content. Another way of putting this is that immoral jokes are not themselves immoral, but are about immoral things which elicit visceral reactions from us much of the time. If an example of such a joke does not readily come to mind, you’re in luck. Feast your eyes on this:

Picky Eater

Q: What is a racist cannibal’s favorite food?

A: Crackers.

Hopefully, we all accept that racism – i.e. arbitrarily privileging members of one’s own race – is morally reprehensible. Likewise, I hope we all accept that cannibalism – i.e. eating members of one’s own species – is unacceptable, at least in those cases involving homo sapiens who have not consented to being eaten. (Yes, I had to make that clarification. Remember that this is a publication for those who are or aspire to be pedantic, philosophical types). Picky Eater is, therefore, immoral in the sense that it relies on racism and cannibalism – two immoral things – to make sense.

Is Picky Eater funny, though? And if it is, to what extent is it funny because it is immoral? In response to the first question, I am fairly confident that Picky Eater is funny. After all, I included it in this chapter. Allow me to now unfunnily explain why you find this joke funny. You might latch onto the incongruity of a racy pejorative being used in the punchline of the joke that doubles both as a word for a kind of food and a word for white people. Maybe you find it particularly amusing that a racist is so committed to prejudicially favoring white people over other races that he or she makes a fuss about killing and eating anyone who isn’t white. Or you might think highly of yourself for being neither a cannibal nor a racist, and delight in the fact that you are morally superior to the joke’s subject in this respect. Perhaps thinking of cannibalism or racism makes you uncomfortable, and you find amusement in the joke to help alleviate some of your discomfort.⁴⁹

In any case, you will find Picky Eater funny in large part because it is immoral. At the very least, you will find the joke funnier than it would be sans immorality. To really drive this point home, let's rewrite the joke so it contains no immoral content and see what happens:

Salt Lover

Q: What is a salt lover's favorite food?

A: Crackers.

Picky Eater has been purged of its immorality in Salt Lover, but so too has the joke been absolved of much of what makes it funny. If you did find this sad excuse for a joke somewhat amusing, it is likely because "it's so bad that it's funny." Barring some sort of extraordinary delivery, Salt Lover does not have a strong punchline that subverts expectations and tickles the funny bone. And I suspect that the only way to revise the joke so that it is recognizable but funnier is by introducing immoral content. Though morally unproblematic, Salt Lover is not really that funny. When we revise it so that it produces notes of racism and cannibalism, though, it becomes funnier, as evidenced by Picky Eater. Thus, jokes can be made more amusing at least in part because they rely on moral transgressions.

At this point, someone might wonder whether it makes sense at all to think that people can truly find immorality amusing. After all, we lament and condemn immoral actions... So why would we find jokes that rely on immorality funny rather than disappointing? Well, it's because forbidden fruit is sometimes the sweetest. Everyone knows this. Tell children that they are not allowed to press the big, red button, and their temptation to press it will skyrocket. Knowing that something is off-limits can sometimes make that very same thing more attractive to us. Surely, you have found yourself at a funeral or some comparably grave occasion where someone in attendance does something foolish and you find it difficult to restrain your laughter precisely because you know you shouldn't laugh. This is why, I suspect, we find some immoral jokes so funny – they rely on taboos, which make them seductive and amusing. Consider the following joke:

The Nun

Q: How do you get a nun to lose her virginity?

A: Dress her up as an altar boy.

This joke is more, shall we say, provocative than Picky Eater. Among other problematic things, it relies on sexual violence and the insidious social contagion that has infamously plagued the Catholic Church – two indisputably egregious atrocities – to make sense. You might especially take issue with The Nun because it seems to make light of rape and pedophilia, and for this reason lacks taste. And it could be argued that jokes like The Nun, especially when delivered in a certain way, are particularly harmful to those who have survived sexual violence, molestation, and spiritual abuse. Provided that The Nun is the type of joke that wrongly harms others and is indicative of insensitivity toward vulnerable people, you might even believe that it is wrong to tell it or to laugh at it. But does this mean that the joke isn't funny?

Two Things Can Be True at Once

For some reason, the era of YouTube and social media has welcomed the popularization of prank videos. In particular, people like making and watching videos where practical jokes are played on fast food employees. Take, for example, the coning phenomenon. Coning happens when someone orders an ice cream cone at a drive through restaurant and picks up the ice cream cone from its top rather than its base. 170 Workers at the drive-through window have, historically, reacted amusingly to "being coned." Thousands of people have made videos documenting a variation on this prank to much positive reception on the internet. Others have made videos where they prank fast food workers by pretending to faint at the drive-through window, or by snatching food away from employees without paying them.

Some will leave comments on these prank videos saying something to the effect of, "This isn't funny," probably because fast food employees work very hard for little pay and regularly deal with difficult customers. Pranking them for clout on the internet seems to add insult to injury. Despite this, declaring that these videos aren't funny seems dishonest at best and aesthetically authoritarian at worst. The fact of the matter is that these videos accrue tens of millions of views and hundreds of thousands of likes. People clearly find these types of pranks funny, and it at least seems conceivable that they're not mistaken to believe that they actually are.

Whether or not people should find amusement in a prank or joke is distinct from whether or not people actually do. It is entirely consistent to claim that people find prank videos of the kind mentioned above funny and that it is regrettable that they do.

All of this is to say that two things can be true at once. A joke like *The Nun* might be wildly inappropriate, crass, and harmful. We might have grounds to sanction someone who makes such a joke, and appropriately demand an apology from them for making it. We might even hold people accountable for laughing at such a joke. But people might still find the joke to be funny. Someone can rightfully acknowledge that Vladimir Nabokov's *Lolita* – a novel about a “love affair” between a thirty-something-year-old man and a child – is salacious, vile, and oftentimes downright obscene, but still a triumphant literary masterpiece.

Jokes that make light of serious issues like racism, sexism, or pedophilia are uncontroversially controversial. Antisemitic jokes are similarly contentious. Ted Cohen, a Jewish philosopher, once said that he has “come to realize that if there is a problem with such jokes, the problem is compounded exactly by the fact that they are funny. Face that fact. And then let us talk about it.”⁵⁰ To accept that a joke is funny is not to concede that it is without fault. According to Cohen, the opposite might be true. By having an honest discussion about what makes immoral jokes so funny, we might be able to move ourselves toward mitigating the regrettable harms engendered by them. Perhaps those who immoral jokes are about will toughen up, or those who think they are without fault for making them will thaw their icy hearts. Either way, productive conversations about the ethics of laughter and amusement rely on recognizing that some immoral jokes are just funny.

Jokes like *The Nun*, even if we have reasons against saying or enjoying them, can still be funny precisely because they are immoral. Rob the joke of its immoral features and you sap it of at least some of what makes it funny, much like what happened in the case of *Picky Eater* once it was rewritten to be *Salt Lover*. Moderate comic immoralism is, thus, as obvious as the fact that we cannot live without oxygen, or that I am writing what you are reading in a haze of procrastination. Even if moderate comic immoralism is true (which it is), there are separate questions to answer about the morality of telling jokes. For instance, whether or not depriving a joke of its amusement value in the interest of showing consideration for others is right or wrong, praiseworthy or blameworthy is a distinct, though perhaps related, issue.

Moderate Comic Immoralism is True (Reprise)

I have – to my mind, convincingly – argued that moderate comic immoralism is true. This position does not commit us to the view that immorality always makes jokes funnier, but more modestly claims that immorality can make jokes funnier. We see this not only in *Picky Eater* and *The Nun*, but in much of the world of humor. Racist, sexist, homophobic, transphobic, ageist, ableist, classist, and xenophobic jokes are everywhere, whether we like it or not. And they can be funny specifically because they are racist, sexist, homophobic, transphobic, ageist, ableist, classist, or xenophobic, whether we like it or not. Granted, that a joke is, for instance, sexist is not alone what it takes to make it funny. Perhaps this is because such a joke does not appropriately subvert expectations, or it is delivered with malice that renders it sinister rather than jovial. But the sexism on which a misogynistic joke depends can, and often does, contribute to its funniness.

Moderate comic immoralism makes a lot of good sense. In addition to possessing much intuitive plausibility on its own, it has the benefit of being consistent with other 172 philosophical views in the study of humor. For example, moderate comic immoralism is consistent with moderate comic moralism, or the view that immoral content sometimes makes jokes less funny. Caustically directing racially charged epithets at specific people during a stand-up comedy set may, but does not always, represent such an instance. It is also consistent with moderate comic amorism, or the view that immoral content sometimes has no bearing on whether a joke is amusing or not. You might hear a joke that is laced with foul language and realize that you can tell it, while preserving the amusement value of the joke, to your younger sibling once you omit the vulgarities. Moreover, a moderate comic immoralist can subscribe to any of the available theories of humor: Superiority theory, relief theory, incongruity theory, cleverness theory, or antitheory. It neither requires nor forbids adherence to any of these theories. All it requires is the possession of two senses: common sense, and a sense of humor. In conclusion, moderate comic immoralism is right and people who deny this are wrong. And they're probably humorless jerks, too.

Footnotes

⁴⁶ I would like to thank this textbook chapter's most formidable and constructive hecklers: Andrew I. Cohen, Vanessa

⁴⁷ Source unknown, but clearly said by a genius.

⁴⁹ Consult the earlier chapters of this book to find sustained articulations and defenses of different theories of humor, such as incongruity theory, superiority theory, and relief theory.

⁵⁰ Cohen, T. (1999). *Jokes: Philosophical Thoughts on Joking Matters*. Chicago: University of Chicago Press, 84.

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5.4: Form and Funny- Formalism in Humor Aesthetics

Aristotle argued that everything is a combination of both matter and form. Consider Michelangelo's famous statue of David. What makes it the statue it is? Aristotle says that there are two answers. On the one hand, there's the marble out of which he carved it. Take away the marble of a marble statue and what is left? Nothing. So, the material from which it is made is one of its causes. On the other hand, what makes it a statue of David, King of the Jews and not a statue of Davie, the weird guy who catches squid with his bare hands and then celebrates by making farting noises with his underarms? It is the form, the shape of the marble, is what makes it the statue it is. Combine the stuff and the shape and you get the statue.

But the question here is aesthetic value. Michelangelo's statue is one of the great works in the history of art. Why?

The answer is not the material. I am not a sculptor. I have never even held a chisel. Give me a piece of marble the same size and quality and let me at it. The result? Not a great work of art. Same material, not the same aesthetic outcome.

Now, suppose scientists decide to bring a mass spectrometer into the Galleria dell'Accademia and discover that David is not actually made of marble, but rather alabaster, paper mâché, or some other substance. The world would marvel. "It just shows Michelangelo's genius that he could take such a humble substance and make it so resemble marble in the creation of this masterwork." What makes the statue such an incredible work is the detail, the grandeur, the feeling of awe it creates in the viewer. All of this is the result of its shape. The beauty, the aesthetic value is a matter of form, not content.

The same is true, I claim, with respect to jokes. Humor is an art form just as much as sculpture. As a largely linguistic art form, the content is language and the ideas and concepts the language represents. (Sure, there is slapstick and the like which are not linguistic, but we can make similar arguments for them.) Comic moralists argue that funniness is decreased because of immoral content. Comic immoralists argue that funniness is increased because of immoral content. They are both wrong. The funniness of a joke is completely a function of its form. The moral content of the joke is irrelevant to its funniness, that is, to its aesthetic quality. The content is only relevant in as far as it is a functional formal element. We appreciate the joke for its tightness, its cleverness, its rhythm – the formal elements – not because of its content, moral or otherwise. The content is just there to allow for the formal elements to appear.

If comic moralism or immoralism were true, then changing the content of an effective joke in such a way as to make it more or less immoral should have an effect on the joke's quality. If comic moralism were true, dialing up the ethically problematic content should decrease its funniness; whereas if the comic immoralist is right, then the result should be a funnier joke. Similarly, decreasing the ethically concerning aspects should increase the funniness if the comic moralist is correct, and decrease it if the comic immoralist is correct. Either way, it is an empirical result. That means that we can do some experiments. It's time to step into the philosophical laboratory.

We need a subject to operate upon. Let's take a joke with moderately ethically problematic content, an ethnic joke that makes use of a stereotype, but not that bad of one.

(1) How many Jewish mothers does it take to change a light bulb? None. It's fine. I'll just sit here in the dark. Don't worry about me. You should be happy, that all I care about.

This joke plays upon the stereotype of the Jewish mother as someone who is willing to suffer as long as it means that she can make her children feel guilty. She will make it seem as if she is the martyr, but really it is a passive-aggressive attack camouflaged as other-directed care. The joke is not difficult to analyze, although the children may be in analysis for years.

So, we have our baseline with this joke. Funny? Meh, a bit. A legit joke. Now, let's work on it, increasing and decreasing the offensive content and see if it gets more or less funny.

Start by making it less offensive. Clearly, the element of the content that contains the moral concern is the use of the stereotype of the Jewish mother. We can change that in two ways. Let's start by stripping out the content of the stereotype.

(2) How many Jewish mothers does it take to change a light bulb? The same number it would take mothers of any other ethnicity, creed, or religious background.

Did that increase or decrease the funniness? Clearly, decrease. In fact, now it isn't even a joke. What made (1) a joke is that it gave a response to an ordinary question in a way that is unusual, yet makes sense in terms of a specific element in the set up. In other

words, when you get asked how many of something, we usually answer with a number. When we are asked how many people it takes to do a simple task, the expected answer is one. (1) is a joke because it gives an answer that is simultaneously unexpected and expected. In (2), by removing the stereotype, we also removed the expected part. We no longer have the contrast that makes (1) a joke at all.

So, let's try to decrease the immoral content of (1) while maintaining its status as a joke. We need to neutralize the stereotype, but keep the mechanism in place that gives the punchline the expected/unexpected dichotomy. We can do this by replacing the stereotype with the personality trait the stereotype employs. There are people who are both mothers and passive-aggressive. Some are Jewish, some are not. What was operative in the joke was the association of passive-aggressiveness with Jewish mothers, so we can simply replace the stereotype in the set up with the operative content of the stereotype. That should give us a morally less objectionable version that is still a joke.

(3) How many passive-aggressive people does it take to change a light bulb? None. It's fine. I'll just sit here in the dark. Don't worry about me. You should be happy, that all I care about.

So, now we have a joke that plays on the same mechanism, but without the stereotype. More or less funny? Again, less funny. It is still a joke. In important ways, it is still the same joke. Yet, it does not seem to be as funny.

The comic immoralist at this point claims victory. "See," the immoralist will argue, "the stereotype did comedic work. The immoral element is responsible for the funniness." At first glance, this seems to be correct. But if it is, then we ought to see a commensurate change when we ramp up the immoral content, instead of down.

So, let's do that. Let's dial up the immorality of the joke.

(4) How many Jewish mothers does it take to change a light bulb? It wouldn't take any if Hitler had succeeded.

Whoa. O.k., that elevated quickly. Is it a joke? Yes, it plays on the same unexpected/expected type of mechanism. Structurally, it is a joke. But certainly not as good of a joke as (1).

It may have gotten a shock laugh. We laugh for a whole range of reasons. When we suffer cognitive overload, a common reaction is laughter. If you laughed at (4), it does not mean you harbor anti-Semitic, pro-Nazi sympathies. (It also doesn't mean you don't – I'm watching you.) It was an unexpected punchline, so creates a common sort of incongruity.

But our question is aesthetic value. Compare (1) and (4). Which is the better joke? Which is the more artistically successful humorous utterance? For a range of reasons we will discuss below, the answer is (8). See what I did there? Unexpected/expected. The answer, of course, is (1).

Let's dial the increase back some. Let's increase the immoral content, but not quite so much.

(5) How many Jewish mothers does it take to change a light bulb? None. Jews are too weak to do it themselves and too cheap to hire someone else to do it for them.

Twice the antisemitism. Twice the funny? Twice as good of a joke? No. But maybe that changed the joke to a different joke and that accounts for it. Let's ratchet up the ethical problem while maintaining the same stereotypical element.

(6) How many Jewish mothers does it take to change a light bulb? None. I'll just sit here in the dark thinking of how much I wish you had become a doctor. A real doctor, not a philosophy doctor. You remember Mildred Himmelfarb, down at the club? Her son is a real doctor. A cardiologist. He's the one with the skinny wife with the fake blonde hair and the BMW. You met them at Sophie's bat mitzvah last October. They were two tables over. She was the one with the red dress...like that was an appropriate dress with children in the room. So, anyway, I was playing mahjong with Mildred and with Rachel and Susan. Susan's son David just got out of the hospital. He's fine...baruch hashem. Did I tell you he was in the hospital? Gall stone. He's young for a gall stone, but what do I know? Anyway, so Mildred says to Rachel that her son, the cardiologist, just traded in his BMW for a 178 Mercedes. A Mercedes? After what they did during the war. Oy. I could have plotzed. But did I say anything? Of course, not. I'm never one to say anything. But what could I say? My son is a philosophy doctor, not a real doctor, driving around in that old Toyota that's twenty years old and falling apart. It makes me nervous to have you driving that thing. Like a tin can. If you get into an accident. It keeps me up nights worrying that you'll get in an accident with that old car of yours.

So, we have an even more stereotypical treatment. Again, let's compare the artistic quality of (1) and (6). For a little while, (6) was rolling. It was funny. But it got to be too much. In comic terms, extending a joke to get more laughs off a single punchline is called "milking" a joke. If you try to get too much milk, it runs dry.

So, now we have increased the immoral content of (1) and whether we dialed it up a lot or a little, the joke still becomes lower quality. The comic moralist seems to feel vindicated. By making the joke more immoral, you did not increase the funniness. So, the comic immoralist must be wrong.

What these cases show is that both the comic moralist and the comic immoralist are wrong. Tampering with the joke in either direction undermines the artistic quality. The moral content of the joke is not important except in as far as it creates the expectations in the mind of the listener that can then be manipulated by the punchline. But that expectation is completely independent of the moral content of the joke.

None of this, of course, is to say that we cannot judge the artistic quality of a joke. We can – indeed, we have been. The question is on what basis? Just like with Michelangelo's sculptures, it is based on the artistry of the form.

All jokes have a form, that is, an internal structure that makes it a joke. There are a range of these structures. One joke form is exaggeration.

(7) When I was a kid I was so skinny that when the doctor wanted x-rays, he just held me up in front of the window.

Another joke form is the false contrast. In this form, you take two things that are different and show that they have something unexpected in common. Possibly the greatest joke of this form comes from the comedian Gallagher:

(8) Why do we drive on a parkway and park on a driveway?

On a car's gear shift, "park" makes the car stop and "drive" makes the car go. These are opposites. Yet, when we add the same suffix to each, the suffix "way," it turns the gears into a place where we do the opposite of that particular gear. On a driveway we stop, not drive. On a parkway we go, not park. If just half of this joke were true, it would be an amazingly strong joke, but having it work in both directions makes it truly epic.

This joke possesses the virtues of "sharpness" and "tightness." A false contrast joke is "sharp" if the two things contrasted are closely related and truly opposites of each other. "Park" and "drive" are both. A joke is "tight" if it is worded very economically. Timing is crucial in humor and a joke is loosely constructed if there is a lot of extra, unnecessary linguistic muddling around. A tight joke is worded so crisply that it pops. This joke is a model of both sharpness and tightness.

Now, compare (8) to the following false contrast joke from Demetri Martin.

(9) I love the living room. The name is so positive. Whenever I go into it, I feel so alive. "What are you doing in there?" "I'm living, dude; c'mon in here and stop dining."

In delivering the joke, Martin stresses the first syllable in "dining," creating the false contrast between living and dying. Alive and dead are closely-related and opposites, so it is sharp, but Martin has to do some work to pull out the contrast (getting "dying" from "dining"...eh...) making it not as sharp as (8). It is also not nearly as tight. The joke is forced to wander a bit to get to its ultimate punchline. (9) is a fine joke, but it is not of the quality of (8).

Notice how we judge the quality of the joke – purely on form. This goes as well for off-color jokes. Consider the following false contrast joke:

(10) Knock, knock.

Who's there?

Fornication.

Fornication, who?

For an occasion like this, black tie is optional.

The false contrast here is sexual/non-sexual. It is a clean, dirty joke. The set up leads you to think it is going to be a dirty joke because the set up explicitly references a term related to sexuality, but it turns out not to be. (10) is a good joke, but it is good because it works structurally. That part of the contrast that may be morally suspect is irrelevant in terms of the quality of the joke.

And that is the point. The content of the joke is irrelevant to the quality of the joke. The content of the joke only functions to allow the form to work.¹ The joke needs for the listener to think one thing and then realize another. The joke is about the switch, not the thing that causes the switch. Both the comic moralist and the comic immoralist require the content to do the humorous work that is actually done completely by the form. But it doesn't. The content does not amplify or decrease the effectiveness. The content, immoral or otherwise, is irrelevant to the artistic quality of the joke. Hence, comic amoralism, the view that unethical content makes no difference to the ultimate funniness of the joke must be the case.

footnotes

¹ There is one type of joke that does depend solely on the content, an inside joke. An inside joke is when someone makes a reference that she knows only a small group will understand. Inside jokes lack structure, depending entirely on exclusive group membership to do the humorous work. As such, they lay outside the scope of this argument.

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